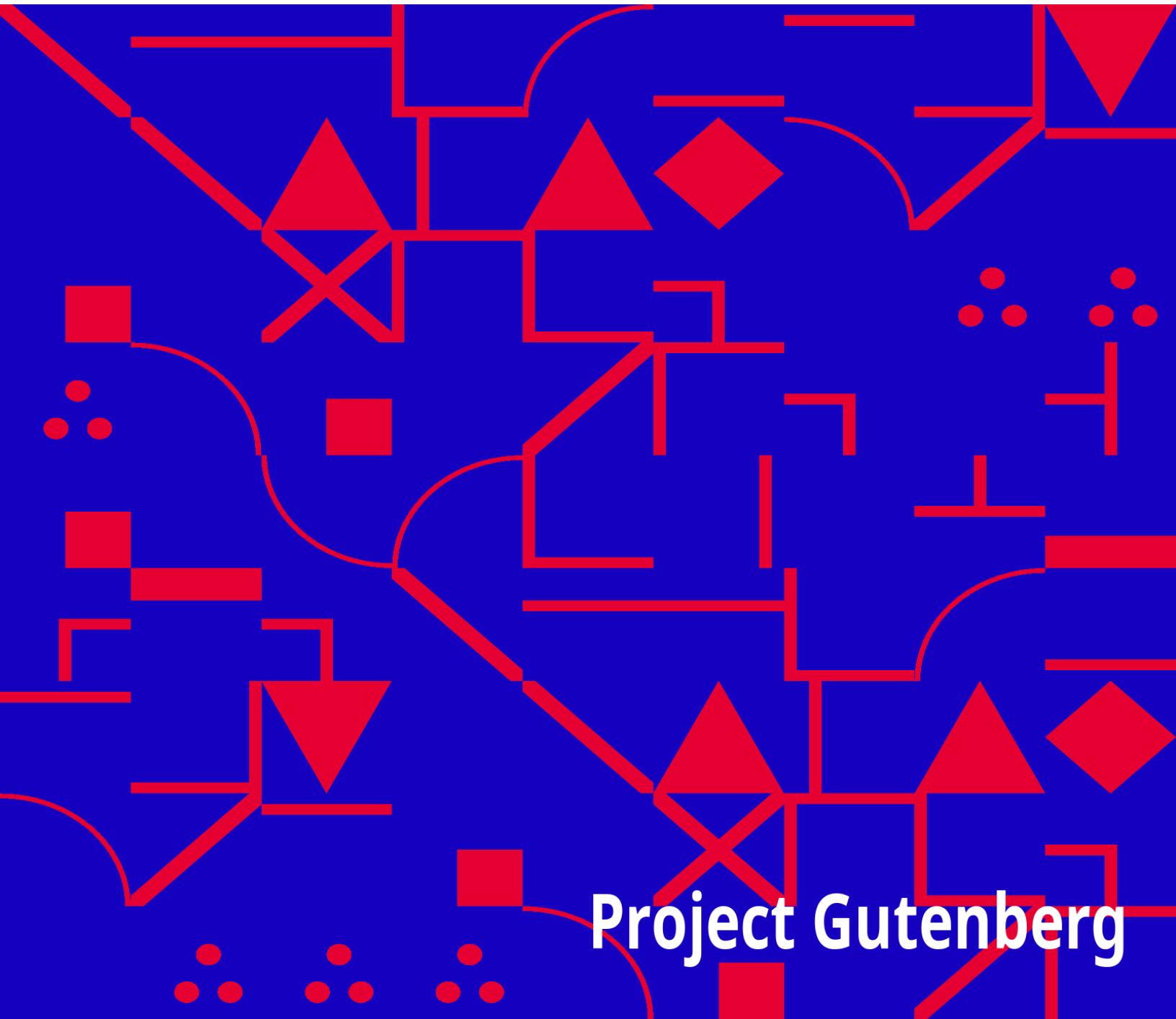


McClure's Magazine, Vol. XXXI, No. 3, July 1908.

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**McClure's Magazine, Vol. XXXI, No. 3, July
1908.**

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Transcriber's Note

The Table of Contents and the List of Illustrations were added by the transcriber.
Hyphenation standardized within articles.
Quotation marks added to standardize usage.
Updated spelling on possible typos: nineteenth, beafsteak, and embarassed.
Preserved other original punctuation and spelling.

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AUGUSTIN DALY

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GIFFORD PINCHOT

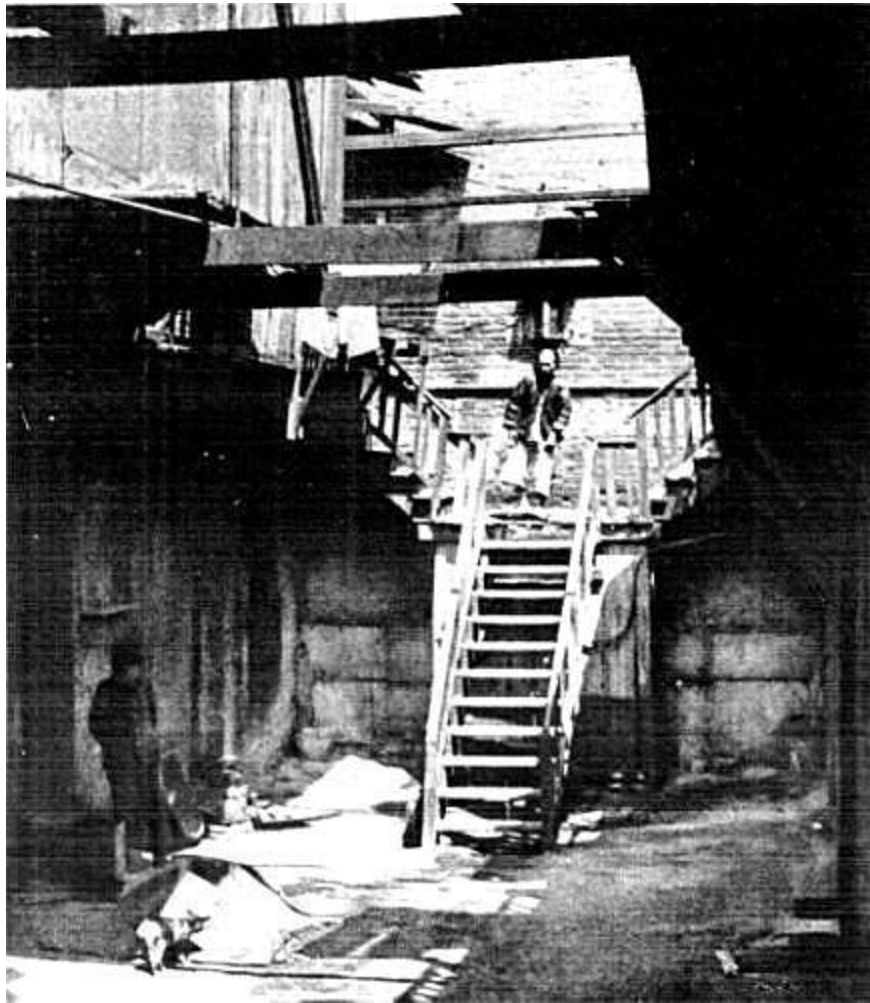
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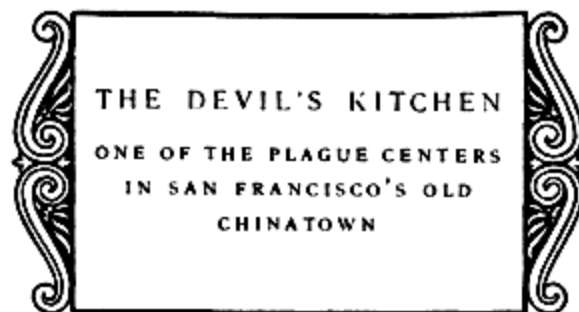
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NIGHT
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LOIS STOLE INTO THE ROOM

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GUARDIANS OF THE PUBLIC HEALTH

BY
SAMUEL HOPKINS ADAMS

JOHN CHINAMAN is the logician of hygiene. To his family doctor he says: "I pay you to keep me well. Earn your money." Let him or his fall sick, and the physician's recompense stops until health returns to that household. Being fair-minded as well as logical, the Oriental obeys his physical guardian's directions. Now, it may be possible to criticize certain Chinese medical methods, such as burning parallel holes in a man's back to cure him of appendicitis, or banging for six hours a day on a brass tom-tom to eliminate the devil of headache; but the underlying principle of "No health, no pay" is worthy of consideration.

This principle it is which, theoretically, we have adopted in the matter of the public health. To our city, State, or national doctors we pay a certain stipend (when we pay them at all) on the tacit understanding that they are to keep us free from illness. With the cure of disease they have no concern. The minute you fall ill, Mr. Taxpayer, you pass into the hands of your private physician. No longer are you an item of interest to your health officer, except as you may communicate your disease to your fellow citizens. If he looks after you at all, it is not that you may become well, but that others may not become ill through you. Being less logical in our conduct than the Chinese, we, as a people, pay little or no heed to the instructions of the public doctors whom we employ. We grind down their appropriations; we flout the wise and by no means over-rigorous regulations which they succeed in getting established, usually against the stupid opposition of unprogressive legislatures; we permit—nay, we influence our private physicians to disobey the laws in our interest, preferring to imperil our neighbors rather than submit to the inconvenience necessary to prevent the spread of disease;

and we doggedly, despite counsel and warning, continue to poison ourselves perseveringly with bad air, bad water, and bad food, the three B's that account for 90 per cent. of our unnecessary deaths. Then, if we are beset by some well-deserved epidemic, we resentfully demand to know why such things are allowed to occur. For it usually happens that the virtuous public which fell asleep with a germ in its mouth, wakes up with a stone in its hand to throw at the health officer. Considering what we, as a people, do and fail to do, we get, on the whole, better public health service than we deserve, and worse than we can afford.

OUR HEALTH BOARDS AND THEIR POWERS

As a nation, we have no comprehensive health organization. The crying need for one I shall point out in a future article. Our only Federal guardianship is vested in the United States Public Health and Marine Hospital Service, which, by some mystery of governmental construction, got itself placed in the Treasury Department, where it certainly does not belong. It is, with the exception of a few ancient political appointees now relegated to unimportant posts, a highly trained and efficient body of hygienists and medical men, the best of whom have also qualified as diplomats in trying crises. Any germ-beleaguered city may call upon this Service for aid. It is a sort of flying squadron of sanitative defence. When yellow fever broke out in New Orleans, it was the M. H. S. men who, working quietly and inconspicuously with the local volunteers, mapped out the campaign which rid the city of the scourge. In the San Francisco panic eight years ago, when bubonic plague beset the city, it was the Marine Hospital Service which restored confidence: and a Service man has been there ever since as the city's chief adviser. The Federal "surgeons," as they are called, may be in St. Louis helping to check smallpox, or in Seattle, blocking the spread of a plague epidemic, or in Mobile, Alabama, fighting to prevent the establishment of an unnecessary and injurious quarantine against the city by outsiders, because of a few cases of yellow jack; and all the while the Service is studying and planning a mighty "Kriegspiel" against the endemic diseases in their respective strongholds—malaria, typhoid, tuberculosis, and the other needless destroyers of life which we have always with us. In the Marine Hospital Service is the germ of a mighty force for national betterment.



DR. CHARLES HARRINGTON

**SECRETARY OF THE MASSACHUSETTS
STATE BOARD OF HEALTH, WHICH, BY
THE DISTRIBUTION OF VACCINE AND
ANTITOXIN ALONE, HAS SAVED THE
STATE \$210,000**

Of the State boards, perhaps a fourth may be regarded as actively efficient. The rest are honorary and ornamental. Undoubtedly a majority would be ready and willing to perform the services for which they are not (as a rule) paid anything; but they lack any appropriation upon which to work. South Carolina, for example, has an excellent State board. Its president, Dr. Robert Wilson, is an able and public-spirited physician of the highest standing; an earnest student of conditions, and eager for the sanitary betterment of his State. But when he and his board undertook to get one thousand dollars from the legislature to demonstrate the feasibility of enforcing the pure food law and

of turning away the decayed meat for which the State is a dumping-ground, they were blandly informed that there was no money available for that purpose. It was in South Carolina, by the way, that a medical politician who served on the public health committee of the legislature addressed this question to a body of physicians who had come there to appeal for certain sanitary reforms: "What do you want of laws to prevent folks being sick? Ain't that the way you make your livin'?" Which is, I fear, typical of the kind of physicians that go into politics and get into our legislatures, where, unhappily, they are usually assigned to the public health committees.

Under the State boards, in the well-organized States, are the county boards and officers, who report to the State boards and may call upon the latter for advice or help in time of epidemic or danger.

In certain circumstances the State officials may arbitrarily take charge. This is done in Indiana, in Maryland, in Pennsylvania, and in Massachusetts. The last State not only grants extraordinary powers to its health executive, Dr. Charles Harrington, but it appropriated last year for the work the considerable sum of \$136,000. By the issuance alone of vaccine and antitoxin, the Board saved to the citizens of the State \$210,000, or \$74,000 more than the total appropriation for all the varied work of the institution. Some vague idea of the economy in lives which it achieves may be gained from the established fact that death results in only sixteen out of every thousand cases of diphtheria, when the antitoxin is given on or before the second day of the illness; 110, when given on the third day; and 210 when the inoculation is performed later. The old death rate from diphtheria, before antitoxin was discovered, ranged from 35 to 50 per cent. of those stricken.



DR. THOMAS DARLINGTON

**COMMISSIONER OF HEALTH FOR NEW
YORK CITY, WHICH HAS THE MOST
THOROUGHLY ORGANIZED CITY
HEALTH DEPARTMENT IN THE UNITED
STATES**

Finally, there are the city bureaus, with powers vested, as a rule, in a medical man designated as "health officer," "agent," or "superintendent." What Massachusetts is to the State boards, New York City is to the local boards, but with even greater powers. Under the charter it has full power to make a sanitary code. Matters ranging from flat wheels on the Metropolitan Street Railway Company's antiquated cars, to soft coal smoke belched forth from factory chimneys, are subject to control by the New York City Department of Health. The Essex Street resident who keeps a pig in the cellar, and the Riverside Drive house-holder who pounds his piano at 1 A.M.



DR. CHARLES V. CHAPIN

**SUPERINTENDENT OF HEALTH IN
PROVIDENCE, RHODE ISLAND, ONE OF
THE CITIES WHICH HAS BEEN
FOREMOST IN PROSECUTING
PHYSICIANS FOR FAILURE TO GIVE
NOTICE OF INFECTIOUS DISEASE**

to the detriment of his neighbor's slumber, are alike amenable to the metropolis' hired doctors.

The province of the city, State, and Federal health organization is broad. "Control over all matters affecting the public health" is a comprehensive term. "All the powers not already given to the school committees," observed a Massachusetts judge, "are now ceded to the Boards of Health." In theory, then, almost unlimited powers are vested in the authorities. But how carefully they must be exercised in order not to excite public jealousy and suspicion, every city health official well knows. More serious than interference and opposition, however, is the lack of any general equipment. At the very

outset the loosely allied army of the public health finds itself lacking in the primal weapon of the campaign; comprehensive vital statistics.

OUR ABSURD VITAL STATISTICS

Vital statistics in this country are an infant science. Yet they are the very basis and fundament of any attempt to better the general health. Knowledge of what is killing us before our time is the first step toward saving our lives. The Census Bureau does its best to acquire this essential information. For years Director North has been persistently hammering away at this point. But progress is slow. Only fifteen States, representing 48 per cent. of our population, are comprised in the "registration area"; that is, record all deaths, and forbid burial without a legal permit giving the cause of death and other details. Outside of this little group of States, the decedent may be

tucked away informally underground and no one be the wiser for it. This is convenient for the enterprising murderers, and saves trouble for the undertakers. Indeed, so interested are the latter class, that in Iowa they secured the practical repeal of a law which would have brought that State within the area; and in Virginia this year they snowed under a similar bill in the legislature, by a flood of telegrams. Ohio, the third largest State in the Union, keeps no accurate count of the ravages of disease. Probably not more than 60 per cent. of its deaths are reported. Why? Inertia, apparently, on the part of the officials who should take the matter in charge. Governor Harris in his January message made a strong plea for registration, but without result. As for births, there is no such thing as general registration of them. So this matter is neglected, upon which depend such vital factors as school attendance, factory employment, marriage, military duty, and the very franchise which is the basis of citizenship. It is curious to note that Uruguay, in its official tables of comparative statistics, regrets its inability to draw satisfactory conclusions regarding the United States of America, because that nation has not yet attained to any scientific method of treating the subject. Patriotism may wince; but let us not haughtily demand any explanation from our sneering little neighbor. Explanations might be embarrassing. For the taunt is well founded.

Is it strange that, having no basis in national statistics, our local health figures "speak a varied language"? We have no standards even of death on which to base comparisons. But a dead man is a dead man, isn't he, whether in Maine or California? Not necessarily and unqualifiedly. In some Southern cities he may be a "dead colored man," hence thrown out of the figures on the "white death rate" which we are asked to regard as the true indication of health conditions. In New Orleans, until recently, he



DR. JOHN N. HURTY

might be a "death in county hospital," and as such not counted—this to help produce a low death rate. In Salt Lake City he's a "dead stranger," and unpopular on account of raising the total figures

for the city. They reckon their total rate there as 16.38, but their home rate or "real" rate as 10.88. That is to say, less than 11 out of every 1,000 *residents* die in a year. If this be true, the Salt Lake citizens must send their moribund into hasty exile, or give them rough on rats, so that they may not "die in the house." As for the "strangers within our gates" who raise the rate over 50 per cent. by their pernicious activity in perishing, the implication is clear: either Salt Lake City is one of the deadliest places in the world to a stranger, or else the newcomers simply commit suicide in large batches out of a malevolent desire to vitiate the mortality figures. The whole thing is an absurdity; as absurd as the illiterate and fallacious three-page leaflet which constitutes this community's total attempt at an annual health report.

**SECRETARY OF THE BOARD OF HEALTH
IN INDIANA, WHICH HAS RECENTLY
PASSED A LAW FORBIDDING THE
MARRIAGE OF IMBECILES, EPILEPTICS,
AND PERSONS SUFFERING FROM
CONTAGIOUS DISEASE**



DR. GEORGE W. GOLER

**HEALTH OFFICER OF ROCHESTER, NEW
YORK, WHO REFUSES CHILDREN
CERTIFICATES TO WORK IN FACTORIES,**

St. Joseph, Missouri, claimed, one year, a rate of 6.5 deaths out of every 1,000 inhabitants. Were this figure authentic, the thriving Missouri city, by the law of probability, should be full of centenarians. It isn't. I essayed to study the local reports, hoping to discover some explanation of the phenomenon, but was politely and regretfully informed that St. Joseph's health authorities issued no annual reports. The natural explanation of the impossibly low rate is that the city is juggling its returns. In the first place, that favorite method of securing a low per capita death rate—estimating a population greatly in advance of

**UNLESS THE APPLICANTS ARE IN SOUND
PHYSICAL CONDITION**

its actual numbers—is indicated; since the community has fewer lines of sewers and a smaller area of parks than other cities of the size it claims—two elements which, by the way, would in themselves tend to militate against a low mortality. Perhaps, too, the city has that ingenious way of eliminating one disturbing feature, the deaths under one week or ten days, by regarding them as "still-births." Chicago used to have this habit; also the trick of counting out non-residents, who were so thoughtless as to die in the city. At present, it is counting honestly, I believe. Buffalo used to pad for publication purposes. One year it vaunted itself as the healthiest large city in the country. The boast was made on the original assumption of a population nearly 25,000 in excess of the United States Census figures, to which 20,000 more was added arbitrarily, the given reason being a "general belief" that the city had grown to that extent.

Perhaps as complete returns as any are obtained in Maryland, where the health official, Dr. Price, culls the death notices from 60 papers, checks up the returns from the official registrars, and if any are missing, demands an explanation by mail. It behooves the registrar to present a good excuse. Otherwise he is haled to court and fined. The Board has thus far never failed to secure a conviction.

Now, if the most concrete and easily ascertainable fact in public health statistics, the total of deaths, is often qualified or perverted, it follows that dependent data, such as the assigned causes of death, as required by law, are still more unreliable; so I shall keep as far away from statistics as possible except where some specific condition can be shown by approved figures or by figures so inherently self-disproved that they carry their own refutation.

THE CRIMINAL NEGLIGENCE OF PHYSICIANS

This unreliability may be set down to the account of the medical profession. Realizing though they do the danger of concealment from the proper authorities, and in the face of the law which, as it gives them special privileges, requires of them a certain return, a considerable percentage of physicians falsify the returns to protect the sensibilities of their patrons.

That they owe protection rather to the lives of the public, they never stop to think. Tuberculosis is the disease most misreported. In many communities it is regarded as a disgrace to die of consumption. So it is. But the stigma rests upon the community which permits the ravage of this preventable disease; not upon the victims of it, except as they contribute to the general lethargy. In order to save the feelings of the family, a death from consumption is reported as bronchitis or pneumonia. The man is buried quietly. The premises are not disinfected, as they should be, and perhaps some unknowing victim moves into that germ-reeking atmosphere, as into a pitfall. Let me give an instance. A clergyman in a New York city told me of a death from consumption in his parish. The family had moved away, and the following week a young married couple with a six-months-old baby moved in.

"What can I do about it?" asked the clergyman. "Mr. Blank's death was said to be from pneumonia; but that was only the final cause. He had been consumptive for a year."

"Warn the new tenants," I suggested, "and have them ask the Health Board to disinfect."

More than a year later I met the clergyman on a train and recalled the case to him. "Yes," he said, "those people thought it was too much trouble to disinfect, particularly since the reports did not give tuberculosis as the cause of death. Now their child is dying of tuberculosis of the intestines."

In this case, had the death been properly reported by the dead man's physician, as the law required, the City Board would have compelled disinfection of the house before the new



DR. J. MERCIER GREEN

**HEALTH OFFICER OF CHARLESTON,
SOUTH CAROLINA, WHO STAMPED OUT
A SMALLPOX EPIDEMIC AND
REFORMED THE CITY'S WATER SUPPLY**

tenants were allowed to move in. The physician who obligingly falsified that report is morally guilty of homicide through criminal negligence.

In Salt Lake City, in 1907, 43 deaths were ascribed to tuberculosis—undoubtedly a broad understatement. And in the face of the ordinance requiring registration of all cases of consumption, only five persons were reported as ill of the disease. By all the recognized rules of proportion, 43 deaths in a year meant at least 500 cases, which, unreported, and hence in many instances unattended by any measures for prevention of the spread of infection, constituted so many separate radiating centers of peril to the whole community.

Why is such negligence on the part of physicians not punished? Because health officials dread to offend the medical profession. In this respect, however, a vast improvement is coming about. Pennsylvania, Maryland, Indiana, Massachusetts, Minnesota, Wisconsin, and other States are not afraid to prosecute and fine delinquents; nor are a growing number of cities, among them Boston, New York, Rochester, Providence, and New Orleans. The great majority of such prosecutions, however, are for failure to notify the authorities of actively contagious diseases, such as scarlet fever, diphtheria, and smallpox.

"BUSINESS INTERESTS" AND YELLOW FEVER

Epidemics are, nevertheless, in the early stages, often misreported. If they were not—if early knowledge of threatening conditions were made public—the epidemics would seldom reach formidable proportions. But—and here is the national hygienic failing—the first instinct is to conceal smallpox, typhoid, or any other disease that assumes epidemic form. Repeated observations of this tendency have deprived me of that knock-kneed reverence for Business Interests which is the glorious heritage of every true American. As a matter of fact, Business Interests when involved with hygienic affairs are always a malign influence, and usually an incredibly stupid one. It was so in New Orleans, where the leading commercial forces of the city, in secret meeting, called the health officer before them and brow-beat him into concealing the presence of yellow fever, lest other cities quarantine against their commerce. And "concealed"

it was, until it had secured so firm a foothold that suppression was no longer practicable, and the city only averted a tremendously disastrous epidemic by the best-fought and most narrowly won battle ever waged in this country against an invading disease.



THE SCAVENGERS OF CHARLESTON, SOUTH CAROLINA

It is interesting to note, by the way, that this epidemic, with its millions of dollars of loss to the city of New Orleans, might have been averted at a comparatively small cost, had the city fathers possessed the intelligence and foresight to adopt a plan devised by Dr. Quitman Kohnke, the city health officer. New Orleans gets its drinking water from private cisterns. Each of these is a breeding place for the yellow-fever-bearing mosquito. Dr. Kohnke introduced a bill a year before the epidemic, providing for the screening of all the cisterns, so that the mosquitos might not spread abroad; and also for the destruction by oil of the insects in the open pools. The total cost would hardly have exceeded \$200,000. But there was no yellow fever in the city

then; the public had recovered from its latest scare; and the bill was voted down with derision. I suppose the saving of that \$200,000 cost New Orleans some forty or fifty million dollars in all.

Seldom does a Southern State discover yellow fever within its own borders. It is always Mississippi that finds the infection in New Orleans, and Louisiana that finds it in Galveston. This apparently curious condition of affairs is explicable readily enough, on the ground that no State wishes to discover the germ in its own veins, but is quite willing, for commercial reasons, to point out the bacillus in the system of its neighbor. In 1897 Texas was infected pretty widely with yellow fever; but pressure on the boards of health kept them from reporting it for what it was. In light cases they called it dengue or breakbone fever. Now, dengue has this shortcoming: that people do not die of it. Disobliging sufferers from the alleged "dengue" began to fill up the cemeteries, thereby embarrassing the local authorities, until one of the health officers had a brilliant idea. "When they die," he said, "we'll call it malarial fever." And as such it went upon the records. Two recalcitrant members of the Galveston Health Board reported certain extremely definite cases as yellow fever. They were forced to resign, and the remainder of the Board passed resolutions declaring that there was no yellow fever, there never had been any yellow fever, and there never would be any yellow fever as long as they held their jobs—or words to that effect. San Antonio also had the epidemic; so much of it that the mail service was suspended; but nothing worse than dengue was permitted to go on the records. Later a Marine Hospital Service surgeon was sent by the government to investigate and report on the Texas situation. He told the truth as he found it and became exceedingly unpopular. Lynching was one of the mildest things they were going to do to him in Texas. And all this time, while Texas was strenuously claiming freedom from the yellow plague, her emissaries were discovering cases in New Orleans that the local authorities there had somehow carelessly overlooked. The game of quarantine, as played by the health authorities of the far Southern States, and played for money stakes, if you please, is not an edifying spectacle in twentieth century civilization.

NEWSPAPERS, POLITICIANS, AND THE BUBONIC PLAGUE

But if it is bad in the South, it is worse in the West. To-day California is paying for her sins of eight years ago in suppressing honest reports of bubonic plague, when she should have been suppressing the plague itself. That the dreaded Asiatic pest maintains its foothold there is due to the cowardice and dishonesty of the clique then in power, which constituted a scandal unparalleled in our history, a scandal that, with the present growing enlightenment, can never be repeated.

Early in 1900 the first case of the present bubonic plague onset appeared in San Francisco's Chinatown. I say "present" because I believe it has never wholly died out in the last eight years. A conference of the managing editors of the newspapers, known as the "midnight meeting," was held, at which it was decided that no news should be printed admitting the plague. The *Chronicle* started by announcing under big headlines: "Plague Fake Part of Plot to Plunder." "There Is No Bubonic Plague in San Francisco." This was "in the interest of business." Meantime the Chinese, aided by local politicians, were hiding their sick. Out of the first 100 cases, I believe only three were discovered otherwise than by the finding of the dead bodies. Sick Chinamen were shipped away; venal doctors diagnosed the pest as "chicken cholera," "septicemia hemorrhagica," "diphtheria" and other known and unknown ailments.

In May, 1900, came the blow that all San Francisco had dreaded: Texas and New Orleans quarantined against the city, and business languished. At this time two men were in control of the plague situation: Dr. Williamson of the City Board of Health and Dr. J. J. Kinyoun of the Marine Hospital Service. Dr. Williamson and Dr. Kinyoun both declared plague to be present in the city. The business interests represented in the Merchants' Association appealed to Kinyoun to suppress his reports to Washington. In return he invited them to read the law which compelled him to make reports. They then tackled Dr. Williamson, who replied that he'd tell the truth as he found it, and if it was distasteful to them, they needn't listen. They went to Mayor Phelan demanding Williamson's head on a salver. Mayor Phelan stuck by his man. Governor Gage they found more amenable. He issued a proclamation declaring that there was no plague. Governor Gage is not a physician or a man of scientific attainment. There is nothing in his record or career to show that he could distinguish between a plague bacillus and a

potato-bug. Nevertheless he spent considerable of the State's money wiring positive and unauthorized statements to Washington. His State Board of Health refused to stand by him and he cut off their appropriation; whereupon they resigned, and he secured another and more servile board, remolded nearer to the heart's desire. Meantime the newspapers were strenuously denying all the real facts of the epidemic, their policy culminating in the complete suppression of plague news. Before this, however, they so inflamed public opinion against Dr. Kinyoun and Dr. Williamson that these two gentlemen became pariahs. Here are a few of the amenities of journalism in the golden West, culled from the display heads of the papers:

"Kinyoun, Enemy of the City."

"Has Kinyoun Gone Mad?"

"Desperate, Kinyoun Commits Another Outrage on San Francisco."

"Board of Health for Graft and Plunder."

"Our Bubonic Board."

One gentle patriot in the State Senate suggested in a thoughtful and logical speech that Dr. Kinyoun should be hanged. This practical spirit so appealed to the Chinese organizations (it was Chinatown that suffered chiefly from the quarantine rigors) that those bodies put a price of \$10,000 on Kinyoun's head—not his political head, understand, but the head which was very firmly set on a pair of broad shoulders. Some of the officer's friends went to the Chinese Consul-General and explained unofficially that they would hold him responsible for any accident to Dr. Kinyoun. That personage, supposing that they were suggesting the slow accounting of diplomacy, smiled blandly and said:

"Gentlemen, I sympathize with you; but what can I do?" "Do?" said the spokesman, "Why, you can climb a lamp-post at the end of a rope within one hour of the time that Kinyoun is killed. That's what you can and will do."

The bland smile disappeared from the Oriental's face. He summoned a conference of the secret societies, and the reward for Kinyoun's death was

abrogated. Next, the white politicians of Chinatown tried their hand and organized a lynching bee, but the intrepid doctor fortified his quarters, armed his men, and was so obviously prepared for trouble that the mob did nothing more than gather. Arrested twice on trumped-up charges, threatened for contempt of court, he continued to fulfill his duties. Governor Gage and the Republican State Committee now inaugurated a campaign of influence upon President McKinley, which resulted in a Federal Commission, consisting of Drs. Flexner, Barker, and Novy, all eminent scientists, being sent to the troubled city; where, instead of being received with honors, they were abused by the newspapers; insulted by the Governor; and had the humiliation of seeing the doors of the University of California slammed in their faces after they had been invited there. Of course, the Commission found bubonic plague, because it was there for any one to find.

Thus far the United States Marine Hospital authorities had stood back of their men. Now they began to weaken. The findings of the Federal Commission were kept out of the weekly service reports, and data of the epidemic were edited out of the public health bulletins, in disregard of the law. Even this subserviency did not satisfy the California delegation; they wanted Kinyoun out.

And, on April 6, 1901, after a year's brave fight in the face of public contumely and constant physical danger, Dr. Kinyoun was kicked up-stairs into a soft berth at Detroit. He resigned. So the M. H. S. lost a brave, faithful, and able public servant and for once blackened its own fine record.

There isn't space to give the rest of the plague history; how it cropped out in other parts of California; how it was shipped to Matanza, Mexico, and all but ruined that town; how the hated local Health Board, in the face of the Governor of the State, and the Federal authorities, stuck to their guns and won the fight, for San Francisco finally admitted the presence of the plague, and asked for governmental aid. Rupert Blue, one of the best surgeons in the Marine Hospital Service, was assigned to the terrified city, and though he has not been able to wipe out the pestilence, the fact that the smoldering danger has not broken into devastating flame is due largely to his unremitting watchfulness and his unhampered authority. "Business Interests" have had their trial in San Francisco. And San Francisco has had

enough of "suppression." To-day the truth is being told about bubonic plague in the public health reports, and, I believe, in the newspapers.

Rochester, New York, one of the most progressive cities in the country in hygienic matters, has established an excellent system of school inspection and free treatment. But the children who most need attention lack it through the carelessness or negligence of their parents. Now, it is this very "submerged tenth" who are set to work early in life. Under the law, the health officer cannot say, "Unless you are sound, you shall not attend school." But there is an ordinance providing that, without a certificate of good physical condition, no child shall be permitted to work in a store or factory. So Dr. Goler refuses these certificates, not only in cases of low vitality and under-nutrition, but for any defect in the applicant's teeth, sense-apparatus, or tonsils, a fertile source of future debility. What is the result? There is a rush of these neglected youngsters to the clinics, and the Rochester schools graduate every year into the world of labor a class of young citizens in splendid physical condition, unhandicapped by the taints which make, not for death alone, but for vice and crime. For the great moral lesson of modern hygiene is that debility and immorality run in a vicious parallel.

As I have said, the most thoroughly organized city department is that of New York City, and this is so because public opinion in New York, taught by long experience that its trust will not be betrayed, is, in so far as it turns upon sanitary matters at all, solidly behind its health department. Hence its guardians work with a free hand.

FIGHTING PREJUDICE AND THE DEATH RATE IN CHARLESTON

But what is the guardian to do when the guarded refuse to bear their share of the burden; refuse, indeed, to manifest any calculable interest, except in the way of occasional opposition? Such is the case in Charleston, South Carolina, where every man aspires to do just as his remotest recognizable ancestor did, and the best citizens would all live in trees and eat nuts if they were fully convinced of the truth of the Darwinian theory. Charleston, lovely, romantic, peaceful Charleston, swept by ocean breezes and the highest death rate of any considerable American city; breathing serenely the

perfume of its flowers and the bacilli of its in-bred tuberculosis; Charleston, so delightful to the eye, so surprising to the nose!

By accident Charleston got an efficient health officer not long ago. A deserved epidemic of smallpox had descended upon the unvaccinated negroes and scared the tranquil city. Dr. J. Mercier Green was called from private practice to tackle the situation. For weeks he waded in the gore of lacerated arms, and his path through darkest Charleston could be followed by rising and falling waves of Afro-American ululations; but he checked the epidemic, and when three months later the city physician died, he got the place. Now, had Dr. Green been wise in his generation, he would have been content to keep his municipal patient reasonably free from smallpox and live a quiet life. But he straightway manifested an exasperating interest in other ailments. He stirred up the matter of the water supply, regardless of the fact that all Charleston's great-great-grandfather had drunk water from polluted cisterns and died of typhoid as a gentleman should. He pitched into doctors nearly old enough to be his own great-great-grandfather because they failed to report diseases properly. He answered back, in the public prints, the unanswerable Good-Old-Way argument. He opined, quite openly, that there was too much tuberculosis, too high an infant mortality, too prevalent a habit of contagious disease, and he more than hinted that the city itself was at fault.

In the matter of the cisterns, for instance. Charleston now has a good city water supply, fairly free from contamination where it starts, and safely filtered before it reaches the city. But a great many of "our best citizens" prefer their own cisterns, on the grandfather principle. These are underground, for the most part, and are regularly supplied from the roof-drainage. Also, they are intermittently supplied by leakage from adjacent privy-vaults, Charleston having a very rudimentary and fractional sewerage-system. Therefore typhoid is not only logical but inevitable. I have no such revolutionary contempt for private rights as to deny the privilege of any gentleman to drink such form of sewage as best pleases him; but when it comes to supplying the public schools with this poison, the affair is somewhat different. Yet, as far as the Charleston Board of School Commissioners has felt constrained to go, up to date, is this: they have written to the City Physician asking that "occasional inspection" of the

cisterns be made, and decorating their absurd request with ornamental platitudes.

With sewage it is the same situation. There is, indeed, a primitive sewer system in part of the city. But any attempt to extend it meets with a determined and time-rooted opposition. The Charlestonians are afraid of sewer-gas, but apparently have no fear of the filth which generates sewer-gas; said filth accumulating in Charleston's streets, subject only to the attention of the dissipated-looking buzzards, which are one of the conservative and local features of the place. I have seen these winged scavengers at work. It is not an appetizing sight. But with one exception they afford the only example of unofficial effort toward the betterment of sanitary conditions, that I witnessed in Charleston. The other came from a policeman, patiently poking with his club at the vent of one of the antediluvian sewers, which had—as usual—become blocked. Yet, despite public indifference and opposition, Dr. Green, without any special training or brilliant ability as a sanitarian, is, by dogged, fighting persistency lowering the death-rate of his city.

There is also a non-medical legislator to whom Charleston owes a debt of unacknowledged gratitude. Mr. James Cosgrove succeeded in getting the Charleston Neck marshes, wherein breeds the malaria-mosquito, drained. Since then the death rate from malaria, which was nothing less than scandalous, has dwindled to proportions that are almost respectable—if, indeed, it were respectable to permit any deaths from an easily destructible nuisance like the mosquito. Nearly all our cities, by the way, are curiously indifferent to the depredations of this man-eater. Suppose, for an example, that Trenton, New Jersey, were suddenly beset by a brood of copperhead snakes, which killed, let us say, two or three people a week and dangerously poisoned ten times that number. What an anti-snake campaign there would be in that aroused and terrified community! Well, that much more dangerous wild creature, the *Anopheles* mosquito, in a recent year slew more than 100 people in Savannah, Georgia, without arousing any public resentment. And Jacksonville's home brood in 1901 slaughtered 90 of its 30,000 citizens and dangerously poisoned probably 1000 more. New Orleans, by the way, having executed a triumphant massacre of the yellow fever mosquito (*stegomyia*) is now undertaking to rid itself of all the other

varieties. And Baltimore's health bureau has succeeded in obtaining a grant of \$10,000 for the purpose of demonstrating the feasibility of mosquito-extermination.

KILLING OFF THE CITY NEGRO

Throughout the South, figures and conditions alike are complicated by the negro problem. Southern cities keep a separate roster of mortalities; one for the whites, one for the blacks. In so far as they expect to be judged by the white rate alone, this is a manifestly unfair procedure, since, allowing for a certain racial excess of liability to disease, the negro in the South corresponds, in vital statistics, to the tenement-dweller in the great cities. If New Orleans is to set aside its negro mortality, that is; the death rate among those living in the least favorable environment, New York should set apart the deaths in the teeming rookeries east of the Bowery, the most crowded district in the world, and ask to be judged on the basis of what remains after that exclusion. New York, however, would be glad to diminish the mortality in its tenements. New Orleans, Atlanta, Charleston, or Savannah would be loath to diminish their negro mortality. That is the frank statement of what may seem a brutal fact. The negro is extremely fertile. He breeds rapidly. In those cities where he gathers, unless he also died rapidly, he would soon overwhelm the whites by sheer force of numbers. But, as it is, he dies about as rapidly as he breeds. Recent statistics in Savannah, for instance, showed this curious situation:

Excess of births over deaths among the whites, 245.

Excess of births over deaths among the blacks, 10.

Health Officer Brunner has stated the case, in a manner which, I fancy, required no little courage in an official of a Southern community:

We face the following issues: First: one set of people, the Caucasian, with a normal death-rate of less than 16 per thousand per annum, and right alongside of them is the Negro race with a death-rate of 25 to 30 per thousand. Second: the first named race furnishing a normal amount of criminals and paupers and the second race of people furnishing an abnormal percentage of lawbreakers and paupers.

Is the Negro receiving a square deal? Let this commission investigate the houses he lives in; why, in his race, tuberculosis is increasing; why he furnishes his enormous quota to the chain-

gang and the penitentiary. Observe the house he must live in, the food that he must eat, and learn of all his environments. The negro is with you for all time. He is what you will make him and it is "up" to the white people to prevent him from becoming a criminal and to guard him against tuberculosis, syphilis, etc. *If he is tainted with disease you will suffer; if he develops criminal tendencies you will be affected.*

Will not the white South, eventually, in order to save itself from disease, be forced to save its negroes from disease? It would seem an inevitable conclusion.

PRIVATE INTERESTS IN PUBLIC MURDER

Always and everywhere present are the private influences which work against the public health. Individuals and corporations owning foul tenements or lodging-houses resent, by all the evasions inherent in our legal system, every endeavor to eliminate the perilous conditions from which they take their profit. For the precious right to dump refuse into streams and lakes, sundry factories, foundries, slaughter-houses, glue works, and other necessary but unsavory industries send delegations to the legislature and oppose the creation of any body having authority to abate the nuisances.

Purveyors of bad milk decline to clean up their dairies until the outbreak of some disease which they have been distributing by the can brings down the authorities upon them. Could the general public but know how often minor accesses of scarlet fever, diphtheria, and typhoid follow the lines of a specific milk route, there would be a tremendous and universal impetus to the needed work of milk inspection. In this respect the country is the enemy of the city: the country, which, with its own overwhelming natural advantages, distributes and radiates what disease it does foster among its urban neighbors, by sheer ignorance or sheer obstinate resistance to the "new-fangled notions of science." Such men as the late Colonel Waring of New York, Dr. Fulton of Baltimore, and Dr. Wende of Buffalo have repeatedly pointed out the debt of death and suffering which the city, often well organized against infections, owes to the unorganized and uncaring rural districts. Reciprocity in health matters can be represented, numerically, by the figure zero. It occasionally happens that the conflict between private and public interests assumes an obviously amusing phase. The present admirable Food and Drug Department of the Indiana board was not

established without considerable opposition. One of the chief objectors was a member of the legislature, who made loud lamentation regarding the expense. Up rose another legislator, all primed for the fight, and asked if the objector would answer a few questions. The objector consented.

"Do you know the W—— baking-powder?"

"Yes."

"Do you know that it would naturally come to the food laboratory for analysis, were such a laboratory established?"

"I suppose it might."

"Do you know that the W—— baking-powder is 20 per cent. clay?"

"No."

"Would it surprise you to learn that it contained a high percentage of clay?"

No answer.

"Are you counsel for the W—— Baking Powder Co.?"

"Yes."

"That's all."

It was enough. The bill passed.

Everybody's health is nobody's business. There, as I see it, is the bane of the whole situation at present. To be sure, epidemics occasionally wake us up. And, really, an epidemic is a fine thing for a city to have. It is the only scourge that drives us busy Americans to progress. It took an epidemic of typhoid, a shameful and dreadful one, to teach Ithaca that it must not drink filth. Only after Scranton faced a thousand cases of the fever did it assert itself and demand protection for its water supply. New Orleans would probably be having (and concealing) yellow fever yet, but for the paralysis of fright which the onset of three years ago caused. Boston's fine system of medical inspection in the schools is the outcome of a diphtheria scare. Smallpox is a splendid stimulator of vaccination; so much so that some of the country's leading sanitarians now advocate the abolition of pest-houses for this avoidable ailment, and dependence upon the vaccine virus alone.

But epidemics are only the guerrilla attacks of the general enemy. It is in the diseases always with us that the peril lies. Tuberculosis, carrying off ten per cent. of the entire nation, and making its worst ravages upon those in the prime of life, is a more terrible foe than was ever smallpox, or cholera, or yellow fever, or any of the grisly sounding bugaboos. Why, not so long ago, three highly civilized States went into quite a little frenzy over a poor dying wretch of a leper who had got loose; whereas every man that spits on the floor of a building wherein people live or work is more of an actual peril, in that one foul act, than the leper in his whole stricken life. The twin shames of venereal disease, blinked by every health board in the country (Detroit possibly deserves a partial exception) are, in their effect upon the race, in blindness, deafness, idiocy, and death so dreadful a menace to-day, that consumption alone can march beside them in the leadership of the destroyers. Typhoid, so easily conquerable, claims its annual thousands of sacrificed victims. And the slaughter of the innocents goes endlessly on, recorded only in the dire figures of infant mortality. To-day, as I write, the whole nation is thrilled with horror at the tragedy of 150 young lives snuffed out in a needless school panic in Cleveland. Had my pen the power, perhaps I could thrill the nation with horror over the more dreadful fact that some 1100 children under five years of age die yearly in Fall River, the vast majority of them sacrificed to bad food and living conditions that might better be called dying conditions. One half of the total mortality of that busy, profit-yielding city is among children under five years of age, two-fifths among children under one year. Does no baneful light shine from those figures?

Yet, over and above the minor discouragements, failures, and set-backs, looms the tremendous fact of a universal and gathering movement. It is still, in any general sense, inchoate, and, except in certain specific relations, invertebrate. But one cannot follow the work of the public health guardians without feeling the cumulative force of progress. As I have said, the newspapers have been a vital element in awaking the public. Associations are being formed the country over for the prevention of disease. There is a steady increase in the power and authority of those officially charged with hygienic control. Makers of deleterious or poisonous foods, and the vultures who prey on the sick through fraudulent patent medicines are being curbed by pure food and drug laws. Milk inspection is saving the lives of more

children every year, as meat inspection is prolonging the lives of the poor. Definite instances of progress are almost startling: the fact that Massachusetts has so purified its public waters that for a year there has been no typhoid epidemic ascribable to any public supply; the passage of a radical law in Indiana which forbids the marriage of imbeciles, epileptics, and persons suffering from a contagious or venereal disease; the saving of babies' lives at \$10 a life in Rochester by pure milk protected and guaranteed by the municipality; the halving of the diphtheria death rate by the free distribution of antitoxin; the slow but sure and universal yearly decrease in the Great White Plague—all these and more are the first, slow, powerful evidences of national progress.

A LITTLE VICTORY FOR THE GENERAL

BY JOSEPHINE DASKAM BACON

ILLUSTRATIONS BY REGINALD BIRCH

CAROLINE, Miss Honey, and the General were taking the morning air. Caroline walked ahead, her chin well up, her nose sniffing pleurably the unaccustomed asphalt, the fresh damp of the river, and the watered bridle path. The starched ties at the back of her white pinafore fairly took the breeze, as she swung along to the thrilling clangor of the monster hurdy-gurdy. Miss Honey, urban and blasé, balanced herself with dignity upon her long, boat-shaped roller-skates, and watched with patronizing interest the mysterious jumping through complicated diagrams chalked on the pavement by young persons with whom she was unacquainted.

The General sucked a clothespin meditatively: his eyes were fixed on something beyond his immediate surroundings. Occasionally a ravishing smile swept up from the dimples at his mouth to the yellow rings beneath his cap frill; he flapped his hands, emitting soft, vague sounds. At such times a wake of admiration bubbled behind him. Delia, who propelled his carriage, pursed her lips consciously and affected not to hear the enraptured comments of the women who passed them.

To the left the trees, set in a smooth green carpet, threw out tiny, polished, early May leaves; graceful, white-coated children dotted the long park. Beyond them the broad blue river twinkled in the sun, the tugs and barges glided down, the yachts strained their white sails against the purple bluffs of the Palisades. To the right towered the long, unbroken rows of brick and stone; story on story of shining windows, draped and muffled in silk and lace; flight after flight of clean granite steps, polite, impersonal, hostile as the monuments in a graveyard.

Immobile ladies glided by on the great pleasure drive, like large tinted statues, dressed altogether as the colored pictures in fashion books, holding white curly dogs in their curved arms; the coachmen in front of them seemed carved in plum-colored broadcloth; only by watching the grooms' eyelids could one ascertain that they were flesh and blood. Young girls, two, three, and four, cantered by; their linen habits rose and fell decorously, their hair was smooth. Mounted policemen, glorious in buttons, breathing out authority, curvetted past, and everywhere and always the chug-chug-chug of the gleaming, fierce-eyed motor cars filled one's ears. They darted past, flaming scarlet, somber olive, and livid white; a crouching, masked figure intent at the wheel, veiled, shapeless women behind, a whirl of dust to show where they had been a breath before.

And everywhere, as far as the eye could reach, a thin stream of white and pink and blue, a tumbling river of curls and caps and bare legs, were the children. A babble of shrill cries, of chattering laughter, of fretful screams, an undercurrent of remonstrance, of soothing patience, of angry threatening, marked their slow progress up and down the walk.

To Caroline, fresh from untrammelled sporting through neighborly suburban yards, this disciplined procession, under the escort of Delia and the General, was fascinating to a degree. Far from resenting the authority she would have scorned at home, she derived an intense satisfaction from it, and pranced ostentatiously beside the perambulator, mimicking Miss Honey's unconscious reference to a higher power in the matter of suitable crossings and preferred playfellows with the absorbed gravity of the artist.

"See! General, see the wobblybubble," Delia murmured affectionately. "(Will you see that child turn his head just like a grown person? Did you ever see anything as smart as that?) Did he like the red one best? So does Delia. We'll come over here, and then you won't get the sun in your precious eyes. Do you want me to push you frontwards, so you can see me? Just wait till we get across, and I will. Look out, Miss Honey! Take hold of your cousin's hand and run across together, now, like good girls."

Miss Honey made an obedient snatch at Caroline's apron strings, and darted forward with a long roll of her skates. The road was clear for a block. Delia, with a quick glance to left and right, lowered the perambulator to the road

level and forged ahead. Caroline, nose in air, studied the nearest policeman curiously.

"Look out, there! *Look out!*"

A man's voice like a pistol shot crashed behind them. Caroline heard quick steps and a woman's scream, and looked up at a huge, blood-red bulk that swooped around the corner and dashed forward. But Miss Honey's hand was clutching her apron string, and Miss Honey's weight as she fell, tangled in the skates, dragged her down. Caroline, toppling, caught in one dizzy backward glance a vision of a face staring down on her, white as chalk under a black mustache and staring goggles, and another face, Delia's, white too, with eyes more strained and terrible than the goggles themselves. One second that look swept her and Miss Honey, and then, shifting, fell upon the General strapped securely into his carriage. Even as Caroline caught her breath, he flew by her like an arrow, his blue eyes round with surprise under a whirl of white parasol, the wicker body of the perambulator swaying and lurching. With that breath still in her nostrils, she was pushed violently against Miss Honey, who was dragged over her from the other side by a large hairy hand. A sharp blow from her boot heel struck Caroline's cheek, and she screamed with the pain; but her cry was lost in the louder one that echoed around her as the dust from the red monster blew in her eyes and shut out Delia's figure, flat on the ground, one arm over her face as the car rushed over.

"My God! She's down!" That was the man.

"Take his number!" a shrill voice pierced the growing confusion.

Caroline, crying with pain, was forced to her feet and stumbled along, one apron string twisted fast in Miss Honey's hand.

"Here, get out o' this—don't let the children see anything! Let's get home."

"No, wait a minute. Let's see if she's alive. Have they got the ambulance?"

"Look out, there, Miss Dorothy, you just stop by me, or you'll be run over, too!"

"See! She's moving her head! Maybe she's not——"

Sobbing with excitement, Caroline wrenched herself free from the tangle of nurses and carriages, and pushed her way through the crowd. Against the curb, puffing and grinding, stood the great red engine; on the front seat a tall policeman sat; one woman in the back leaned over another, limp against the high cushions, and fanned her with the stiff vizor of her leather cap.

"It's all right, dear, it's all right," she repeated monotonously, with set lips, "the doctor's coming. It's all right."

Caroline wriggled between two policemen, and made for a striped blue and white skirt that lay motionless on the ground. Across the white apron ran a broad, dirty smudge.

Caroline ran forward.

"Delia! Delia!" she gulped. "Is she—is she dead?"

A little man with eye-glasses looked up from where he knelt beside the blue and white skirt.

"I don't believe so, my dear," he said briskly. "Is this your nurse? See, she's opening her eyes now—speak to her gently."

As he shifted a leather-covered flask from one hand to the other, Caroline saw a strange face with drawn, purplish lids where she had always known two merry gray eyes, and tight thin lips she could not believe Delia's. A nervous fear seized her, and she turned to run away; but she remembered suddenly how kind Delia had been to her; how that very morning—it seemed so long ago, now—Delia had helped her with her stubby braids of hair, and chided Miss Honey for laughing at her ignorance of the customs of the park. She gathered her courage together and crouched down by the silent, terrifying figure.

"Hel—hello, Delia!" she began jerkily, wincing as the eyes opened and stared stupidly at the ring of anxious faces. "How do you feel, Delia?"

"Lean down," said the little man softly, "she wants to say something."

Caroline leaned lower.

"General," Delia muttered, "where's General?"

The little man frowned.

"Do you know what she means?" he asked.

Caroline patted her bruised cheek.

"Of course I do," she said shortly. "That's the baby. Oh," as she remembered, "where is the General?"

"Here—here's the baby," called some one. "Push over that carriage," and a woman crowded through the ring with the General, pink and placid under his parasol.

"Lift him out," said the little man, and as the woman fumbled at the strap, he picked the baby out neatly and held him down by the girl on the ground.

"Here's your baby, Delia," he said, with a kind roughness in his voice. "Safe and sound—not a scratch! Can you sit up and take him?"

And then, while the standing crowd craned their necks, and even the steady procession, moving in the way the police kept clear for them, paused a moment to stare, while the little doctor held his breath and the ambulance came clanging up the street, Delia sat up as straight as the mounted policeman beside her and held out her arms.



**"CAROLINE WALKED AHEAD, HER CHIN WELL UP, HER NOSE SNIFFING
PLEASURABLY THE UNACCUSTOMED ASPHALT"**

"General, oh, General!" she cried, and buried her face in his fat warm neck.

The men coughed, the women's faces twisted, but the little doctor watched her intently.

"Move your leg," he said sharply. "Now the other. Hurt you? Not at all?"

He turned to the young man in a white jacket, who had jumped from the back of the ambulance.

"I thought so," he said. "Though it didn't seem possible. I saw the thing go over her. Right over her apron—never touched her. Half an inch more——"

"Please, is Miss—the other little girl—is she——"

This was Delia's old voice, and Caroline smiled happily at her.

"She's all right, Delia—here she is!"

Miss Honey limped across on one roller skate, pale, but conscious of her dramatic value, and the crowd drew a long breath of relief.

"You are a very brave girl," said the doctor, helping Delia to her feet and tucking the General, who alternately growled and cooed at his clothespin, into the perambulator. "You have undoubtedly saved the lives of all three of these children, and their parents will appreciate it, you may be sure. The way you sent that baby wagon flying across the street—well, any time you're out of a job, just come to me, that's all. Dr. Gibbs, West Forty-ninth. Can you walk now? How far do you have to go?"

The crowd had melted like smoke. Only the most curious and the idlest lingered and watched the hysteria of the woman in the automobile, who clutched her companion, weeping and laughing. The chauffeur sat stolid, but Caroline's keen round eyes saw that he shook from the waist down like a man in a chill.

"Yes, sir, I'm all right. It's not so very far." But Delia leaned on the handle she pushed, and the chug-chug of the great car sent the blood out of her cheeks. The little doctor frowned.

"Look here," he said, "I'll tell you what you'll do. You come down these steps with me, there aren't but three of them, you see, and we'll just step in here a moment. I don't know what house it is, but I guess it'll be all right."

Before Delia could protest, he had pressed the button, and a man in livery was opening the door.

"We've just escaped a nasty accident out here," said the little doctor easily. "You were probably looking out of the window? Yes. Well, this young woman is a sort of a patient of mine—Dr. Gibbs, West Forty-ninth Street—and though she's very plucky and perfectly uninjured, I want her to rest a moment in the hall here and have a drink of water, if your mistress doesn't object. Just take this card up and explain the circumstances and"—his hand went into his pocket a moment—"that's about all. Sit down, my dear."

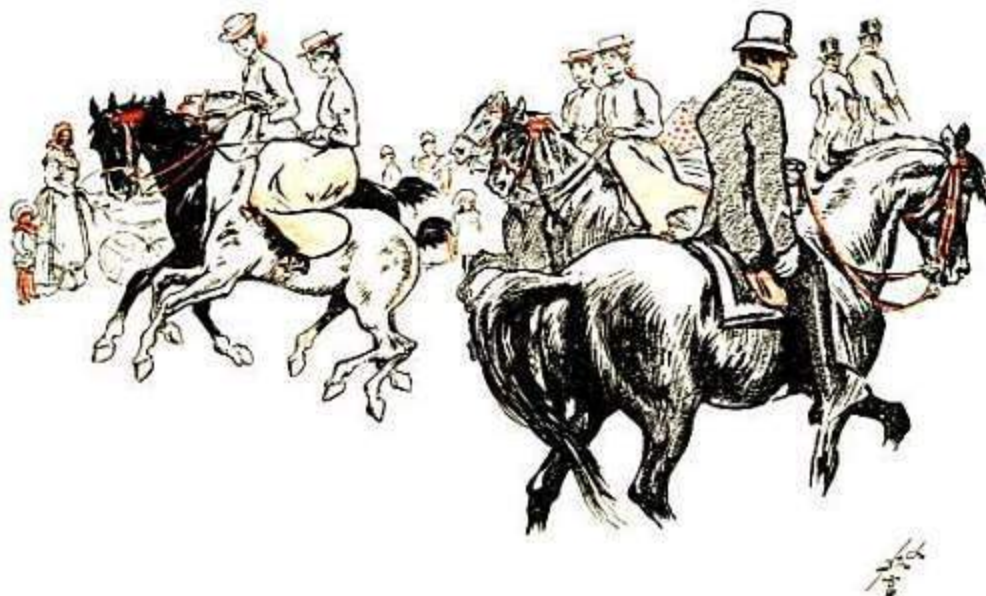
The man took in at a glance the neat uniform of the nurse, the General's smart, if diminutive, apparel, and the unmistakable though somewhat

ruffled exterior of Miss Honey.

"Very well, sir," he said, politely, taking the card. "It will be all right, sir, I'm sure. Thank you, sir. Sit down, please. It will be all right. I will tell Madame Nicola."

"Well, well, so this is Madame Nicola's!" The little doctor looked around him appreciatively, as the servant ran up the stairs.

"I wish I could stay with you, chickens, but I'm late for an appointment as it is. I must rush along. Now, mind you, stay here half an hour, Delia, and sit down. You're no trouble at all, and Madame Nicola knows who I am—if she remembers. I sprayed her throat once, if I'm not mistaken—she was on a tour, at Pittsburg. She'll take care of you." He opened the door. "You're a good girl, you biggest one," he added, nodding at Caroline. "You do as you're told. Good-bye."



"YOUNG GIRLS ... CANTERED BY; THEIR LINEN HABITS ROSE AND FELL DECOROUSLY, THEIR HAIR WAS SMOOTH"

The door shut, and Caroline, Miss Honey, and Delia looked at each other in a daze. Tears filled Delia's eyes, but she controlled her voice and only said

huskily, "Come here, Miss Honey, and let me brush you off—you look dreadful. Did it—were you—are you hurt, dear?"

"No, but you pushed me awful hard, Delia, and a nasty big man grabbed me and tore my guimpe—see! I wish you'd told me what you were going to do," began Miss Honey irritably.

"And you gave me a big kick—it was *me* he grabbed—look at my cheek!" Caroline's lips began to twitch; she felt hideously tired, suddenly.

"Children, children, don't quarrel. General, darling, *won't* you sit still, please? You hurt Delia's knees, and you feel so heavy. Oh, I wish we were all home!"

The man in uniform came down the stairs. "Will you all step up, madame says, and she has something for you up there. I'll take the baby," as Delia's eyes measured the climb. "Lord, I won't drop her—I've got two o' my own. 'Bout a year, isn't she?"

"He's a boy," panted Delia, as she rested her weight on the rail, "and he's only eight months last week," with a proud smile at the General's massive proportions.

"Well, he *is* a buster, isn't he? Here is the nurse, madame, and the children. The doctor has gone."

Caroline stretched her eyes wide and abandoned herself to a frank inspection of her surroundings. For this she must be pardoned, for every square inch of the dark, deep-colored room had been taken bodily from Italian palaces of the most unimpeachable Renaissance variety. With quick intuition, she immediately recognized a background for many a tale of courts and kings hitherto unpictured to herself, and smiled with pleasure at the Princess who advanced, most royally clad in long, pink, lace-clouded draperies, to meet them.

"You are the brave nurse my maid told me about," said the Princess; "she saw it all. You ought to be very proud of your quick wit. I have some sherry for you, and you must lie down a little, and then I will send you home."

Delia blushed and sank into a high carved chair, the General staring curiously about him. "It wasn't anything at all," she said awkwardly; "if I could have a drink——"

Caroline checked the Princess as she moved toward a wonderful colored decanter with wee sparkling tumblers like curved bits of rainbow grouped about it.

"Delia means a drink of water," she explained politely. "She only drinks water—sometimes a little tea, but most usu'lly water."

"The sherry will do her more good, I think," the Princess returned, noticing Caroline for the first time, apparently, her hand on the decanter.



**"THE STANDING CROWD CRANED THEIR NECKS, AS DELIA SAT UP STRAIGHT
AND HELD OUT HER ARMS"**

At this point Miss Honey descended from a throne of faded wine-colored velvet, and addressed the Princess with her most impressive and explanatory manner.

"It won't do you any good at all to pour that out," she began, with her curious little air of delivering a set address, prepared in private some time before, "and I'll tell you why. Delia knew a nurse once that drank some beer, and the baby got burned, and she never would drink anything if you gave her a million dollars. Besides, it makes her sick."

The Princess looked amused and turned to a maid who appeared at that moment, with apron strings rivaling Caroline's.

"Get me a glass of water, please," she said, "and what may I give you—milk, perhaps? I don't know very well what children drink."

"Thank you, we'd like some water, too," Miss Honey returned primly; "we had some soda-water, strawberry, once to-day."

Caroline cocked her head to one side and tried to remember what the lady's voice made her think of. Suddenly it came to her. It was not like a person talking at all, it was like a person singing. Up and down her voice traveled, loud and soft; it was quite pleasant to hear it.

"Do you feel better now? I am very glad. Bring in that reclining chair, Ellis, from my room; these great seats are rather stiff," said the Princess, and Delia, protesting, was made comfortable in a large curved lounging basket, with the General, contentedly putting his clothespin through its paces, in her arm.

"How old is it?" the Princess inquired after an interval of silence.

"He's eight months, madame, last week—eight months and ten days, really."

"That's not very old, now, is it?" pursued the lady. "I suppose they don't know very much, do they, so young?"

"Indeed he does, though," Delia protested. "You'll be surprised. Just watch him, now. Look at Delia, darlin'; where's Delia?"

The General withdrew his lingering gaze from the clothespin, and turned his blue eyes wonderingly up to her. The corners of his mouth trembled, widened, his eyelids crinkled, and then he smiled delightfully, straight into the eyes of the nurse, stretched up a wavering pink hand, and patted her cheek. A soft, gurgling monosyllable, difficult of classification but easy to interpret, escaped him.

The Princess smiled appreciatively, and moved with a stately, long step toward them.

"That was very pretty," she said, but Delia did not hear her.

"My baby, my own baby!" she murmured with a shiver, and hiding her face in the General's neck she sobbed aloud.

Miss Honey, shocked and embarrassed, twisted her feet nervously and looked at the inlaid floor. Caroline shared these feelings, but though she turned red, she spoke sturdily.

"I guess Delia feels bad," she suggested shyly, "when she thinks about—about what happened, you know. She don't cry usu'lly."

The Princess smiled again, this time directly at Caroline, who fairly blinked in the radiance. With her long brown eyes still holding Caroline's round ones, she patted Delia's shoulder kindly, and both children saw her chin tremble.

The General, smothered in that sudden hug, whimpered a little and kicked out wildly with his fat, white-stockinged legs. Seen from the rear he had the appearance of a neat, if excited, package, unaccountably frilled about with embroidered flannel. Delia straightened herself, dabbed apologetically at her eyes, and coughed.

"It's bottle time," she announced in horror-stricken tones, consulting a large nickel watch hanging from her belt, under the apron. "It's down in the carriage. Could I have a little boiling water to heat it, if you please?"



"I'VE GOT TWO O' MY OWN"

"Assuredly," said the Princess. "Ellis, will you get the—the bottle from the baby's carriage and some boiling water, please. Do you mix it here?"

"Mix—the food is all prepared, madam." Delia spoke with repressed scorn. "I only want to heat it for him."

"Oh, in that case, Ellis, take it down and have it heated, or," as the nurse half rose, "perhaps you would feel better about it if you attended to it yourself?"

"Yes, I think I will go down if you don't mind—when persons aren't used to 'em they're apt to be a little careless, and I wouldn't have it break and him losing his three o'clock bottle, for the world. You know how it is."

The Princess shook her head whimsically. "But surely you will leave the baby," and she moved toward them again. "I will hold it," with a half grimace at her own condescension. "It seems so very good and cheerful—I thought they cried. Will it come to me?"

Delia loosened her arms, but tightened them again as the little creature leaned forward to catch at the swinging lace on the lady's gown.

"I—I think I'll take baby with me. Thank you just the same, and he'll go to any one—yes, indeed—but I feel sort of nervous, I think I'd better take him. If anything should happen.... Wave your hand good-bye, now, General!"

The General flapped his arms violently, and bestowed a toothless but affectionate grin upon the wearer of the fascinating, swaying lace, before he disappeared with the delighted Ellis in the van.

"And can you buy all that devotion for twenty, thirty, or is it forty dollars a month, I wonder?" mused the Princess. "Dear me," she added, petulantly. "It really makes one actually *want* to hold it! It seems a jolly little rat—they're not all like that, are they? They howl, I'm sure."

Again Miss Honey took the floor.

"When babies are sick or you don't treat them right," she announced didactically, "they cry, but not a well baby, Delia says. I"—with conscious pride—"screamed night and day for two weeks!"

"Really!" observed the Princess. "That must have been—er—trying for your family!"

"Worried to death!" Miss Honey rejoined airily, with such an adult intonation that the Princess started.

"The General, he just laughs all the time," Caroline volunteered, "unless you tease him," she added guiltily, "and then he squawks."

"Yes, indeed," Miss Honey bore witness, jealous of the lady's flashing smile to Caroline, "my mother says I'm twice the trouble he is!"

The Princess laughed aloud. "You're all trouble enough, I can well believe," she said carelessly, "though you particular three are certainly amusing little duds—for an afternoon. But for a steady diet—I'm afraid I'd get a bit tired of you, eh?"

She tapped their cheeks lightly with a cool, sweet-smelling finger. Miss Honey smiled uncertainly, but Caroline edged away. There was something about this beautiful tall lady she could not understand, something that alternately attracted and repelled. She was grown up, certainly; her skirts, her size, and her coiled hair proved that conclusively, and the servants obeyed her without question. But what was it? She was not like other

grown-up people one knew. One moment she sparkled at you and the next moment she forgot you. It was perfectly obvious that she wanted the General only because Delia had not wanted to relinquish him, which was not like grown people; it was like—yes, that was it: she was like a little girl, herself, even though she was so tall and had such large red and blue rings on her fingers.

Vaguely this rushed through Caroline's mind, and it was with an unconscious air of patronage that she said, as one making allowances for inexperience, "When you get married, then you'll *have* to get tired of them, you know."

"But you'll be glad you've got 'em, when they're once in bed," Miss Honey added encouragingly. "My mother says I'm a real treasure to her, after half-past seven!"

The Princess flushed; her straight dark eyebrows quivered and met for an instant.

"But I *am* married," she said.

There was an utter silence.

"I was married five years ago yesterday, as it happens," she went on, "but it's not necessary to set up a day nursery, you know, under those circumstances."

Still silence. Miss Honey studied the floor, and Caroline, after an astonished stare at the Princess, directed her eyes from one tapestry to another.

"I suppose you understand that, don't you?" demanded the Princess sharply. She appeared unnecessarily irritated, and as a matter of fact embarrassed her guests to such an extent that they were utterly unable to relieve the stillness that oppressed them quite as much as herself.

The Princess uttered an angry exclamation and paced rapidly up and down the room, looking more regal and more unlike other people than ever.

"For heaven's sake, say something, you little sillies!" she cried. "I suppose you want me to lose my temper?"

Caroline gulped and Miss Honey examined her shoe-ties mutely.

Suddenly a well-known voice floated toward them.

"Was his nice bottle all ready? Wait a minute, only a minute now, General, and Delia'll give it to you!"

The procession filed into the room, Delia and the General, Ellis deferentially holding a tiny white coat, the man in livery bearing a small copper saucepan in which he balanced a white bottle with some difficulty. His face was full of anxious interest.

Delia thanked them both gravely, seated herself on the foot of the basket-chair, arranged the General flat across her knees, and, amid the excited silence of her audience, shook the bottle once or twice with the air of an alchemist on the brink of an epoch-making discovery.

"Want it? Does Delia's baby want it?" she asked enticingly. The General waved his arms and legs wildly; wreathed in smiles, he opened and shut his mouth in quick alternation, chirping and clucking, as she held it up before him; an ecstatic wriggling pervaded him, and he chuckled unctuously. A moment later only his deep-drawn, nozzling breaths could be heard in the room.

"He takes it beautiful," said Delia, in low tones, looking confidentially at the Princess. "I didn't know but being in a strange place might make a difference with him, but he's the best-baby!——"

She wiped his mouth when he had finished, and lifting him, still horizontal, approached her hostess.

"You can hold him now," she said superbly, "but keep him flat for twenty minutes, please. I'll go and take the bottle down, and get his carriage ready. He'll be good. He'll take a little nap, most likely."

She laid him across the rose-colored lap of the Princess, who looked curiously down on him, and offered him her finger tentatively. "I never held one before," she explained. "I—I don't know." ... The General smiled lazily and patted the finger, picking at the great sapphire.

"How soft its hands are," said the Princess. "They slip off, they are so smooth! And how good—does it never cry?" This she said half to herself, and Caroline and Miss Honey, knowing there was no need to answer her, came and leaned against her knee unconsciously, and twinkled their fingers at the baby.

"Hello, General! Hello!" they cried softly, and the General smiled impartially at them and caressed the lady's finger.

The Princess stroked his cheek. "What a perfectly exquisite skin!" she said, and bending over him, kissed him delicately.

"How good it smells—how—how different!" she murmured. "I thought they—I thought they didn't."

Miss Honey had taken the lady's other hand, and was examining the square ruby with a diamond on either side.

"My mother says that's the principal reason to have a baby," she remarked, absorbed in the glittering thing. "You sprinkle 'em all over with violet powder—just like doughnuts with sugar—and kiss 'em. Some people think they get germs that way, but my mother says if she couldn't kiss 'em she wouldn't have 'em!"

The Princess bent over the baby again.

"It's going to sleep here!" she said, half fearfully, with an inquiring glance at the two. "Oughtn't one to rock it?"

Miss Honey shook her head severely. "Not General," she answered, "he won't stand it. My mother tried again and again—could I take that blue ring a minute? I'd be awful careful—but he wouldn't. He sits up and he lies down, but he won't rock."

"I might sing to him," suggested the Princess, brushing a damp lock from the General's warm forehead and slipping her ringless finger into his curved fist carefully. "Would he like it?"

"No, he wouldn't," said Miss Honey bluntly, twisting the ring around her finger. "He only likes two people to sing—Delia and my mother. Was that ruby ring a 'ngagement ring?"

Caroline interfered diplomatically, "General would be very much obliged," she explained politely, "except that my Aunt Deedee is a very good singer indeed, and Uncle Joe says General's taste is ruined for just common singing."

The Princess stared at her blankly.

"Oh, indeed!" she remarked. Then she smiled, again in that whimsical, expressive way. "You don't think I could sing well enough for him—as well as your mother?"

Miss Honey laughed carelessly. "My mother is a singer," she said, "a real one. She used to sing in concerts—real ones. In theaters. Real theaters, I mean," as the lady appeared to be still amused.

"If you know where the Waldorf Hotel is," Caroline interrupted, "she has sung in that, and it was five dollars to get in. It was to send the poor children to a Fresh Air Fund. It—it's not the same as you would sing—or me," she added politely.

The lady arose suddenly and deposited the General, like a doll, with one swift motion, in the basket-chair. Striding across the room she turned, flushed and tall, and confronted the wondering children.

"I will sing for you," she said haughtily, "and you can judge better!"

With a great sweep of her half bare arm, she brushed aside a portière and disappeared. A crashing chord rolled out from a piano behind the curtains and ceased abruptly.

"What does your mother sing?" she demanded, not raising her voice, it seemed, and yet they heard her as plainly as when they had leaned against her knee.

"She sings, 'My Heart's Own Heart,'" Miss Honey called back defiantly.

"And it's printed on the song, 'To Madame Edith Holt!'" shrilled Caroline.

The familiar prelude was played with a firm, elastic touch, the opening chords struck, and a great, shining voice, masterful, like a golden trumpet, filled the room. Caroline sat dumb; Miss Honey, instinctively humming the prelude, got up from her footstool and followed the music, unconscious that she walked. She had been privileged to hear more good singing in her eight years than most people in twenty-four, had Miss Honey, and she knew that this was no ordinary occasion. She did not know she was listening to one of the greatest voices her country had ever produced—perhaps in time to be known for the head of them all—but her sensitive little soul swelled in her, and her childish jealousy was drowned deep in that river of wonderful sound.

Higher and sweeter and higher yet climbed the melody; one last triumphant leap, and it was over.

"My heart—my heart—my heart's own heart!"



"'WHO—WHO—WHAT IS THE MEANING OF THIS?' HE WHISPERED HOARSELY"

The Princess stood before them in the echoes of her glory, her breath quick, her eyes brilliant.

"Well?" she said, looking straight at Miss Honey, "do I sing as well as your mother?"

Miss Honey clenched her fists and caught her breath. Her heart was breaking, but she could not lie.

"You—you"—she motioned blindly to Caroline, and turned away.

"You sing better," Caroline began sullenly, but the lady pointed to Miss Honey.

"No, you tell me," she insisted remorselessly.

Miss Honey faced her.

"You—you sing better than my m—mother," she gulped, "but I *love* her better, and she's nicer than you, and I don't love you at *all*!"

She buried her face in the red velvet throne, and sobbed aloud with excitement and fatigue. Caroline ran to her: how could she have loved that cruel woman? She cast an ugly look at the Princess as she went to comfort Miss Honey, but the Princess was at the throne before her.

"Oh, I am abominable!" she cried. "I am too horrid to live! It wasn't kind of me, *chérie*, and I love you for standing up for your mother. There's no one to do as much for me, when *I'm* down and out—no one!" Sorrow swept over her flexible face like a veil, and seizing Miss Honey in her strong, nervous arms, she wept on her shoulder.

Caroline, worn with the strain of the day, wept too, and even the General, abandoned in the great chair, burst into a tiny warning wail.

Quick as thought the Princess was upon him, and had raised him against her cheek.

"Hush, hush, don't cry—don't cry, little thing," she whispered, and sank into one of the high carved chairs with him.

"No, no, I'll hold him," she protested, as Delia entered, her arms out. "I'm going to sing to him. May I? He's sleepy."

Delia nodded indulgently. "For half an hour," she said, as one allowing a great privilege, "and then we must go."

"What do you sing to him?" the Princess questioned humbly.

"I generally sing 'Flow Gently Sweet Afton,'" the nurse answered. "Do you know it?"

"I think so," and the Princess began a sort of glorified humming, like a great drowsy bee, all resonant and tremulous.

Flow gently, sweet Afton, among thy green braes,
Flow gently, I'll sing thee a song in thy praise.

Soft the great voice was, soft and widely flowing: to Caroline, who had retreated to the further end of the music-room, so that Delia should not see her tears, it seemed as if Delia herself, a wonderful new Delia, were singing her, a baby again, to sleep. She felt soothed, cradled, protected by that lapping sea of melody that drifted her off her moorings, out of the room....

Vaguely she saw Miss Honey, relaxed on the red throne, smile in her sleep, one arm falling over the broad seat. Was it in her dream that some one in a blue and white apron—not Delia, for Delia was singing—leaned back slowly in the long basket-chair and closed her tired eyes? Who was it that held the General close in her arms, and smiled as he patted her cheek at the familiar song, and mumbled her fingers with happy, cooing noises?

My Mary's asleep by thy murmuring stream,
Flow gently, sweet Afton, disturb not her dream!

The General's head was growing heavy, but he smiled confidingly into the dark eyes above him and stretched himself out in full-fed, drowsy content.

One hand slipped through the lace under his cheek and rested on the singer's soft breast. She started like a frightened woman, and her voice broke.

Down in the hall the butler and the maid sat on the lower stair.

"Ain't it grand?" she whispered, and Haddock nodded dreamily.

"Mother used to sing us that in the old country," he said. "There was Tom and 'Enry an' me—Lord, Lord!"

The General was asleep. Sometimes a tiny frown drew his eyebrows together. Sometimes he clenched and uncurled his warm hands. Sometimes he sucked softly at nothing with moist, reminiscent lips. But on and on, over and over, rose and fell the quaint old song.

My Mary's asleep by thy murmuring stream!

It flooded the hushed house, it spread a net of dreams about the listening people there and coaxed them back to childhood and a child's protected sleep. It seemed a song that could not stop, that must return on its simple refrain so long as there were arms to encircle and breasts to lean upon.

Two men came softly up a smaller stair than the grand entrance flight, and paused in amazement at sight of Caroline stretched full length across the threshold. The older and smaller of the men had in fact stepped on her, and confused and half awake, she listened to his apologies.

"Sh! sh!" he whispered excitedly, "not a vordt! not a vordt! Mein Gott! but it is marvelous! My friend, vot is this?"

He peeped behind the drawn curtains and withdrew a face of wonder.

"It is nodding but children—and they sleep!" he hissed. "Oh, but listen, listen! And I offered her fifteen hundert dollars for two hours only of that!"

The other man peeped behind the curtains in his turn, and seizing Caroline by the arm tiptoed with her to a farther room.

"What—who—what is the meaning of this?" he whispered hoarsely. "That child—where——"

Caroline rubbed her eyes. The golden voice rose and fell around her.

"General—Delia," she muttered, and stumbled against him. He lifted her limp little body and laid it gently on a leather sofa.

"Another time," he said softly to the other man, "I—we cannot talk with you now. Will you excuse us?"

The man looked longingly at the curtains.

"She will never do more well than that. Never!" he hissed. "Oh, my friend, hear it grow soft! Yes, yes, I am going."

It seemed to Caroline that in a dream some one with a red face and glasses askew shook her by the shoulder and said to her sternly, "Sh! sh! Listen to me. To-day you hear a great artist—hey? Vill you forget it? I must go because they do not vant me, but you vill stay and listen. There is here no such voice. Velvet! Honey! Sh! sh!" and he went the way of dreams.

The man who stayed looked long through the curtains.

As a swing droops slow and slower, as the ripples fade from a stone thrown in the stream, the song of the Princess softened and crooned and hushed. Now it was a rich breath, a resonant thread.

Flow gently, sweet Afton——

The man stepped across the room and sank below the General at her feet. With her finger on her lips she turned her eyes to his and looked deep into them. He caught his breath with a sob, and wrapping his arm about her as he knelt, hid his face on her lap, against the General. She laid her hand on his head, across the warm little body, and patted it tenderly. Around them lay the sleepers; the General's soft breath was in their ears. The man lifted his head and looked adoringly at the Princess; her hand caressed his cheek, but her eyes looked beyond him into the future.



AMERICAN IMPRESSIONS

BY
ELLEN TERRY

ILLUSTRATED WITH PHOTOGRAPHS AND WITH A DRAWING BY ERIC PAPE

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IT is only human to make comparisons between American and English institutions, although they are likely to turn out as odious as the proverb says! The first institution in America that distressed me was the steam heat. It is far more manageable now than it was, both in hotels and theatres, because there are more individual heaters. But how I suffered from it at first I cannot describe. I used to feel dreadfully ill, and when we could not turn the heat off at the theatre, the play always went badly. My voice was affected, too. At Toledo, once, it nearly went altogether. Then the next night, after a good fight, we got the theatre cool, and the difference to the play was extraordinary. I was in my best form, feeling well and jolly!

If I did not like steam heat, I loved the ice which is such a feature at American meals. Everything is served on ice. I took kindly to their dishes—their cookery, at its best, is better than the French—and I sadly missed planked shad, terrapin, and the oyster—at its best and at its cheapest in America—when I returned to England.

TRAVELLING IN AMERICA

The American hotels seemed luxurious even in 1883; but it only takes ten years there for an hotel to be quite done, to become old-fashioned and useless as a rusty nail. Hotel life in America is now the perfection of comfort. Hotels as good as the Savoy, the Ritz, the Carlton, and Claridge's can be counted by the dozen in New York, and are to be found in all the principal cities.

I liked the travelling, but then we travelled in a very princely fashion. The Lyceum Company and baggage occupied eight cars, and Henry's private parlour-car was lovely. The only thing that we found was better understood in England, so far as railway travelling is concerned, was *privacy*. You may have a *private* car, but all the conductors on the train, and there is one to each car, can walk through it. So can any official, baggage-man, or newsboy who has the mind!

There were, of course, people ready to say that the Americans did not like Henry Irving as an actor, and that they only accepted him as a manager—that he triumphed in New York, as he had done in London, through his lavish spectacular effects. This is all moonshine. Henry made his first appearance in "The Bells," his second in "Charles I," his third in "Louis XI." By that time he had conquered, and without the aid of anything at all notable in the mounting of the plays. It was not until we did "The Merchant of Venice" that he gave the Americans anything of a "production."

My first appearance in America in Shakespeare was as Portia, and I could not help feeling pleased by my success. A few weeks later I played Ophelia at Philadelphia. It is in Shakespeare that I have been best liked in America, and I consider that Beatrice was the part about which they were most enthusiastic.

During our first tour we visited in succession New York, Philadelphia, Boston, Baltimore, Brooklyn, Chicago, Cincinnati, St. Louis, Detroit, and Toronto. To most of these places we paid return visits. I think it was in Chicago that a reporter approached Henry Irving with the question: "To what do you attribute your success, Mr. Irving?"

"To my acting," was the simple reply.



HENRY IRVING AS CARDINAL WOLSEY IN "HENRY VIII."

FROM A DRAWING BY ERIC PAPE

We never had poor houses except in Baltimore and St. Louis. Our journey to Baltimore was made in a blizzard. They were clearing the snow before us all the way from New Jersey, and we took forty-two hours to reach Baltimore. The bells of trains before us and behind us sounded very alarming. We opened in Baltimore on Christmas Day. The audience was wretchedly small, but the poor things who were there had left their warm firesides to drive or tramp through the slush of melting snow, and each one was worth a hundred on an ordinary night.

At the hotel I put up holly and mistletoe, and produced from my trunks a real Christmas pudding that my mother had made. We had it for supper, and it was very good.

BURNED HARE SOUP AND CAMPHOR PUDDING IN PITTSBURG

It never does to repeat an experiment. Next year at Pittsburg my little son Teddy brought me out another pudding from England. For once we were in an uncomfortable hotel, and the Christmas dinner was deplorable. It began with *burned hare soup*.

"It seems to me," said Henry, "that we aren't going to get anything to eat, but we'll make up for it by drinking!"

He had brought his own wine out with him from England, and the company took him at his word and *did* make up for it.

"Never mind!" I said, as the soup was followed by worse and worse. "There's my pudding!"

It came on blazing and looked superb. Henry tasted a mouthful.

"Very odd," he said, "but I think this is a camphor pudding."

He said it so politely—as if he might easily be mistaken. My maid in England had packed the pudding with my furs! It simply reeked of camphor.

So we had to dine on Henry's wine and L. F. Austin's wit. This dear, brilliant man, now dead, acted for many years as Henry's secretary, and one of his gifts was the happy knack of hitting off people's peculiarities in rhyme. This dreadful Christmas dinner at Pittsburg was enlivened by a collection of such rhymes, which Austin called a "Lyceum Christmas Play."

Everyone roared with laughter until it came to the verse of which he was the victim, when suddenly he found the fun rather laboured.

The first verse was spoken by Loveday, who announces that the "Governor" has a new play which is "*wonderful*"—a great word of Loveday's.

George Alexander replies:

But I say, Loveday, have I got a part in it,
That I can wear a cloak in and look smart in it?
Not that I care a fig for gaudy show, dear boy—
But juveniles must *look* well, don't you know, dear
boy;
And shall I lordly hall and tuns of claret own?
And may I murmur love in dulcet baritone?
Tell me, at least, this simple fact of it—
Can I beat Terriss hollow in one act of it?^[1]

Norman Forbes:

Pooh for Wenman's^[2] bass! Why should he make a
boast of it?
If he has a voice, I have got the ghost of it!
When I pitch it low, you may say how weak it is,
When I pitch it high, heavens! what a squeak it is!
But I never mind; for what does it signify?
See my graceful hands, they're the things that
dignify:
All the rest is froth, and egotism's dizziness—
Have I not played with Phelps?
(*To Wenman*) I'll teach you all the business!

T. Mead (of whom much has already been written in these pages):

What's this about a voice? Surely you forget it, or
Wilfully conceal that *I* have no competitor!
I do not know the play, or even what the title is,
But safe to make success a charnel house recital is!
So please to bear in mind, if I am not to fail in it
That Hamlet's father's ghost must rob the Lyons Mail
in it!

No! that's not correct! But you may spare your
charity—
A good sepulchral groan's the thing for popularity!



ELLEN TERRY

FROM A PAINTING, NEVER BEFORE REPRODUCED, BY GEORGE FREDERICK WATTS

H. Howe (the "agricultural" actor, as Henry called him):

Boys take my advice, the stage is not the question
But whether at three score you'll all have my
digestion,
Why yearn for plays, to pose as Brutuses or Catos in,

When you may get a garden to grow the best
potatoes in?
You see that at my age by Nature's shocks unharmed
I am!
Tho' if I sneeze but thrice, good heavens, how
alarmed I am!
But act your parts like men, and tho' you all great
sinners are,
You're sure to act like men wherever Irving's dinners
are!

J. H. Allen (our prompter):

Whatever be the play, *I* must have a hand in it,
For won't I teach the supers how to stalk and stand in
it?
Tho' that blessed Shakespeare never gives a ray to
them,
I explain the text, and then it's clear as day to them!
Plain as A, B, C is a plot historical.
When *I* overhaul allusions allegorical!
Shakespeare's not so bad; he'd have more pounds and
pence in him,
If actors stood aside, and let me show the sense in
him![\[3\]](#)



ELLEN TERRY

**WITH HER FOX-TERRIERS, DUMMY AND FUSSIE; FROM A PHOTOGRAPH
TAKEN IN 1889**

Louis Austin's little "Lyceum Play" was presented to me with a silver water-jug, a souvenir from the company, and ended up with the following pretty lines spoken by Katie Brown, a clever little girl who played all the small pages' parts at this time:

Although I'm but a little page,
Who waits for Portia's kind behest,
Mine is the part upon this stage
To tell the plot you have not guessed.

Dear lady, oft in Belmont's hall
Whose mistress is so sweet and fair,
Your humble slaves would gladly fall
Upon their knees, and praise you there.

To offer you this little gift,
Dear Portia, now we crave your leave.
And let it have the grace to lift
Our hearts to yours this Christmas eve.

And so we pray that you may live
Thro' many, many, happy years,
And feel what you so often give,
The joy that is akin to tears!

How nice of Louis Austin! It quite made up for my mortification over the
camphor pudding!



MISS ROSA CORDER

FROM THE PAINTING BY JAMES McNEILL WHISTLER

Reproduced from an approved print in the possession of the Lenox Library.

THE BEST OPHELIA OF MY LIFE

When I played Ophelia for the first time in Chicago, I played the part better than I had ever played it before, and I don't believe I ever played it so well again. *Why*, it is almost impossible to say. I had heard a good deal of the crime of Chicago, that the people were a rough, murderous, sand-bagging crew. I ran on to the stage in the mad scene, and never have I felt such sympathy. This frail wraith, this poor demented thing could hold them in the

hollow of her hand! The audience seemed to me like wine that I could drink, or spill upon the ground.... It was splendid! "How long can I hold them?" I thought. "For ever!" Then I laughed. That was the best Ophelia laugh of my life—my life that is such a perfect kaleidoscope, with the people and the places turning round and round.

At Chicago I made my first speech. The Haverley Theatre, at which we first appeared in 1884, was altered and rechristened the "Columbia" in 1885. I was called upon for a speech after the special performance in honour of the occasion, consisting of scenes from "Charles I.," "Louis XI.," "The Merchant of Venice," and "The Bells," had come to an end. I think it must be the shortest speech on record:

"Ladies and Gentlemen, I have been asked to christen your beautiful theatre. 'Hail Columbia!'"

"LONESOME BROOKLYN"

When we acted in Brooklyn, we used to stay in New York and drive over that wonderful bridge every night. There were no trolley cars on it then. I shall never forget how it looked in winter, with the snow and ice on it—a gigantic trellis of dazzling white, as incredible as a dream. The old stone bridges were works of art—this bridge, woven of iron and steel for a length of over five hundred yards, and hung high in the air over the water so that great ships can pass beneath it, is the work of science. It is like the work of some impersonal power.

It was during our week at Brooklyn in 1885 that Henry was ill, too ill to act, for four nights. Alexander played Benedick and got through it wonderfully well. Then old Mr. Mead did (*did* is the word) Shylock. There was no intention behind his words or what he did.

I had such a funny batch of letters on my birthday that year: "Dear, sweet Miss Terry, etc., etc. Will you give me a piano?" etc., etc.; another: "Dear Ellen. Come to Jesus. Mary"; another, a lovely letter of thanks from a poor woman in the most ghastly distress; and lastly an offer of a two *years'*



SIR HENRY IRVING

FROM A SNAP-SHOT TAKEN IN THE UNITED STATES

engagement in America. There was a simple coming-in for one woman acting at Brooklyn on her birthday!

Brooklyn is as sure a laugh in New York as the mother-in-law in a London music-hall. "All cities begin by being lonesome," a comedian explained, "and Brooklyn has never got over it."

My only complaint against Brooklyn was that they would not take Fussie in at the hotel there. Fussie was still my dog during the early American tours. Later on he became Henry's. He had his affections alienated by a course of chops, tomatoes, strawberries, "ladies' fingers" soaked in champagne, and a beautiful fur rug of his very own presented by the Baroness Burdett-Coutts.

FUSSIE

How did I come by Fussie? I went to Newmarket with Rosa Corder, whom Whistler painted. She was one of those plain-beautiful women who are so far more attractive than some of the pretty ones. She had wonderful hair,—like a fair, pale veil,—a white, waxen face, and a very good figure; and she wore very odd clothes. She had a studio in Southampton Row, and another at Newmarket, where she went to paint horses. I went to Cambridge once and drove back with her across the heath to her studio.

"How wonderfully different are the expressions on terriers' faces," I said to her, looking at a painting of hers of a fox-terrier pup. "That's the only sort of

dog I should like to have."

"That one belonged to Fred Archer," Rosa Corder said. "I daresay he could get you one like it."

We went out to find Archer. Curiously enough, I had known the famous jockey at Harpenden, when he was a little boy, and I believe used to come round with vegetables.

"I'll send you a dog, Miss Terry, that won't be any trouble. He's got a very good head, a first-rate tail, stuck in splendidly, but his legs are too long. He'd follow you if you went to America."



MISS ELLEN TERRY

Prophetic words! On one of our departures for America, Fussie was left behind by mistake at Southampton. He found his way back from there to his own theatre in the Strand, London.

FROM A SNAP-SHOT TAKEN IN THE UNITED STATES

Fred Archer sent him originally to the stage door at the Lyceum. The man who brought him out to my house in Earl's Court said:

"I'm afraid he gives tongue. Miss, he don't like music anyway. There was a band at the bottom of your road, and he started hollering."

FUSSIE AND "CHARLES I."

We were at luncheon when Fussie made his *début* into the family circle, and I very quickly saw that his *stomach* was his fault. He had a great dislike to "Charles I.," we could never make out why. Perhaps it was because Henry

wore armour in one act—and Fussie may have barked his shins against it. Perhaps it was the firing off of big guns. But more probably it was because the play once got him into trouble. As a rule, Fussie had the most wonderful sense of the stage, and at rehearsal would skirt the edge of it, but never cross it. But at Brooklyn one night when we were playing "Charles I.," the last act, and that most pathetic part of it where Charles is taking a last farewell of his wife and children, Fussie, perhaps excited by his run over the bridge from New York, suddenly bounded on to the stage! The good children who were playing Princess Mary and Prince Henry didn't even smile; the audience remained solemn; but Henry and I nearly went into hysterics. Fussie knew directly that he had done wrong. He lay down on his stomach, then rolled over on his back, a whimpering apology, while carpenters kept on whistling and calling to him from the wings. The children took him up to the window at the back of the scene, and he stayed there cowering between them until the end of the play.

America seems to have been always fatal to Fussie. Another time when Henry and I were playing in some charity performance in which John Drew and Maude Adams were also acting, he disgraced himself again. Henry having "done his bit" and put on hat and coat to leave the theatre, Fussie thought the end of the performance must have come; the stage had no further sanctity for him, and he ran across it to the stage door barking! John Drew and Maude Adams were playing "A Pair of Lunatics." Maude Adams, sitting looking into the fire, did not see Fussie, but was amazed to hear John Drew departing madly from the text:

"Is this a dog I see before me,
His tail towards my hand?
Come, let me clutch thee."

She began to think he had really gone mad!



From the collection of Robert Coster

AUGUSTIN DALY AND HIS COMPANY OF PLAYERS

ADA REHAN, MRS. GILBERT, AND JOHN DREW FORM THE GROUP DIRECTLY FACING DALY

When Fussie first came, Charlie was still alive, and I have often gone into Henry's dressing-room and seen the two dogs curled up in both the available chairs, Henry *standing* while he made up, rather than disturb them!

When Charlie died, Fussie had Henry's idolatry all to himself. I have caught them often sitting quietly opposite each other at Grafton Street, just adoring each other. Occasionally Fussie would thump his tail on the ground to express his pleasure.

IRVING'S STRATEGY

Wherever we went in America, the hotel people wanted to get rid of the dog. In the paper they had it that Miss Terry asserted that Fussie was a little terrier, while the hotel people regarded him as a pointer; and funny caricatures were drawn of a very big me with a very tiny dog, and a very tiny me with a dog the size of an elephant. Henry often walked straight out

of an hotel where an objection was made to Fussie. If he wanted to stay, he went in for strategy. At Detroit the manager of the hotel said that dogs were against the rules. Being very tired, Henry let Fussie go to the stables for the night, and sent Walter to look after him. The next morning he sent for the manager.

"Yours is a very old-fashioned hotel, isn't it?"

"Yes, sir, very old and ancient."

"Got a good chef? I didn't think much of the supper last night—but still—the beds are comfortable enough—I am afraid you don't like animals?"

"Yes, sir, in their proper place."

"It's a pity," said Henry meditatively, "because you happen to be overrun by rats!"

"Sir, you must have made a mistake. Such a thing couldn't——"

"Well, I couldn't pass another night here without my dog," Henry interrupted. "But there are, I suppose, other hotels?"

"If it would be any comfort to you to have your dog with you, sir, do, by all means, but I assure you that he'll catch no rat here."

"I'll be on the safe side," said Henry calmly.

And so it was settled. That very night Fussie supped off, not rats, but terrapin and other delicacies in Henry's private sitting room.



Photograph by Sarony

AUGUSTIN DALY

It was the 1888 tour, the great blizzard year, that Fussie was left behind by mistake at Southampton. He jumped out at the station, just outside where they stopped to collect tickets. After this long separation, Henry naturally thought that the dog would go nearly mad with joy when he saw him again. He described to me the meeting in a letter:

"My dear Fussie gave me a terrible shock on Sunday night. When we got in, J——, H——, and I dined at the C  f   Royale. I told Walter to bring Fussie there. He did, and Fussie burst into the room while the waiter was cutting some mutton, when, what d'ye think—one bound at me—another instantaneous bound at the mutton, and from the mutton nothing would get him until he'd got his plateful.

"Oh what a surprise it was indeed! He never now will leave my side, my legs, or my presence, but I cannot but think, alas, of that seductive piece of mutton!"

THE DEATH OF FUSSIE

Poor Fussie! He met his death through the same weakness. It was at Manchester, I think. A carpenter had thrown down his coat with a ham sandwich in the pocket, over an open trap on the stage. Fussie, nosing and nudging after the sandwich, fell through and was killed instantly. When they brought up the dog after the performance, every man took his hat off. Henry was not told until the end of the play. He took it so very quietly that I was frightened, and said to his son Laurence, who was on that tour:

"Do let's go to his hotel and see how he is."

We drove there and found him sitting, eating his supper, with the poor dead Fussie, who would never eat supper any more, curled up in his rug on the sofa. Henry was talking to the dog exactly as if it were alive. The next day he took Fussie back in the train with him to London, covered with a coat. He is buried in the dog's cemetery, Hyde Park.

His death made an enormous difference to Henry. Fussie was his constant companion. When he died, Henry was really alone. He never spoke of what he felt about it, but it was easy to know.

We used to get hints how to get this and that from watching Fussie. His look, his way of walking! He *sang*, whispered eloquently and low—then barked suddenly, and whispered again. Such a lesson in the law of contrasts!

The first time that Henry went to the Lyceum after Fussie's death, every one was anxious and distressed, knowing how he would miss the dog in his dressing-room. Then an odd thing happened. The wardrobe cat, who had never been near the room in Fussie's life-time, came down and sat on Fussie's cushion! No one knew how the "Governor" would take it. But when Walter was sent out to buy some meat for it, we saw that Henry was not going to resent it! From that night onwards the cat always sat, night

after night, in the same place, and Henry liked its companionship. In 1902, when he left the theatre for good, he wrote to me:

"The place is now given up to the rats—all light cut off, and only Barry (the stage door-keeper) and a foreman left. Everything of mine I've moved away, including the Cat!"



Photograph by Sarony

JOHN DREW

AS PETRUCHIO IN "THE TAMING OF THE SHREW"

THE OLD DALY COMPANY

The Daly players were a revelation to me of the pitch of excellence which American acting had reached. My first night at Daly's was a night of enchantment. I wrote to Mr. Daly and said: "You've got a girl in your company who is the most lovely, humorous darling I have ever seen on the stage." It was Ada Rehan! Now, of course I didn't "discover" her or any rubbish of that kind; the audience were already mad about her; but I did know her for what she was, even in that brilliant "all-star" company and before she had played in the classics and got enduring fame. The audacious, superb, quaint Irish creature! Never have I seen such splendid high comedy. Then the charm of her voice,—a little like Ethel Barrymore's when Miss Ethel is speaking very nicely,—her smiles, and dimples, and provocative, inviting *coquetterie*! Her Rosalind, her Country Wife, her Helena, her Railroad of Love, and above all, her Katharine in "The Taming of the Shrew!" I can only ejaculate. Directly she came on I knew how she was going to do the part. She had such shy, demure fun—she understood, like all great comedians, that you must not pretend to be serious so sincerely that no one in the audience sees through it.



Photograph by Sarony

ADA REHAN

AS KATHARINE IN "THE TAMING OF THE SHREW"

As a woman off the stage Ada Rehan was even more wonderful than as a shrew on. She had a touch of dignity, of nobility, of beauty, rather like Eleonora Duse's. The mouth and the formation of the eye were lovely. Her guiltlessness of make-up off the stage was so attractive! She used to come in to a supper with a lovely shining face which scorned a powder-puff. The only thing one missed was the red hair which seemed such a part of her on the stage.

Here is a dear letter from the dear, written in 1890:

"My dear Miss Terry:

"Of course, the first thing I was to do when I reached Paris was to write and thank you for your lovely red feathers. One week is gone. To-day it rains and I am compelled to stay at home, and at last I write. I thought you had forgotten me and my feathers long ago. So imagine my delight when they came at the very end. I liked it so. It seemed as if I lived all the time in your mind; and they came as a good-bye.

"I saw but little of you, but in that little I found no change. That was gratifying to me, for I am over-sensitive, and would never trouble you if you had forgotten me. How I shall prize those feathers—Henry Irving's presented by Ellen Terry to me for my Rosalind Cap. I shall wear them once and then put them by as treasures. Thank you so much for the pretty words you wrote me about 'As You Like It.' I was hardly fit on that matinée. The great excitement I went through during the London season almost killed me. I am going to try and rest, but I fear my nerves and heart won't let me.

"You must try and read between the lines all I feel. I am sure you can if anyone ever did; but I cannot put into words my admiration for you—and that comes from deep down in my heart. Good-bye, with all good wishes for your health and success.

"I remain,

"Yours most affectionately,
"Ada Rehan"

I wish I could just once have played with Ada Rehan. When Mr. Tree could not persuade Mrs. Kendal to come and play in "The Merry Wives of Windsor" a second time, I hoped that Ada Rehan would come and rollick with me as Mrs. Ford,—but it was not to be.



Mr. Daly himself interested me greatly. He was an excellent manager, a man in a million. But he had no artistic sense. The productions of Shakespeare at Daly's were really bad from the pictorial point of view. But what pace and "ensemble" he got from his company!

May Irwin was the low comedian who played the servants' parts in Daly's comedies from the

From the collection F. H. Meserve

HELENA MODJESKA

the stage her geniality distinguished her like a halo. It is a rare quality on the stage, yet without it the comedian has up-hill work. Generous May Irwin! Lucky those who have her warm friendship and jolly, kind companionship!

German. I might describe her—except that she was far more genial—as a kind of female Rutland Barrington. On and off

THE JOHN DREW FAMILY

John Drew, the famous son of a famous mother, was another Daly player whom I loved. With what loyalty he supported Ada Rehan! He never played for his own hand, but for the good of the piece. His mother, Mrs. John Drew, had the same quiet methods as Mrs. Alfred Wigan. Everything that she did told. I saw Mrs. Drew play Mrs. Malaprop, and it was a lesson to people who overact. Her daughter, Georgie Drew, Ethel Barrymore's mother, was also a charming actress. Maurice Barrymore was a brilliantly clever actor. Little Ethel, as I still call her, though she is a big "star," is carrying on the family traditions. She ought to play Lady Teazle. She may take it from me that she would make a success in it.

Modjeska, who, though she is a Polish actress, is associated with the American stage, made a great impression on me. She was exquisite in many parts, but in none finer than in "Adrienne Lecouvreur." Her last act electrified me. I have never seen it better acted, although I have seen all the great ones do it since. Her Marie Stuart, too, was a beautiful and distinguished performance. Her Juliet had lovely moments, but I did not so much care for that, and her broken English interfered with the verse of Shakespeare. Some years ago I met Modjeska and she greeted me so warmly and sweetly, although she was very ill.

During my more recent tours in America, Maude Adams is the actress of whom I have seen most, and "to see her is to love her!" In "The Little Minister" and in "Quality Street" I think she is at her best, but above all parts she herself is most adorable. She is just worshipped in America, and

has an extraordinary effect—an *educational* effect—upon all American girlhood.

MARY ANDERSON

I never saw Mary Anderson act. That seems a strange admission, but during her wonderful reign at the Lyceum Theatre, which she rented from Henry Irving, I was in America, and another time when I might have seen her act, I was very ill and ordered abroad. I have, however, had the great pleasure of meeting her and she has done me many little kindnesses. Hearing her praises sung on all sides, and her beauties spoken of everywhere, I was particularly struck by her modest evasion of publicity *off* the stage. I personally only knew her as a most beautiful woman—as kind as beautiful—constantly working for her religion—*always* kind, a good daughter, a good wife, a good woman.



From the collection of Robert Coster

MARY ANDERSON

She cheered me before I sailed for America by saying that her people would like me.

"Since seeing you in Portia and Letitia," she wrote, "I am convinced you will take America by storm." Certainly *she* took *England* by storm! But she abandoned her triumphs almost as soon as they were gained. They never made her happy, she once told me, and I could understand her better than most, since I had had success too, and knew that it did not mean happiness.

Henry and I were so fortunate as to gain the friendship and approval of Dr. Horace Howard Furness, perhaps the finest Shakespearean scholar in

America, and editor of the Variorum Shakespeare, which Henry considered the best of all editions—"the one which counts." It was in Boston, I think, that I disgraced myself at one of Dr. Furness' lectures. He was discussing "As You Like It" and Rosalind, and proving with much elaboration that English in Shakespeare's time was pronounced like a broad country dialect, and that Rosalind spoke Warwickshire! A little girl who was sitting in the front of me had lent me her copy of the play a moment before, and now, absorbed in Dr. Furness' argument, I forgot the book wasn't mine and began scrawling controversial notes in it with my very thick and blotty fountain pen.

"Give me back my book! Give me my book!" cried the little girl. "How dare you write in my book!" she cried with rage.

Her mother tried to hush her up: "It's Miss Ellen Terry."

"I don't care! She's spoilt my nice book!"

I am glad to say that when the little girl understood, she forgave me. Still, it was dreadful of me and I did feel ashamed at the time.



From the collection of F. H. Meserve

JOSEPH JEFFERSON AS RIP VAN WINKLE

JOSEPH JEFFERSON

In November, 1901, I wrote in my diary: "Philadelphia. Supper at Henry's. Jefferson there, sweeter and more interesting than ever—and younger."

Dear Joe Jefferson—actor, painter, courteous gentleman, *profound* student of Shakespeare! When the Bacon-Shakespeare controversy was raging in America (it really *did* rage there!) Jefferson wrote the most delicious

doggerel about it. He ridiculed, and his ridicule killed the Bacon enthusiasts all the more dead because it was barbed with erudition.

He said that when I first came into the box to see him as "Rip," he thought I did not like him, because I fidgetted and rustled and moved my place, as is my wicked way. "But I'll get her, and I'll hold her," he said to himself. I was held indeed—enthralled!

THE NIGHT OF THE GREAT BLIZZARD

Our first American tours were in 1883-1884; the third was in 1887-88, the year of the great blizzard. We were playing in New York when the storm began, and Henry came to fetch us at half-past ten in the morning. His hotel was near the theatre where we were to play at night. He said the weather was stormy, and we had better make for his hotel while there was time. The German actor, Ludwig Barnay, was to open in New York that night, but the blizzard affected his nerves to such an extent that he did not appear at all and returned to Germany directly the weather improved!

Most of the theatres closed for three days, but we remained open, although there was a famine in the town and the streets were impassable. The cold was intense. Henry sent Walter out to buy some violets for Barnay, and when he brought them in to the dressing-room—he had only carried them a few yards—they were frozen so hard that they could have been chipped with a hammer.

We rang up on "Faust" three-quarters of an hour late. This was not bad, considering all things. Although the house was sold out, there was hardly any audience, and only a harp and two violins in the orchestra. But discipline was so strong in the Lyceum Company that every member of it reached the theatre by eight o'clock, although some of them had had to walk from Brooklyn Bridge. The Mayor of New York and his daughter managed to reach their box somehow. Then we thought it was time to begin. A few members of Daly's company, including John Drew, came in, and a few friends. It was the oddest, sparsest audience! But the enthusiasm was terrific.

Five years went by before we visited America again. Five years in a country of rapid changes is a long time, long enough for friends to forget. But they didn't forget. This time we made new friends, too, in the Far West. We went to San Francisco, among other places. We attended part of a performance at the Chinese theatre. Oh, those rows of impenetrable faces gazing at the stage with their long, shining, inexpressive eyes. What a look of the everlasting the Chinese have! "We have been before you—we shall be after you," they seem to say.

The chief incident of the fifth American tour was our production at Chicago of Laurence Irving's one-act play "Godefroi and Yolande." I regard that little play as an inspiration. By instinct the young author did everything right.

In 1900-1 I was ill and hated the parts I was playing in America. The Lyceum was not what it had been. Everything was changed.

In 1907—only the other day—I toured in America for the first time on my own account—playing modern plays for the first time. I made new friends and found my old ones still faithful.

But this tour was chiefly momentous to me because at Pittsburg I was married for the third time, and married to an American, Mr. James Usselman of Indiana, who acts under the name of James Carew.

FOOTNOTES:

[1] Alexander had just succeeded Terriss as our leading young man.

[2] Wenman had a rolling bass voice of which he was very proud. He was a valuable actor, yet somehow never interesting. Young Norman Forbes-Robertson played Sir Andrew Ague-Cheek with us on our second American tour.

[3] Once when Allen was rehearsing the supers in the Church Scene in "Much Ado about Nothing," we overheard him "show the sense" in Shakespeare like this:

"This 'Ero, let me tell you, is a perfect lady, a nice, innercent young thing, and when the feller she's engaged to calls 'er an 'approved wanton,' you naturally claps yer 'ands to yer swords. A wanton is a kind of—well, you know—she ain't what she ought to be!"

Allen would then proceed to read the part of Claudio: "... not to knit my soul to an approved wanton."

Seven or eight times the supers clapped their "'ands to their swords" without giving Allen satisfaction.

"No, no, no, that's not a bit like it, not a bit! If any of your sisters was 'ere and you 'eard me call 'er —— ——, would yer stand gapin' at me as if this was a bloomin' tea party?"

THE HERITAGE OF HAM

BY
LIEUTENANT HUGH M. KELLY, U. S. A.

ILLUSTRATIONS BY ARTHUR S. COVEY

"TO be hanged by the neck until dead." Well, no one was surprised. It was a foregone conclusion. Desertion to the enemy in time of war is one of the crimes military that cuts a man off from any chance for clemency. When he lifts his hands against his former comrades, he is as one already dead; that is, if he is caught. Private Wilson made the fatal mistake of being caught. The result was inevitable.

Though Private Wilson was expecting these very words, the sound of them, cutting the absolute silence, sent a cold contraction to his heart, and his thick lips drew themselves over his white teeth. Doubtless, if it had been possible, he would have turned pale; but since he was as black as the proverbial ace of spades, this was out of the question. Private Wilson belonged to the 19th Cavalry, which, as the initiated know, is a negro regiment.

There was no movement in the still line of the squadron when the fatal order was read, except a slight tremor, almost imperceptible, like the first faint rustling of leaves in the dead quiet that precedes a storm. Then from the right of "B" Troop there came a deep, indrawn breath, and the first sergeant's horse sprang sideways, in amazement, against that of the guidon. The animal was accustomed to being treated as tenderly as an infant, and now, for no fault whatever, he had received a rough pressure from his rider's knees, and a sharp dig from the spurs. The first sergeant was old Jeremiah Wilson, and the prisoner, standing to the "front and center" in the gathering dusk, and hearing his fate pronounced, was Jeremiah's son.

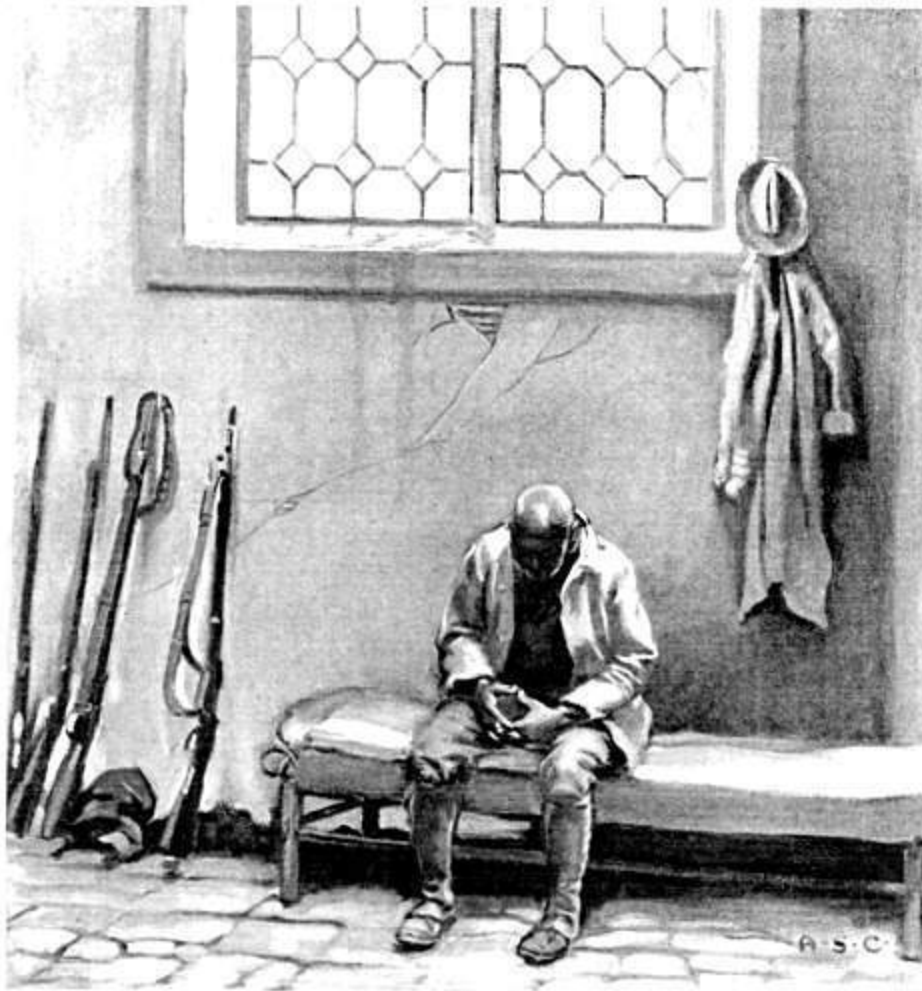
Sergeant Wilson was the one man in the squadron who had hoped against hope, and now that hope was dead. It died hard, and its death was recorded in that contraction of the knees and dig of the spurs. The guidon paid no attention. In his heart he believed that the sentence was just; but his pity went out to the old soldier on his right. His eyes, however, were fixed on Private Wilson, as were those of the rest of the squadron. The prisoner had acquired a new status. Here was a human being within two weeks of the solution of the greatest of all mysteries. He was worth looking at. The condemned man saw the interest shown in him, and, upheld by the feeling of self-importance inherent in the negro character, and always brought to the surface by applause or other manifestation of unusual attention, bore himself jauntily.

There was nothing of this to sustain his old father. He had participated in executions before. For him there were no visions of walking to death with a "firm tread," as the papers say, and "dying game" before the admiring eyes of soldiers and natives. With him it was steel-ribbed facts. He could hear the bang of the trap, the snap of the rope, and the quivering creak of the scaffold. And afterward, the lonely, hopeless years. Besides, the dishonor of it. What irony to parade with thirty years of service chevrons on his sleeves, and be pointed out as the father of a man hanged for deserting to the Filipinos!

The officers went to the front and center and the formation was over. Private Wilson departed to his closely guarded prison, and old Jeremiah took the troop to quarters and dismissed it. For the first time in twenty years he forgot to "open chamber and magazine," and publish the details for the next day. He wanted to be alone; away from the pitying eyes of the black men of the troop.

He had honestly believed that there were grounds for hope. He could not see now, in the face of the evidence, how the court could have given "Buff" the extreme penalty. He thought he had explained the circumstances so clearly. Hadn't he told the tribunal of the baleful influence of Mercedes Martinez? how this *mestiza*, had lured his boy to his downfall? He thought he had shown positively, by his testimony, that this woman had terrible "voodoo" powers and had *conjured* "Buff." Hadn't they apparently listened

with wonder while he related the charms that had been brought to bear on his son? the devils that had pursued him; the angels that had beckoned him away to the hills; the divine call he had received to be the George Washington of the Filipinos, and lead them to freedom?



"ALL DAY LONG OLD SERGEANT WILSON SAT IN THE CORNER OF THE SQUAD ROOM, CLASPING AND UNCLASPING HIS STRAINING HANDS"

The old soldier's pride in his son's physical perfection had always blinded him to the fact that the private was constantly in trouble, and was known as a "bad egg." If any one had told him that he was an object of pity because of his boy's worthlessness, he would have sputtered with indignation. He never realized that Buff escaped many a "bawling out" because the officers respected the father's long years of faithful service and did not want to humiliate him. He knew that his boy flew high occasionally, but that was because he was "jess nachally sprightly and full o' devilment." No one could deny that Private Wilson was one of the finest animals, physically, that ever wore the uniform; or that he had gained a wide reputation among

his comrades and the Filipinos on account of his terrible abilities in a hand-to-hand engagement. It was this very notoriety that had attracted the insurgents' attention to him, and led to his downfall.



"CABLE THE PRESIDENT! WHAT A JOKE!"

The little brown men stood in awe of this black demon, and wanted him on their side. His military training and reputation as a fighter would be of inestimable value. With their usual craft the insurgent officials went about to wean the soldier from his allegiance, and by the aid of the *mestiza* beauty, Mercedes Martinez, succeeded in their purpose. Between retreat and reveille of one July night, Private Wilson, led by visions of love and a brigadier-general's star, took to the hills. He longed to emulate the black

renegade, Fagan, but having none of Fagan's "foxiness" or ability, he was soon laid by the heels. Men of his own squadron took him. He demanded at first to be treated as befitted his rank; but none of his self-importance went with his black captors. "We'll brigidiale-gene'al yer, yer black scound'al," they remarked cheerfully, as they stripped off his tinsel stars. "Yer oughter be lynched."

They "Gen'al Wilsoned" him until he was sick of it and begged them to stop. Then, when they got back to the station, they popped him into the "jigger" along with privates charged with sassing the cook and other heinous offenses—a most humiliating experience for a brigadier general. Now he must die; and it came to him that it was as hard for a general officer to die as ever it was for a private.



"THE CIRCLE CLOSED IN AS THE SEA SURGES UP UPON THE LAND"

When his son had disappeared, old Sergeant Wilson had borne himself proudly, even in the face of rumors and insinuations. His boy would not desert. That he might have gone outside the lines to see some "lady friend" and been captured, yes; but no desertion. Even when tales of his lurid doings out in the province began to come in, old Jeremiah had not faltered in his faith. They were lies, all of them, or it was some other man. Nor when Buff was taken, with his patent-leather boots and tin stars, was the old man shaken; for the explanation that the private gave as to how he had been conjured was easier for Wilson to believe than that his "baby" had been false to his salt. But now the case was different. The disgrace of being parent to a "bobtailed" and condemned criminal was as the bitterness of death.

Up to now, for all his hard sixty years of life, he had carried himself like a lance. The whiteness of age in his woolly hair was not reflected in the iron spirit that upheld his wrinkled body. But the shame of those words spoken on parade had undone that, as suddenly as ashes crumble before the touch.

The days immediately following the publishing of Buff's sentence were nightmares of pain and humiliation. The old negro could hardly bring himself to go to headquarters at first sergeant's call. When he did go, he moved heavily, like a man asleep, and with his eyes fixed on the ground, that he might not meet the curious, pitying glances of his fellow soldiers.

After a week of this, old Jeremiah began to make mistakes at drill and mistakes in his troop papers; a thing hitherto unknown. Finally Lieutenant Perkins, the troop commander, lost his patience at some bull the old sergeant made, and called him down roughly, in the presence of the troop.

"Look here, Sergeant Wilson, I won't have any more of this. I'll bust you higher than a kite. I don't care if you've had fifty years of service. If you are mooning about that worthless boy of yours, you had better get over it. It's a damn good riddance, and you know it as well as I do. You'll have to take a brace or something will drop."

If Perkins had not been born several degrees north of Mason and Dixon's line he would have known better than that; as it was, he did not understand these negroes. He hadn't the faintest conception of how to handle these simple-hearted black men. He was not popular with them at any time, and this unheard-of piece of cruelty cut every tender-hearted trooper as deeply as if it had been aimed at him personally. This was the first break, and, as a consequence, something did drop, in a way that Perkins hardly expected.

The old sergeant made no reply to this reprimand, but simply stood at attention, though his black, weazened face worked and his lips trembled. It was the first time since he was a buck private that he had been spoken to in such a manner. For the first time, the yoke of discipline galled him. The bitterness of his inferiority and servitude was as wormwood within him. The harsh injustice of such treatment in this, his black hour, after years of faithful work, aroused in him a demon of resentment that made him long to strike back.

The occurrence startled him from his lethargy. He suddenly realized that his son's few remaining hours on earth were slipping by, and the boy had not been comforted. When this came to him, his self-reproach cut him sharply, and he resolved to make amends at once. He obtained permission from the officer of the day, and that evening, after retreat, went to see Buff.

He found the general plucked of his plumage. The prospect of death so close to him had narrowed the black boy's perspective. "The worldly hope men set their hearts upon" had turned ashes, and it were hard to find "a man who looked so wistfully on the day" as this doomed soldier. He wanted to live. Every atom of animal strength in his perfect body was charged with a desire to exist. This living, day after day, in close proximity to the grave had tended to a simplification of ideas. He had harked back to childhood, and when his father came, the prisoner, in his clanking irons, turned to him as a pickaninny might have done for protection from some bugaboo.

Old Jeremiah sat on the cot, while Buff occupied a small stool directly in front of him. They talked in low tones, of ordinary subjects, at first; then gradually went back through the years. The white-haired old negro and the young soldier both smiled as they recalled childish escapades of the latter, 'way back in "God's country." They lost themselves in reminiscence, and

forgot the present, until the wan moon, coming up, cast the shadows of the bars in the window across them. Then with a shiver they remembered.

Suddenly the private began to talk of his death, and as he spoke the terror of it grew on him. This man, known to have killed more than one American soldier and to be absolutely fearless in battle, quaked with abject fright. He would contend gladly in a contest against hopeless odds; but at the thought of his end creeping on him thus, slowly, inexorably his soul writhed in terror. He leaned forward and pressed his face on his father's knees.

"Oh, paw, ain't yer gwine ter help me? Won't you do somethin' fer me? Ah doan' want'er die yit. Tain't my time ter die. Ah nevah meant no hahm, paw. Ef they'll just give me one moah chanst, ah'll do anything they say. Honest, ah will. Gawd! paw, yer ain't gwine ter let 'em kill me, is yer?"

The soldier raised his head and looked into the sergeant's black face as though the latter were omnipotent, and only had to say the word to make him free. Then, with a shivering sigh, he laid his head on his father's knees again.

"Sh—sh," the old sergeant said softly, "Sh—sh"; and that was all he could do; but his wrinkled hand wandered tenderly over the prisoner's black, kinky hair, and tears rolled down his seamed face.

When Buff's panic wore off a bit, he was made to lie down, and Jeremiah, sitting beside him, crooned softly, as the old black mammies do to the little children. By the time call to quarters sounded, the condemned man's quiet breathing told that his earthly troubles were forgotten, for a time at least.

After this visit, Sergeant Wilson's apparent neglect of his duties became more pronounced than ever. The simplest orders and directions received from his troop's commander, he either forgot to perform or executed in such a bunglesome manner as to drive Lieutenant Perkins' irritable nature to the verge of hysteria. The latter, with his narrow sympathies, could make no allowance for the old negro's state of mind, and his "roasts" became more frequent and rougher with each repetition. The sergeant took it all with apparent resignation; but within him the troubled spirit was surging to and fro. How could he be expected to copy troop returns and muster rolls, with

that cry—"Gawd, paw, yer ain't gwine ter let 'em kill me, is yer?" ringing in his ears, hour by hour? It was the unfairness of it that aroused his resentment.

If the "ole Cap'n" were only here, all would be well. It was another cruel stroke that he should be absent on detached service just when Jeremiah needed him most.

Soldiers are a peculiar breed. They are more nearly like children in certain characteristics than any other class of men. They are so accustomed to being taken care of by their officers that they look to the latter for everything. When they find one who they know will stand up for them, and whom they can trust, their faith and confidence in him are absolute. They will follow him through fire and flood, and obey any order that he may give, in the blind belief that he knows what is best for them. This is true of white soldiers, and much more so of the darkies. This is the feeling that old Jeremiah and the men of the troop held for Captain North, whom they all called the "ole Cap'n."

In all the years these two had served together, since the battle of the Rosebud, when Lieutenant John T. North earned a medal of honor for "bringing in Private J. Wilson, 19th Cavalry, who was wounded, under a heavy fire from the Indians, at the imminent risk of his own life," the sergeant had never received a harsh word or a rebuke that he did not know was merited. But the sullen fury that this young prig aroused in him was unbearable. He felt that his inherent subordination to discipline was being torn to shreds.

This went on for three days. The discipline in the troop was growing ragged with startling rapidity, and Perkins felt it. The men, under the constant abuse heaped upon one whom they respected and pitied, were growing sullen and restive. Each of these soft-hearted troopers was gradually acquiring and nursing a personal grudge. They were forgetting their ideas of the fitness of things. They lost sight of everything except a clearly monumental piece of injustice.

Instead of meeting the issue fairly, and acknowledging the error of his position, Perkins became obstinately harsher and harsher. Not only was he

unnecessarily abusive to old Jeremiah, but his treatment of the whole troop was stern to a degree. Finally, on this third day, after a violent harangue in presence of the troop, he reduced the old negro from first sergeant to sergeant.

This was the second break, and when Perkins went that morning to inspect the old church that served as quarters, he found the men congregated in little groups in the squad room. There was not the usual loud-voiced chatter and laughter, but a sullen murmur that dropped to quick silence when he entered. This was bad. There was nothing specific, but he instinctively felt that he was losing his hold. He chafed to do something to "smash these niggers," but there was nothing to seize upon; so he swore at a man loudly for not having his clothing arranged properly, and ordered him to the guard-house. When the officer left, the same ominous murmur arose in the quarters.

It was evident, also, that outside influences were beginning to work—the sign of the Katapunan. There was hardly a man in "B" Troop but had his *querida* or sweetheart among the native women. As one of the black soldiers remarked: "Ef de gem'men Filypinos had 'a' been as complacent as de ladies, der nevah would 'a' bin no insurrecshun nohow." In their off hours the men, in their grim anger, confided their troubles to these dusky females, and the crafty women began to work upon the spirit of rebellion amongst the simple colored soldiers.

Why did they submit themselves to such a wretch as this *Teniente* Perkins? Why didn't they show him that they were men to be feared? Why did they allow that magnificent black comrade, Wilson, to be hanged, without making an effort to save him; when doing so would be the one thing that would make *Teniente* Perkins wild with rage? They were too cunning to urge open mutiny, but the seed they sowed gave growth to thought.

The darkies of "B" Troop were, first of all, soldiers. Subordination to the wills of their superiors was ingrained in their natures. They did not want to "buck," but it seemed as if the troop commander were trying to force them to rebel. They endeavored to forget the words of the Filipino women; but how could they, when all day long old Sergeant Wilson sat in the corner of the squad room, clasping and unclasping his straining hands; while on his

sleeves were the marks where his first sergeant's chevrons had been ripped off?

Two more days dragged by, and conditions in the troop grew worse. Perkins had heard some loud-mouthed private baying forth incendiary, not to say uncomplimentary remarks; had placed the troop on the straight ration, and suppressed the pass list. The men wandered about the quarters with a nervous, preoccupied air. They did not look at each other. They felt that if they gave rein to their feelings, something horrible would happen. They did not want it to happen; they wanted to be good soldiers. But this man was forcing them; forcing their hands. There is a limit to everything. What he had done was nothing if they had deserved it. It was the rank injustice that made them furious. They felt that they must have some escape for their feelings or they would burst through the bonds. Consequently, when Sergeant Potter broached his scheme, they hailed it with acclamation. A little conference was held in one end of the quarters, and after it was over Potter went to speak to old Jeremiah.

The ex-first sergeant had taken no part in the proceedings—in fact, he knew nothing of them. He had stayed in his corner, where he had sat for the last three days, with his eyes fixed on the floor, clasping and unclasping his hands. Sergeant Potter sat down on a bunk beside him and touched him on the shoulder. The old man started.

"Look a yere, sarge, yer oughter take a brace. Me and the res' of de boys is mighty sorry fer yer—we showly is. But yer mussent grieve so, cause yer showly gwineter be sick ef yer does."

"I'se obleeged to yer, Potter, you and de boys."

"Yes, suh, me an de boys feels mighty bad cause yer got busted, an'—an' about the other things. Ef yer'll 'scuse me, sarge, fer talkin' about it, we wondered ef dere wahnt somethin' yer could do fur—fur Buff."

Seeing the drawn look come back to the older man's face, Potter continued hurriedly——

"Thar now, sarge, I'se powerful sorry ef I'se hu't yoh feelin's, but me an' de boys thought ef yer'd telegraph to Division Headquarters, dey might do somethin'. 'Twon't do no hahm, nohow."

He then went on and talked in such a persuasive strain that, in spite of his common-sense, a gleam of hope began to burn in Jeremiah's eyes. Yes, it would cost something, but the boys had got together a little purse to defray the expenses of the telegram. This could be turned over to the Lieutenant, who would doubtless have no difficulty in getting the necessary permission from the squadron commander. The old man had been inactive and without hope for so long that the idea of any effort embracing a chance of success aroused in him a fierce energy. Once persuaded, he was impatient to be at work. If anything were to be done, it must be done at once. In the next day and the next, Private Wilson's sands would have run out.

It was apparently a good omen that Lieutenant Perkins should walk into the quarters while they were talking. Potter and Jeremiah went to him without loss of time and respectfully broached their request. The rest of the men stood around at attention, trying to look as though they were not listening, but straining their ears to catch every word. The officer heard them through, and then burst out impatiently——

"Well, of all the wild-cat schemes I ever heard of, that is the worst. The idea, Wilson, of a man of your length of service proposing such a thing. Hanging is too good for that son of yours, and you know it. I'll have nothing to do with this, and don't want to hear any more of it. That'll do now."

The silence that followed these words was silence indeed. Every man in the room caught them, and there was not one of the fifty present who did not feel a hot, uncomfortable throbbing at his temples.

In the old sergeant, the last connecting link of discipline was strained nearly to the breaking point. An angry gleam appeared in his eyes, and he said in a low, shaking voice:

"Ve'ly well, Suh, I shall go to de commandin' officah."

"All right, you can do as you please about that; but you will hear from it," and Perkins walked into the orderly room, where he proceeded to make life miserable for the subdued wretch who was acting first sergeant of the troop.

In a few minutes the commanding officer's orderly presented the commanding officer's compliments to Lieutenant Perkins, and informed him that the commanding officer would like to see him at the office.

Major Don Carlos Bliss, who was known throughout the service as a splendid soldier, did not think much of Perkins. He had had his eye on "B" Troop lately, and did not like the looks of things a little bit. He was a man of strong convictions and never hesitated to express them. He had known old Jeremiah Wilson for years, and when he learned of the latter's reduction, his opinion that Perkins was a fool was duly confirmed. He knew that much of the lieutenant's irritability was due to "nerves" acquired by a steady and conscientious course of drinking, with which procedure he had no patience.

Perkins, when he entered, found the sergeant standing at the desk.

"Mr. Perkins," the Major said shortly, "while Sergeant Wilson's request is a little out of the ordinary, I have no objection to his sending a telegram through this office. I can put no recommendation for clemency in it, however, for I consider the sentence a just one. When you get this message drafted the way Sergeant Wilson wants it, bring it to me, and let me see it, and," he concluded, looking Perkins steadily in the eye from under his bushy brows, "I advise you to do it at once."

The telegram went that afternoon. The plea for clemency was based, principally, upon Sergeant Wilson's years of faithful service, and the fact that his son was too young to appreciate the enormity of his crime.

Twenty-four hours passed, and there was no answer to the message. In that time Sergeant Jeremiah Wilson drank deeply of the bitter cup. He had aged suddenly in the last two weeks. Brooding in the hot, sticky, tropical days is not good for a man, especially when that man is no longer young. Shapes and shadows in the brain grow rapidly, and soon assume enormous proportions. Now the fluctuating tides of hope and despair gnawed steadily at the weakened foundation of his reason. The men of the troop were more

restless and ill at ease than ever. They had lost sight of the fact that the prisoner's guilt was as black as the mouth of the pit. All they saw was a darky soldier clinging tenaciously to his life, and the agony of that darky's father. Each sympathetic trooper had begotten a personal interest that ruled him completely. Besides, the mad hatred they bore Perkins and the hope of backsetting him led them on. Shapes and shadows were growing in their minds also.

Twenty-seven hours after the appeal was sent to Division Headquarters a signal corps private walked into "B" Troop's barracks and asked for Sergeant Jeremiah Wilson. When the latter was pointed out, the man handed him the familiar yellow envelope, with the crossed signal flags on the cover, and the burning torch. An instant quiet fell in the room, as Jeremiah received the crackling paper. He took it deliberately, and with trembling fingers fumbled for his glasses. Deliberately he put them on, and deliberately abstracted the message from the envelope, while the silent troopers watched him with fascinated gaze. He unfolded the paper and stared at it, then, taking off his glasses, wiped them and stared again; but it was no use, the mist dimmed the lenses.

"Heah, Potter, you read hit," he said finally with unsteady voice. "De light's too bad. Ah can't see."

Sergeant Potter took the telegram and spelled it out slowly:

MANILA, P. I., OCT. 2, 1900.
5.30 P.M.

SERGEANT J. WILSON,
TR, "B," 19TH CAV.

(Thro the Commanding Officer Guinibongbong, P. I.)

The Division Commander will take no action nor grant any delay in case of Private B. Wilson, Nineteenth Cavalry. Has no objection to laying of case before President provided cable is without expense to government. Upon receipt of cable through this office indicating that such action is contemplated order of suspension will be issued.

By order MAJOR GENERAL WHEATLEY,
CASTIN, ADJUTANT GENERAL.

So that was the end of it. The irony, the humor of giving permission to lay the case before the President; by cable, too, with cable-grams only costing

fifty cents a word! What magnanimity, what sarcasm, in sending such permission to a negro sergeant drawing twenty-six dollars a month! It would have been better for Jeremiah's peace of mind if that part had been left out. After it was over, and in the years to come, he would never be able to escape the thought that one thing more might have been done to save Buff's life—that once chance was left untried because of the lack of a few paltry dollars. Potter handed back the telegram slowly, and Jeremiah walked out into the darkness to fight his fight alone.

The sergeant stopped on the small stone porch and looked out into the town plaza. The clouds were low and dark in the late twilight, and as he stood, a few big drops fell, slowly increasing until there was a heavy down-pour. The rains had come, and soon the monotonous roar on the metal roofs, steady as the beating of a giant heart, told that the earth was receiving its semi-annual deluge.

Jeremiah stood in a small niche where he was partially exposed to the rain. When it and the water from a broken gutter, striking a balustrade beside him, splashed him with fine spray, he made no effort to move. Why should he care? He was only a worthless old nigger. A little wetness more or less would make no difference. A carelessness for all things earthly and pertaining to his own worn-out old body grew upon him. Then he suddenly ceased to think of himself. The sound of the rain in his ears seemed to be boring into his brain. Steady, inexorable, unanswerable as fate, it weighed upon him like a giant hand, and it came to him that he was comparing that roar to the death that was approaching his son.

When old Jeremiah left the squad room, there had been general silence for a time, and then events began to move rapidly, as they continued to do until the end of this peculiar episode. Sergeant Potter stood for a moment, with his hands behind his back, gazing at the floor, then he looked up, and cried out to the whole room:

"Look a heah, boys, is yer gwine ter be beat dis a way? Is yer gwine ter tuck yer tails atween yer laigs, and say 'let 'er go!' as long as dere is a chanst? Is yer goin' to 'low dat monkey-faced lootinint to grin at yer sarcastic? Yer know me. I'se as strong fur discipline as any pu'son; but dere's a eend to

every man's patience." He jerked a hat off a bunk near him, and threw it down. "Dis is all de dough I got in de worl'," he said, holding up two silver dollars, "but she'll send fo' words to de Presydent of dese United States, so heah she goes," and he tossed them into the hat at his feet. "Come on, boys, dem as wants to be high-tone and pass de time o' day with de Presydent, chip in."

As soon as they grasped the idea, the appeal was effectual. Out came all the cash the black men had. It was mostly Mex. *medio pesos* and *pesetas*, for "pay day, pay day" had not sounded for over a month. The silver jingled merrily into the hat, and the affair became a sort of jollification, each man vying with the others to see how much more he could "dig up." Their volatile natures, guided solely by impulse and an undercurrent of generosity, led them to give all they had without thinking. Man after man, in high good-humor, plunged his hands into some corner of his box locker and raked up little hoards of cash that he had saved for tobacco, soap, and such necessities. However, when the silver was poured on the bed and counted, Sergeant Potter scratched his woolly head.

"Tain't no kinder use, boys. Twenty-fo' dollars an' ten cents. Dat'll sen' fo'ty-eight big words and one little 'un. Dat ain't nowhere near a'nuf. He'd show'ly feel mightly slighted, de Presydent would, ef we did'n sen' 'im no mo' talk dan dat. We gotter 'spress dis thing logical an' ellygant, ur he won't take no notice uf it, none whatever. We nacherally gotter have mo' uf de muzuma."

This was very discouraging, and produced more deep thought and head rubbing, until Private Andy Smith broke out:

"Well, dis ain't no time fer tu back out. Damn de 17th Article uv Wah^[4]! Jess watch my smoke, niggers."

The rest of the men observed him curiously as he shouldered his way out of the circle. He went to his gold medal cot, and jerking off one of the fine, heavy army blankets, spread it on the floor. Then he rummaged amongst the clothing in his locker, and taking out a pair of extra shoes, a flannel shirt, and a white stable suit, rolled them into his blanket. Throwing the bundle thus made over his shoulder, he stalked out into the rain.

The effect of this eminently lawless example was instantaneous. The splendid regulation blankets and flannel shirts were at a premium among the natives, and the market was never dull. They could be coined into *pesos* on sight. There was a grand rush, and soon the blankets and spare articles of clothing went forth into the night, lugged by their respective owners. Shortly the darkies, wet and steaming, began to stamp back into the quarters, and the "dobie dollars" again clinked into the crown of Potter's old campaign hat.

Lieutenant Roger Williams Perkins was what is known as a solitary drinker. They are the worst kind. They drink by themselves, and purely for the effect. Doubtless their mental processes at such times are curious indeed.

The rain was falling steadily outside. There was no chance that any of the other men would come in to-night. Perkins sat alone at his table, as he had sat since six o'clock. It was now eight, and as he reached to take "another one," he heard two persons coming up the steps. He swore to himself and set the glass down. Turning, he found Sergeants Potter and Wilson at the head of the stairs, their dripping hats in their hands. Their ponchos glistened in the lamp-light, and from them ran little streams of water that gathered in globular pools, like quick-silver, on the oiled floor.

Perkins, of course, had heard of the answer to the telegram, and had thought the matter closed; but now these niggers had come to trouble him again. They came forward, trailing their streams of water behind them. He heard them through. He answered them craftily, smiling behind his hand, with the cunning born of the fog in his brain. Shortly they went away again, leaving on the table a pile of silver. Cable the President! What a joke! and he chuckled aloud. He would teach them to come and worry him with their foolishness.

Still the rain roared on the roof. Still he sat and drank, and drank again, until the lamp-light grew sick and wan in the damp gray day.

The first sergeant, with the Morning Report, found Perkins seated in the same place. Perkins signed the book in a sprawling scrawl, and the sergeant went his way. The Chino cook brought the meals, and then came and took

them off again. The day dragged through, the gray evening fell; the rain streamed down; and still the officer sat as before.

At eight fifteen he looked up to find Wilson and Potter before him. There were the same glistening ponchos, the same little streams of water, the same pools on the oiled floor. He himself sat in the same place. The soldiers might have been gone ten minutes instead of twenty-four hours, for all the change there was in the scene. Only the pile of silver had disappeared.

No, no answer to the cablegram had been received, and Perkins could hardly conceal his desire to roar with laughter, as the two turned and trailed their streams of water back down the stairs.

At four o'clock he wobbled to the bed and threw himself down with all his clothes on. He awoke at six, and, getting up uncertainly, went to the window and looked out. Still rain and murky grayness everywhere. As he stood, the assembly went; for when a man is to be hanged, a little thing like rain does not interfere. Perkins turned from the window quickly, and plunged his head into a basin of cold water. Then, in spite of the early hour, he took a stiff "bracer," and throwing on his slicker, went out. At the foot of the stairs he found the orderly with the horses, and, mounting with suspicious care, he rode to the stables.

The troop was in ranks and waiting. Before the roll was called, Sergeant Wilson, his face drawn and wrinkled like old parchment, came forward and asked hesitatingly if there were any news from Washington. The officer shook his head. The cords in the old negro's throat worked convulsively, and he requested rather brokenly that he might be excused from this formation, and be allowed to remain in charge of quarters.

"No," the Lieutenant replied thickly; "there is no reason why *you* should be excused any more than any one else. The regular man will remain in charge of quarters." The whole troop heard, as he intended they should. The "bracer" was getting in its work, and Perkins was feeling good again. The wily schemes, the shapes and shadows of the previous night, were growing in his brain once more. He would teach these niggers who was who.

And so they took Private Buff Wilson out into the falling rain and hanged him. In the center of the square, formed by the squadron he had disgraced, he paid the price. The solemn hills, shrouded in mist, looked down, sadly, impassively. They were not more motionless on their everlasting foundations than was Sergeant Jeremiah Wilson, sitting his big bay like a granite statue, the tragedy of the ages and of his race deep in the hollow sockets of his eyes. For is it not written: "*A servant of servants shall he be unto his brethren*"?

The signal was given. The trap fell with a bang; the spray flew from the snapping rope; and Private Wilson was jerked unceremoniously into the presence of his Maker. Justice was satisfied, and the account was balanced.

When a man is hanged, he must be buried. To bury a man it takes a detail in charge of a non-commissioned officer. The non-commissioned officer is designated by name from the sergeant-major's office. He is also chosen by roster in his proper order. It happened to be Sergeant Jeremiah Wilson's turn for duty. Consequently Sergeant Jeremiah Wilson was told off to bury his own son.

There was no detachment, no ceremony, no firing squad—only an escort wagon containing a black Q. M. coffin, upon which were perched four or five wet, disconsolate troopers armed with picks and shovels. Old Jeremiah followed, mounted, a feverish light in his eyes and drops of moisture standing on his grizzled mustache. So he went forth and saw them consign to earth the clod that had been his son—or rather, consign to water, for the grave was half full when they reached it. He did not see it, either; but he heard it.

He heard the splash as the casket was dropped into the half-filled grave. He heard the grating of the bamboo poles used to hold it down until the earth could be placed upon it. He heard the sucking and bubbling as the water forced its way in and the air forced its way out. He heard the splash of the muddy clay until the heaviness of it seemed to descend upon his own heart. The shapes and shadows struggled to and fro in his aching brain until they triumphed. Sergeant Wilson, to the naked eye as sane as any man, was mad; mad as a hatter.

He went back to the quarters and to his old corner. There, as before, he sat hour after hour, clasping and unclasping his hands. At times he startled all in hearing by throwing back his head and laughing harshly. The men regarded him furtively and with uneasiness.

The dreary night, with its drearier unending rain, had dropped once more. Lieutenant Perkins was seated in his old place. He had been there since the execution in the morning. This was the longest session he had ever indulged in; but the moral fiber degenerates rapidly in the tropics. Besides, the friendly rain had curtained him and kept away the spoil-sports. All day he had sat communing with the shapes and shadows. And it was very pleasant. He had triumphed.

Lately, however, an unpleasant idea had been flitting elusively through his consciousness—a something that marred the full measure of his achievement. Time and again he almost grasped it, only to have it slip from him. What was it? What was it?

Ah, yes; he had it. They were, as yet, ignorant of how he had fooled them! They must know it to make the joy complete. What sport to take their money back to them and tell them to their faces what monkeys he had made of them! Why not do it now? Yes; what a brilliant idea! He would do it at once.

Just before call to quarters Perkins staggered into the main squad room. The men stood to attention and observed him with wonder. He was soaking wet, and the water was streaming down from his uncovered hair. Without speaking, he walked to the end of the big nara-wood table in the center of the room, and began to take silver coins from his bulging pockets. He clawed out handfuls of them and planked them down in a pile; the smaller ones leaking through his fingers and falling to the stone floor, where they rolled away with musical tinklings, or hid themselves in the cracks. Finally, when he had succeeded, with laborious care, in extracting one last dime from the depths of his pocket, he said thickly, waving his arms with an all-embracing oratorical gesture:

"All you men come here." The troopers moved close, and formed on three sides of the table. They stepped quietly, some hint of what was to be having

come to them.

"Got somethin' to tell you. You think you are very smart, doncher? You think you—" he rubbed his forehead reflectively and struggled for words. What was it he wanted to tell them? Oh, yes; that was it. "You think you're smart, doncher?" and he leaned forward on the table, peering around the circle; "but 'cher all damn fools. Me, I'm a smart man," and he indicated the center button of his blouse with his thumb, drawing himself up haughtily.

"You thought I cabled to the President, din'cher?" he continued, leaning forward again, and returning to his confidential tone. "Not on your life. See, there's the money. What a joke," and he burst into drunken hilarity, reeling from side to side, while the tears ran down his face.

The quiet in the room was absolute, except for the officer's unholy mirth, and the steady fall of the rain. At the sound of that laughter, old Jeremiah, who had sat in his corner unmindful of the officer's presence, got up and came forward to the opposite end of the table. There was a dazed look in his face as though he were just waking from a deep sleep. He glanced around at the other negroes, standing silently with wide eyes, then at the drunken officer, and finally at the pile of silver. Then he knew. As soon as Perkins saw the old soldier, he chuckled with renewed glee.

"Hallo, sergeant, you ole fool. The joke's on you. Yessir, the joke's on you. You thought I cabled to the President; but I did'n'. Nosir, I did'n'." And he went off into renewed peals of laughter.

Suddenly he stopped short. He saw that there was no appreciation of his witticisms; only a blur of blank black faces and white, rolling eyes.

"Why don't you laugh, you damn apes? You damn black idiots, why don't you laugh? You——you——"

He ceased quickly, for another voice broke the silence. It was old Sergeant Wilson speaking. No one could tell when he had begun. He stood slightly crouched, with his hands on the edge of the table. His face was absolutely blank and expressionless, while his eyes were fixed on the officer with a tense, glassy stare. His voice was cold and monotonous, without rise or fall,

halt or intonation, and seemed to be more the wail of the spirit rising from somewhere deep within him than the voice of the flesh.

"You heah that, boys? You heah what he says? He calls us apes; us that God made as well as him. 'Cause we ahr black he calls us apes. We ahr no better dan de dirt undah his feet. He taken ouh money an' fooled us, an' now he is laughin' 'cause he fooled us. He taken ouh money and lied to us. An' while he wuz a-foolin' us, us apes, dey taken mah boy, mah baby, out an' killed him. Out in de rain. An' ah heered de trap fall, an' de rope snap. An' *he* heered it, an' laughed when he heered it!"

As he spoke, the sergeant never took his eyes from the officer's face, and moved slowly around the table, crouching a little, and creeping stealthily as a beast of prey might move upon an animal that it was attempting to fascinate. And the officer was being fascinated. He stood as though transfixed, his jaw hanging and his straining glance bent on the approaching soldier.

The body of troopers was getting restless. Their eyes, too, had taken on a peculiar shine, and were all focused upon the white face of the officer.

The wail of that dead, monotonous voice was to these negroes as the call of the wild. It touched a chord in them that antedated the deluge. They moved closer, imperceptibly, and moistened their dry lips with their tongues. There is something mortally appalling in that simple action. The dead voice continued: "An' dey sent me out to bury him, my own baby. An' *he* laughed when ah went. Ah seen 'im laugh. An' dey taken mah boy and put 'im in a deep black grave; an' de col', col' watah wuz on 'im an' raoun' 'im, an' ah heerd it splash when dey put 'im thar. An' he is thar now, in de col' black grave, an' de watah is on 'im, an' ah kin feel de watah; an' de dirt is a-weighin' me down. Heah on my ches'. An' dis man is a-laughin' at us an' says hit is a joke!"

The old sergeant was now within three feet of the officer. The latter was gray as putty, and sober. It did not take the inclosing circle, the heavy breathing, the wild, staring eyes and tight-drawn lips to tell him his danger. He felt the Presence. The air was pregnant with it. He took a step backward

and moved his stiff lips as though to speak; but there was no sound. The voice went on:

"He laughed at us; but he won't laugh no moah. God done made 'im to look lak a man; but he ain't no man. He is a snake an' creeps in de grass. God sez in his book dat all snakes mus' be killed an'—" the sergeant took another step; the officer took a step backward, and the crowd surged forward with a quick, hoarse gasp. Then the terror gripped him, and turning, the officer made a dash for the door.

Again the circle closed in as the sea surges up upon the land. There were tossing arms; there was the hissing of breath through clenched teeth, the sickening thud of blows, and a gurgling cry of mortal agony. Then the sea surged out again, and there on the floor lay the thing that had been Lieutenant Roger Williams Perkins.

The ring of negroes stood fast. Their shoulders rose and fell as their convulsive breaths were indrawn and exhaled. They seemed to be wondering what had happened. Several raised their hands and observed them curiously, first one and then the other, as though they were strange objects never seen before. One placed his fingers to his nose and smelt them furtively. Another tried to rub off the thick, dark stain, but with little success. The "moving finger" had written.

When the catastrophe occurred, five or ten of the weak-kneed had rushed from the building, and even as these guilty ones stood there, there was a clatter of arms outside. Some one yelled: "the guahd," and they knew that their deeds had overtaken them.

In the momentary pandemonium that followed, old Sergeant Wilson was heard calling above the din: "Out with dem lights! Pile de bunks agin' de doahs an' winders!" They had learned to obey that voice before, in many a tight place, and now it had its old-time ring. So they went and did. A saber hilt rattled on the portal. "Open the door! This is the officer of the guard."

"To hell wiff de officah of de guahd. Open hit yo'se'f!" was bellowed in reply. The strain was relieved, and the sally was greeted with a wild yapping from the rest, such as might have risen from a den of trapped

wolves. Several ran to the windows. There was a sputtering volley of carbine shots, and Troop "B," 19th U.S. Cavalry, was in open mutiny.

Now when a troop of United States cavalry rises against those in authority, incidents begin to occur at once. The times when such a thing has happened can be counted on the fingers of one hand, with some digits to spare. There was, in this case, no room for parley or exchange of flags of truce. The thing with which the ants were already busy there on the floor was an uncontrovertible fact. Consequently, there being no grounds upon which to arbitrate the matter, the mutineers blazed away cheerfully at anything that showed itself on the plaza. They had now nothing to lose.

Then, shortly, there sounded from the guard-house, through the rain-drenched night, the call that jerks the soldier out of his bunk, all standing, from any sleep but that of death: the "call to arms."

In fifteen minutes "B" Troop's quarters were surrounded on all sides by the other troops of the squadron, the men of which, from safe cover, observed the carbine flashes and wild yells emanating therefrom with mild surprise, and wondered "what de hell had broke loose."

Major Bliss sat under the smoky lantern at the guard-house, surrounded by the officers of the station. He questioned sharply the men who had escaped from "B" Troop's barracks. At intervals he swore mightily and cursed the day that Roger Williams Perkins was born.

"And to think that old Wilson should be at the head of this! Old Wilson, of all men! Why, he is worth fifty thousand Perkinses, dead or alive. I am only sorry that Perkins didn't get away. I should like to have got hold of him myself, damn him."

There was no hesitation in the makeup of Major Bliss. He intended to suppress this outbreak in a manner that would tend to discourage any such ebullitions in the future. Consequently, he made his dispositions with grimness and determination. His plan was simple, his orders being to "rush 'em and give 'em hell." His greatest regret was that the interests of discipline should make such a step necessary, since he was sure that a

majority of the mutineers had acted upon impulse, and were already excessively sorry for themselves.

In the midst of these untoward events, the "Tarlac," coastwise transport blew into the bay through the murk and rain, and Captain North, of "B" Troop, the "Ole Cap'n," returned to the station. Hearing the shots and yells, he concluded that the Major was "shooting up the town," and splashed hurriedly to his quarters for his saber and revolver. There in the darkness he stumbled over his *muchacho*, who had deposited himself at the foot of the steps and was earnestly beseeching his patron saint to have him spared this once; promising an altar cloth and innumerable candles if he should be allowed to exist long enough to secure them, thus putting on that gentleman's intercession a premium that he trusted would be effective. The Captain being naturally impulsive, the accident did not improve his temper to any appreciable extent. Besides this, the matches were wet, and there was no oil in the lamp. Consequently he had to search for his weapons in the dark. After falling over his bunk and numberless chairs, and upsetting his field desk, he found his saber and revolver, only to discover that both, owing to the neglect of that same sanctified *muchacho* on the stairs, were covered with rust; that the cylinder of the revolver would not revolve; and that at least two strong men and a boy would be required to coax the saber from its scabbard!

All this while the shooting and yelling were going on, and by the time he splashed out into the rain once more, the good Captain was what is technically known as "mad as a hornet!" He started on a run to "B" Troop's quarters, to take command of his men, only to be stopped by a sentinel, who informed him that "B" Troop was in no mood to be taken command of, and that he had "bettah go to de guahd-house." Being ordered to the guard-house by a private did not tend to quiet his state of mind any, even when the situation was explained. By the time he burst in on the assembled officers at the post of the guard, Captain North was madder than ever.

"What the devil is going on here, Bliss? What's this I hear about 'B' Troop's busting loose? This is a hell of a state of affairs."

"That is just what I think, North, and very neatly expressed," the Major replied dryly. "Lovely discipline you have in that band of Indians of yours."

They've mutinied, no less, and apparently they have got Perkins. A nice
——"

"Mutinied, have they? Why, the infernal black scoundrels," almost roared the irate officer, striding up and down the room. "Mutinied, have they? What the devil do they mean by doing a thing like that without saying anything to me about it? I'll mutiny 'em! Don't you interfere with me, Bliss," he continued, halting in his walk, "don't you interfere with me. This is my troop, and I can handle them. Don't you interfere with me."

"My dear North, no one has shown any inclination to interfere with you, has he?"

"That's right," and the Captain continued his march, "that's right. I can attend to these gentlemen. This plan of rushing them, though, is all wrong, all wrong"; and he stopped again. "They'll fight, fight like the devil. I ought to know. I've seen them do it often enough. You'll lose good men. In opposing them with force you recognize the strength in them. What you need is moral force. One man power. Same principle in training lions. Same principle. If a lion-tamer went into a cage of ten lions with ten men, he'd have trouble on his hands from the jump; but he can go alone and bluff 'em. Same principle here. If I could get into the middle of that bunch over there without their seeing me until I was there, I'd scare them out of ten years' growth. How to get there, that's the question."

"Why, North, you are crazy. They'd get you, sure. They'd eat you up, man."

"Eat *me* up? Why, they'd as soon think of tackling the late Mr. Peter Jackson. They know me. How to get there, that's the question. Walking across the plaza they couldn't tell *me* from any one else."

"Beg yoah pahdin', sah," and Private Massay of "B" Troop, who was the commanding officer's orderly for the day, spoke up, "Ef de Cap'n could git in through de little doah in de stoah-room, and go through de kitchen, I speck he could git in widout bein' ketched."

"Right, Massay, the very thing. Somebody give me a lantern. Confound it, one of you men get me a lantern, and be quick about it." A member of the

guard gave him the required article, and concealing it carefully under his poncho, he went quickly out. The Major and other officers jumped up and followed. All the way down the dreary, rain-swept street the Major attempted to persuade the Captain to give up his foolhardy enterprise, but without result. Finally, when they reached the cordon of surrounding troops, the senior officer said:

"Well, North, this is absolutely absurd, and out of the question. If you insist, I shall have to give you an order not to go."

"No, you won't do that, Bliss." The Captain's anger had left him now, and he spoke quietly. "We have known each other a long time, and seen a lot of service together. You won't take advantage of your rank to stop me now. I am only doing what you would do in my place. It is my troop. The shame and disgrace are mine. You won't stop me now."

The Major hesitated a moment and then spoke slowly, and with evident feeling:

"Well—well. Have your way; but be careful, John, be careful."

They saw him move quietly along under the shadow of a wall, cross the street, and disappear in a small side door of "B" Troop's quarters. He was not discovered.

For the last half hour the silence and the blackness of the grave had existed in "B" Troop's big squad room. The "shouting and the tumult" had died a lingering death. One cannot yell and hurl challenge indefinitely, and shouting up one's courage begins to lose its efficacy if long continued. One big-lunged mutineer had held out with his firing and bellowing until the nerves of the rest could stand it no longer. They then rudely suppressed him. He sounded so absurdly and pathetically foolish. He was typical of their own status. "One nigger shootin' a bluff at de whole United States Army!" They realized that with fifty it was no less idiotic.

If it had not been for old Wilson passing stealthily to and fro among them, with that wild light in his eyes, and those crazy mumblings, doubtless there

would have, already, been breaks in the ranks. But no; there was that other thing, lying over there where it fell. There was no use now; there could be no looking back. Each turned wearily to his door or window and renewed his wide-eyed effort to pierce the web of blackness over the square. And the everlasting rain still fell.

A door swung cautiously somewhere. There was the sound of some one moving with steady, determined step down the center of the room. Then, without warning, their unaccustomed eyes were momentarily blinded by a light taken suddenly from under a poncho; and there in the center of the room stood a lone officer; in one hand a lantern, in the other a big blue revolver.

For an instant there was no movement. Then there was a counter reaction. With the snarl of wild animals, the fifty negroes sprang toward the center of the room. Sergeant Wilson was first. With a cry of: "Kill him! kill him!" he bounded over a bunk, and landed within three feet of the officer, revolver upraised. As he did so, the officer lifted the lantern to a level with his own face. The sergeant stopped. The whole circle halted, as though Circe had transfixed them. They had recognized the "Ole Cap'n."

"Well, Wilson." At the sound of the voice the old negro's countenance changed instantly. It became the face of a man in mortal anguish, as indeed he was. In that moment the scales had fallen from his vision. He saw his position clearly in the light of the sorrowful glance from the "ole Cap'n's" eyes. It was as though the main pillar of the heavens had been pulled out, and the skies were thundering down about his dazed old ears.

"Oh, Gawd, oh, Gawd!" he groaned, putting one hand to his head, and rocking it from side to side, as though the pain there were more than he could stand.

"Oh, Gawd, oh, Gawd." The revolver was lowered slowly from its upraised position, and suddenly, before the officer could stop him, the sergeant turned it against himself. There was a flash, an earsplitting report, and the old soldier sank to the floor. There he stretched himself wearily, as though for a long sleep, and Sergeant Jeremiah Wilson, of the "old Army," was gathered to his fathers.

The Captain turned away abruptly. He knew that old Wilson was a good shot.

"Open the doors," he said to the troopers, as though he had been telling them good morning. Compliance to that voice, raised in command, was to these soldiers a second nature. There was not the slightest hesitation. With eager alacrity they hastened to obey, like children who had been caught misbehaving.

In the first faintness of the dawn the tired-faced troopers cheerfully filed out and formed in front of the quarters, each one, as he passed through the door, depositing his arms at the officer's feet. Oh, but it was good to be on the right side again; and the "ole Cap'n" would take care of his own.

FOOTNOTES:

[4] Art. 17. Any soldier who sells, or through neglect loses or spoils his horse, arms, clothing, or accoutrements, shall be punished as a court martial may adjudge, subject to such humiliations as may be prescribed by the President, by virtue of the power vested in him.



THE SINGER'S HEART

BY
HARRIS MERTON LYON

ILLUSTRATIONS BY J. B. MASTERS

*"I never cared for the singer's fame,
But, oh, for the singer's heart
Once more—
The bleeding, passionate heart!"—"B. V."*

THESE are a few films from the human biograph of Harry Barnes, old actor. You know, when you are old, you accept life with more or less of a sigh of quiet acquiescence, and by your cozy fire you sit and nod to an inner voice, a gentle old voice which over and over whispers and murmurs—"Once upon a time, once upon a time." And possibly Barnes would have nodded, too, but he lacked the cozy fire. Life has its dramatic unities, it would seem, and if one thing or another is awry we are apt not to perform as the book says we should. No cozy fire, says the Great Stage Manager; no nodding acquiescence, replies the Mummer in the Play.

Barnes listened, it is true, over and over to the voice which murmured "Once upon a time," but he sat not by a comfortable open grate, amid grandchildren. Instead, he lurked in East Fourteenth Street amid decaying agents' offices, hunting a chance to do a bad monologue in a worse vaudeville show. He had outlasted his time; he could not get work. He lived on those two heartless things, Hope and Memory. And for all I know he is living on them yet.

Now, you will not in your careless youth or your sceptical maturity find beauty in this story, you will not "get under the skin" of it, as the saying is, unless you have stopped sometime in your busy going, to consider, aside

and with understanding, the pathos of the old actor. It is a curiously poignant human thing, written about by a few, suffered by many, and ignored by the loud, inordinate world.

The old actor out of employment! A target for jokes, a piece of battered, ancient "property" cluttering up a new and very busy stage. You smile at his curious figure, unconscious of the broken misery that aches beneath, where life has died and living goes paradoxically on; and only sometimes late at night do you get a part of that hidden ache when you hear old legs drag weary feet up the boarding-house stairs, past your door and on up into the skylight room on the roof, despondently to bed; and you know that the old man has had another unsuccessful day among the agents and the managers. You can sometimes interpret the querulous little laugh over the thin oatmeal at breakfast, sometimes you can guess the water in the rapidly winking eyes; but of course you do not proclaim your deductions. Civilization is a process of making less noise about things.

This is a segment of the life-film of Harry Barnes, old actor, as he traveled the stones of Fourteenth Street. Not the Rialto, where fat men adorned with fat diamonds smoke fat cigars in order to narcotize fat consciences; but Fourteenth Street, grimy with old, sparsely-tenanted buildings, where theatrical offices three flights up bargain for the dribblets of trade among the low music-halls and the cheapest vaudeville houses, where niggardly, gray-haired agents have for two generations sat among their dusty contracts and their rusty pens, haggling over bread-and-water salaries with the jetsam of a too-volatile profession.

Harry was old and dropsical with drink, a sad hero for a careless story. The only ideal he had ever had, besides one, was to arrive at the fine fame of printer's ink: headlines, bill-boards, critical notices, reproductions of his photograph. But this was long ago. He had longed to be chronicled in his time, preëminent and large; this he had desired with that hungry passion for display which only an actor can feel. But this, remember, was once upon a time. His other ideal—no need to mention it amid Momus and his mimes!—was to sway people with laughter and tears, to burn them with romance, to chasten them with tragedy, to carry them with him in his frenzy, to play upon them with his art.

Art! Do you care for a grotesque, serious evening in its humblest presence? Have you time to listen, over beer glass and cigarette, to a broken-down old actor out of a job?

Barnes was incongruously named when he was given the name of Harry. It is a flippant name. It calls up merriness, youth, bravado, color, song. Barnes was forty-nine, streaked with grey, heart-sick, pallid, shuffling, timorous, sorry, and forlorn. Three decades of grease paint had made his skin flabby; and three decades of what the grease paint stood for had done likewise by his soul. It was thus that he drifted from doorway to doorway in Fourteenth Street, down by the Elevated, where dry little agents told him in dry little voices that



HARRY BARNES, OLD ACTOR

there was nothing for him from day to day. It was thus that he dragged his feet up the boarding-house stairs to his skylight room, night after night, carrying the two heartless fardels, Hope and Memory.

It was approaching a certain holiday, a holiday which came on Sunday.

"Harry," said old Tony Sanderson, after he had finished informing the actor that there was no news for him, "why don't you do a little press-agent work for yourself? Get your name in the paper. That might help you get something to do."

The other listened despondently.

"Now here's a chance," went on the agent, in a confidential tone. "No money in it, of course, but, as I said, there's a chance to get into print. Some sort of a newsboys' benefit bunch is going to get together Sunday night and give a little entertainment fer the kids up in Beals' gymnasium on the

Bowery. They're callin' for volunteers among the actors. You take your monologue stunt down there and get onto the program. The newspapers always plays up this newsboy dope strong and you'll get a good mention sure. Clip the notices and *then* you've got somethin' to flash. See?"

Barnes stood uneasily by the desk. "I—I don't know, Tony," he answered. "To tell yuh the truth, I'd be a little bit scared to try it. Yuh see, I—well, if you wasn't an old friend of mine, I couldn't say it—but, confidentially, Tony, I—I've kind o' lost my grip. I'm a—a back number, Tony. I'm afraid o' them kids; they're too wise. My old act wouldn't go." He waited, awkwardly; then, as if he hoped he were wrong, he asked: "Would it?"

Sanderson snapped his grim eyes. "What're yuh tryin' to put it on fer, at all, then—if yuh think it won't take with a gang of kids at a free doin's?" Then his tone softened. "Look here, Harry. It'll only be ten or twenty minutes. Go ahead. You'll get through all right. You ain't as much of a dead one as you think you are."

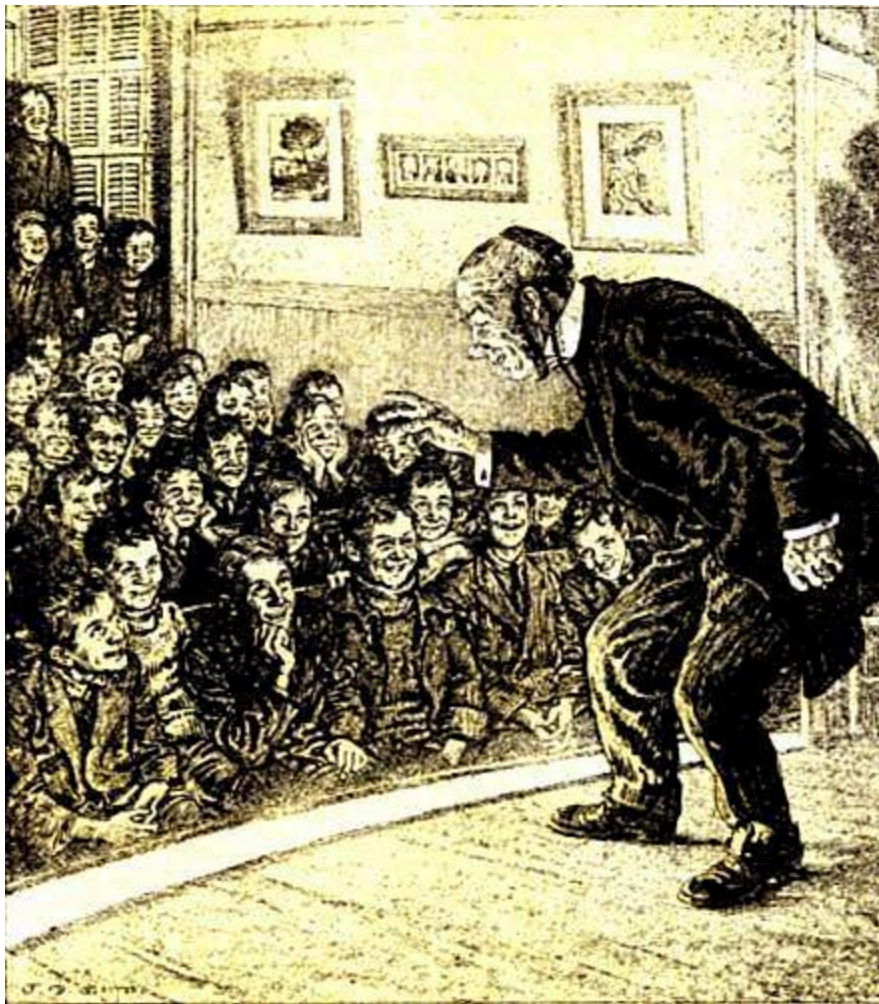
Barnes straightened up. It was all right for him to make a slight confession, but Sanderson had wounded his professional vanity. "A dead one!" he exclaimed. "Certainly not. Harry Barnes a dead one! After a thirty years' career in the companies of the best——"

The agent shoved a card in his hand and cut him off short. "Go around there and tell 'em to put you down for a monologue." And Harry went, with dignity and misgivings.

His misgivings were all the more increased when he saw the list of promised performers: La Belle Marie, the famous little toe dancer in her attractive transformations; the Brothers Zincatello, Risley experts at the Hippodrome; Julian Jokes, "in his inimitable Hebrew monologue"; the Seven Sebastians, the world's most marvelous Herculean acrobatic performers; Mlle. Joujou, the popular singing comedienne, Prima Donna and Star, direct from her unusual and most distinguished triumph at the Palace Theater, London; and a dozen more of the younger and more popular people of the stage, all adorned, with adjectives and hyperbole. Down at the bottom of the list with a trembling pencil he wrote: "Harry Barnes, Singing

and Talking." Then he shook hands with the secretary of the organization and walked back to his boarding-house in a mild fever of excitement.

In his room he went eagerly about his work. He rehearsed again and again his meager little bag of tricks, his funny Irishman, his Chinaman—no, the Chinaman came first, because he used the queue afterward to wrap around his chin and simulate Irish "galloways"—his Dutch comedian monologue about married life, his old-time songs and dances. He furbished up some old "patter" and injected new anecdotes. And this he kept up morning and evening until the notable Sunday came.



"HE GRINNED AND WINKED AND FRISKED AND CAPERED"

He was so nervous, this old actor of a thousand parts, that he could eat no supper that night. He almost trotted to the gymnasium in his excitement, and, though his pockets bulged with grease paint, mustaches, wigs, and other paraphernalia, he forgot almost half of his material. At the door he had to push his way through a wriggling, impish mass of small boys who blocked the steps and the sidewalk. Inside the hall, young faces packed the place to the window-sills. To the old man the newsboys seemed as so many antagonistic bits of the younger generation, the generation which evidently would have none of him, which relegated him carelessly to the warehouse for old scenery and old settings.

He stood in dismay behind an extemporized "wing" and peered out at the restless little bodies. He fancied already that he could see grins on their sophisticated faces, ridicule in their eyes; he remembered once hearing a gallery god shout "Twenty-three!" in the middle of an actor's monologue, and what had then seemed humorous precocity now seemed hard, bitter cruelty. He fumbled at his make-up in his pockets, shuffled uneasily, and waited.

It was almost time to begin. Where were the other actors who had promised to come? The boys out front were whistling, kicking their feet upon the floor, clapping their hands, and shouting to one another. A distracted official raced here and there among other officials, asking some sort of exasperated question. Barnes could not hear what it was; but telepathically he felt that there was a hitch in the program.

At last, after waiting a quarter of an hour, the manager stepped forward and said:

"Boys, we had arranged a fine program for you to-night——"

"Good fer you!" yelled a voice.

The speaker held up his hand. "But it seems that actors are better *promisers* than they are *actors*." He smiled at his own joke, but the audience gave one long "Aw-w-w!"

"However," he continued, "we are all here now and we intend to do the best we can. If we make up our mind to, we can have a bully good time just the same. We have with us at least one kind gentleman who appreciates what a celebration like this means to the boys." ... Barnes heard and saw things as if through a fog. The arms of the speaker were gyrating and a voice shouted in the ear of the old actor: "What's your name?"

"Harry Barnes," he said, moistening his lips. Nobody had shown up except him, he kept thinking over and over to himself: nobody except him. He had the thankless job of "opening the show."

"... Harry Barnes," echoed the speaker at the end of some sort of practical talk concerning the newsboys' organization and its management. "Mister Harry Barnes"—he squinted at the program—"in singing and talking."

He turned and smiled at the old man, and to Barnes the smile seemed diabolical. Somebody clapped him on the back. There was a hurricane of whistles and shouts, and before he knew it he was in the middle of the rostrum.

Mechanically he had made his old comic entrance, tripping his right toe over his left heel, and turning to shake his fist at an imaginary enemy. The boys, determined to be pleased, giggled appreciatively.

"How—how are you, boys?" Barnes asked, seriously.

The audience snickered with delight. He was such a funny-looking old man!

"I hope you'll like my work," he went on, desperately, "or else we might as well go home. I guess I'm the whole show, for a little while, at least, as the feller said when he fell out o' the balloon." The house roared with approval.

"Go wan, Barnesy," shouted a young pair of lungs in the front row.

He straightened up, turned his back for a moment, stuck a queer set of mustaches on his upper lip, faced the crowd again, and began: "I was

walkin' down the street the other day when my friend J. Pierpoint Morgan stepped up to me an' says, 'Barney, my boy'"....

The show had begun. Harry Barnes, singing and talking, had opened his carefully rehearsed bag of tricks.

There is some peculiar psychology about humor. If people make up their minds that they are going to laugh and that a performance is bound to be funny, nothing on earth can keep them from enjoying themselves. The most serious remark will be greeted with howls of approval; the most ancient joke takes on a novel and present sprightliness. In the slang of the stage, Barnes' line of patter took.

Four hundred boys simpered, smirked, grinned, giggled, tittered, chuckled, and guffawed. A wine of merriment flushed the crowd and mounted to the old mummer's brain and heart. He skipped and danced and sang; he went through all the drollery and tomfoolery, all the old comic business he could recall.

The children nudged each other, dug their fists into each other, and cheered: "Oh, you Barnesy!" "Kill it, Kid!" "Whatcha know about dat!" "Sand it down, Barnesy!" The old-timer was doing the famous lock-step jig he had done with Pat Rooney in "Patrice" fifteen or twenty years before. It was so old that it was new. Encore followed encore. The perspiration cascaded through his pores; he grinned and winked and frisked and capered. They would not let him stop. At the end of twenty-five minutes he bowed himself off the stage, and still they called him back. When he gave them, for the "call," the Little Johnny Dugan pantomime from "The Rainmakers," the East Side children, born since the day of such things, were suffocated with delight.

What did Dugan do to him?

—They say he was untrue to him.

Did Dugan owe him money?

—No; he stole McCarthy's wife!

Who? Little Johnny Dugan?

sang Barnes with a quizzical flirt of his head; and lungs that were wont to fill the city streets with news could not even gasp for laughter.

The secretary of the organization followed with a speech about future entertainments; another official read a letter from a prominent financier promising the boys a swimming-pool and a half dozen summer excursions.

"Somebody bang de box!" suggested a voice, after a pause.

Nobody could—except Barnes; and he volunteered. The whole affair was now like one big family circle, each one secure in the amity of the other, and when the old man sat down at the cracked piano, he sang as if he were singing to himself, easily and without restraint. A quiet held the house, and even the children were touched; for Harry Barnes was quavering through the simple lines of "Should Auld Acquaintance Be Forgot." After that he gave them the Lullaby Song from "Erminie," and somehow it did not at all appear incongruous that a careworn mimic of fifty should be singing to careworn workingmen of ten, down on the Bowery, in a gymnasium, a verse about pretty little eyelids and sleeping darlings. The world, fortunately, is not always with us; and the song ended in a silent applause.

For two hours the entertainment went on, speeches and official plans interspersed with the antics of Barnes.

Was there anything he could not do? He mimicked birds and animals; he imitated a wheezy phonograph playing "When We Were a Couple of Kids"; he recited "The Raven" and "Paul Revere's Ride"; he gave a cutting from Dickens and one from Sheridan Knowles; he showed how Joe Jefferson played Rip Van Winkle, how Sol Smith Russell did "A Poor Relation."

And all through his soul and body, as he watched his haphazard audience follow him in his moods and changes, ran the quiet magic of Art Satisfied. It is a noble braggart madness, this glorification of a cheap art by an old actor.

"Barnes, my boy," he said to himself, with a glow of rapid blood, "you have not lost them yet! See them laugh with you! Feel them cry! What does it matter if you eat watery oatmeal and live in a skylight room; are you not an

artist, a resonant instrument of poetry and music and mirth, a true actor of the best parts? You are; and these are matters of the undying soul. A boarding-house is a vulgar, temporal thing. You were right to come here to-night, and do this thing without pay, for Art's sake. You uphold the honor of a calling which is founded upon Art. And, oh, most of all, you have not lost your power, you have not outlived your time! Sanderson intimated that you were a dead one—very well, to-morrow you shall triumphantly cut the acquaintance of Sanderson! To have lived until this evening before the youth of this land; to have caught the right intonation, the proper gesture; to have swept through the hearts of your hearers like a vibration of music—this is to have transcended, this is to have justified yourself! And justified yourself to whom? To Sanderson?

To the world? No! You have justified Harry Barnes to Harry Barnes! You carry this human throng over the footlights and into your soul with a Chinaman's queue and a putty nose. Your Art is still that fine, secure Art which you have carried in your memory as you traversed dingy stairways on Fourteenth Street. Barnes, you live, you act, you accomplish! Bravo!"

He shook hands abstractedly all around when the affair came to a close. He remembered bundling his make-up and trinkets into a piece of newspaper and tucking it under his arm. A pleased face presented itself at one time



**"OH, YOU DIVVIL, YOU! YOU OLD,
BLATHERSKITING DIVVIL!"**

before his eyes and a voice said, confidentially, "Mr. Barnes, I congratulate you; and the dramatic critic of the *Star* was here to-night."

He found himself at last out in the cool darkness of the street, and he had to stop a moment to think which way his boarding-house lay. Then he walked home, to save carfare. All the way up the silent streets his brain sang with triumph. His blood jumped in gladness; he could hardly keep from running. He declaimed aloud bits of Shakespeare, tag ends of poems; he snapped his fingers and flung out his arms in sheer excess of enthusiasm. He smiled, threw back his head, even made faces at the passersby. He boomed into a solo from an opera, and kicked his foot at a cigar stub on the sidewalk. And had anybody wished to observe when he reached his house, the spectacle would have presented itself of a caricature, funny-paper barn-stormer tramping merrily up the rattling stairs and humming, "The flowers that bloom in the spring, tra-la, have nothing to do with the case."

All the next day he did not leave his room, save at meal times; for he wished to be alone and hug his exultation. To the four flat walls he repeated snatches of the things he had done the night before; up and down the rag carpet he smirked and grimaced and laughed and jigged. He sang the songs that had "taken" so well. He went through certain gestures and then deliberately exaggerated them, in a high good-humor. He was as young again as on the day when he had signed his first contract. He puffed out his chest, looked at himself in the glass with mock seriousness, and then, when the pent-up good feeling burst out in his merry eye, he winked it gleefully and said: "Oh, you divvil, you! You old blatherskiting divvil!"

At half-past four he went down to the corner and bought a copy of the *Star*, the late edition which had the dramatic news in it.

There it was! He felt like jumping up in the air and whooping the length of the street. On the editorial page it was. His name was in the headlines! Beneath, in the article itself, almost every other word seemed to be Barnes. It praised him here, it admired him there, it thanked him, it congratulated him, it asserted that he had saved the night for four hundred newsboys. He was so anxious to read it through and to read it fast that he skipped from paragraph to paragraph. There was over a column of it! He hurried back up to the room; and then regretted that he had not stopped to buy more copies

of the paper. He locked the door and spread the paper out on the little center-table. His heart and breath almost stopped as he read the good words slowly through. When he had finished, he threw the paper aside and bounded into the middle of the room.

"Press agent, hey?" he laughed. "Press agent! I guess yes! A small matter of a column and a quarter; that's all. *Only* a column and a quarter about Harry Barnes! Wonder what Sanderson will think about that? Wonder if he won't get me something to do? Oh, no; I guess not. A column and a quarter!"

He sat down again and smoothed out the paper before him. This time he began noticing little niceties of the critic's phrasing ... "entertaining, not to say pathetic rendition," etc., etc.... "*Not to say?*" Funny; look at it a moment, and it seems to mean it wasn't pathetic. But here it said: "Infectious and heart-tickling old-time Irish humor" ... "excellent characterization of Uriah Heep" ... and so on.



"HE SAT STARING INTO THE BLANKNESS OF THE LITTLE ROOM"

After a few minutes he ceased reading and sat, picking at the edge of the paper, staring into the blankness of the little room. He stayed thus immovable for a long, long time, and then slowly the tears slipped across

his cheeks, down on the forgotten "notice," his throat ached with a tender sobbing, and he bowed his head into the newspaper.

He was thinking of the children; he had made them laugh and cry. And this was the thrill, once more, of the singer's heart.

THE REPUDIATION OF JOHNSON'S POLICY

**BY
CARL SCHURZ**

ILLUSTRATED WITH PHOTOGRAPHS

IN consequence of the threatening situation which the President's reactionary policy had precipitated, the belief grew stronger and stronger in the Northern country that the predominance of the Republican party was—and would be for a few years, at least—necessary for the safety and the honor of the Republic; and steps taken to insure that predominance, even such as would have in less critical times evoked strong criticism, were now looked upon with seductive leniency of judgment. Mr. Stockton of New Jersey was unseated in the Senate upon grounds which would hardly pass muster in ordinary times, to make room for a Republican successor, and even Mr. Fessenden approved the transaction. Advantage was taken in the same body of the sickness or casual absence of some Democratic senator to rush through a vote when a two-thirds majority was required to kill a veto; and other proceedings were resorted to at a pinch which were hardly compatible with the famous "courtesy of the Senate." But there was more thorough and lasting work to be done to prepare for the full restoration of the States lately in rebellion. The Republican majority was by no means of one mind as to the constitutional status of the communities that had been in insurrection against the National Government. I have already spoken of the theory of State-suicide advanced by Mr. Stevens and a comparatively small school of extremists. The theory most popular with most of the Republicans, which was finally formulated by the Joint Committee on Reconstruction, was that the rebel States had not been out of the Union, but had lost their working status inside of the Union, and had to be restored to their regular

constitutional relations to the Union by action of Congress, upon such conditions as Congress might deem proper.

To meet the dangers which so far had become visible on the horizon, the Joint Committee on Reconstruction devised the Fourteenth Amendment to the Constitution, which was long and laboriously debated in both Houses. In the form in which it was finally adopted it declared (1) that all persons born or naturalized in the United States are citizens of the United States and of the States in which they reside, and that no State shall make or enforce any law abridging the privileges or immunities of citizens, nor deprive any person of life, liberty, or property without due process of law, nor deny to any person the equal protection of the laws; (2) that if in any State the right to vote at any election for the choice of national or State officers is denied or in any way abridged, except for participation in rebellion, or other crime, the basis of representation in Congress or the electoral college shall be reduced in the proportion which the number of such male citizens shall bear to the whole number of male citizens twenty-one years of age in such State; (3) that no person who had taken part in the rebellion, having previously, as a national or State officer, military or civil, sworn to support the Constitution of the United States, shall be a Senator or Representative in Congress or hold any office, civil or military, under the United States, or any State, unless relieved of that disability by a two-thirds vote of each house of Congress; (4) that the validity of the public debt of the United States shall not be questioned, nor shall any debt or obligation contracted in aid of rebellion, or any claim for emancipated slaves be paid.

THE FOURTEENTH AMENDMENT

Thus the Fourteenth Amendment stopped short of the extension of the suffrage to negroes—a subject which many Republicans were still afraid to touch directly. But by implication it punished the States denying that extension by reducing the basis of representation; it excluded from office, unless relieved of the disability by a two-thirds vote of Congress, the most influential class of those who had taken an active part in the rebellion; and it safeguarded the public debt. With only one of its provisions serious fault could be found;—not with that which guaranteed to the freedmen the essential civil rights of free men, nor with that which excluded the freedmen

from the basis of representation—so long as they were not permitted to vote. Only the advocates of negro suffrage might logically have objected to this clause; inasmuch as it by implication recognized the right of a State to exclude the colored people from the suffrage if the State paid a certain penalty for such exclusion. Neither could the clause safeguarding the public debt and prohibiting the payment of debts incurred in aid of the rebellion be objected to. The really exceptionable provision was that which excluded so large a class of Southern men from public office, and just that class with which a friendly understanding was most desirable. The provision that their disqualification could be removed by a two-thirds vote in each House of Congress mended the mischief thus done a little, but not enough for the public good.

It was not expressly enacted, but it was generally understood, that those of the States lately in rebellion, which ratified the Fourteenth Amendment, would thereby qualify themselves for full restoration in the Union. Tennessee, where a faction of the Union party hostile to President Johnson had gained the ascendancy, did so, and was accordingly fully restored by the admission to their seats in Congress of its Senators and Representatives. The full restoration of the other late rebel States would probably have been expedited in the same way, had they followed the example of Tennessee. But President Johnson, as became publicly known in one or two instances, obstinately dissuaded them from doing so, and the fight went on. He also vetoed a second Freedmen's Bureau bill in which some of the provisions he had objected to in his veto of the first were remedied. But things had now come to such a pass between Congress and the President that his veto messages were hardly considered worth listening to, but were promptly overruled almost without debate by two-thirds votes in each House.

A CAMPAIGN TO DESTROY A PRESIDENT

Under such circumstances the Congressional election of 1866 came on. The people were to pronounce judgment between the President and Congress. The great quarrel had created excitement so intense as to affect men's balance of mind. About the time of the assembling of Congress Mr. Preston King of New York (the same rotund gentleman with whom, in the National Convention of 1860, I conducted Mr. Ashmun to the chair), who had been a

Senator of the United States and had been appointed Collector of Customs by President Johnson, committed suicide by jumping into the North River from a ferry-boat. He had been a Republican of the radical type, and when he took the office he supposed the President to be of the same mind; but Mr. Johnson's course distressed him so much that he became melancholy; his brain gave way, and he sought relief in death. Another suicide which greatly startled the country a few months later, that of Senator Lane of Kansas, was attributed to a similar cause. "Jim" Lane had been one of the most famous free-State fighters in Kansas Territory. Since then he was ranked among the extreme anti-slavery men and as a Senator he was counted upon as a firm opponent of President Johnson's policy. To the astonishment of everybody he voted against the Civil Rights bill. This somewhat mysterious change of front, which nobody seemed able satisfactorily to explain, cost him his confidential intercourse with his former associates in the Senate, and brought upon him stinging manifestations of disapproval from his constituents. He was reported to have expressed profound repentance of what he had done and finally made away with himself as one lost to hope. He was still in the full vigor of manhood—only fifty-one years old—when he sought the grave.



JOHN POTTER STOCKTON

THE DEMOCRATIC SENATOR FROM NEW JERSEY WHO WAS UNSEATED IN THE SENATE OF 1866 TO MAKE ROOM FOR A REPUBLICAN SUCCESSOR. HE WAS LATER REELECTED TO THE SENATE

The campaign of 1866 was remarkable for its heat and bitterness. In canvasses carried on for the purpose of electing a President, I had seen more enthusiasm, but in none so much animosity and bad blood as in this, an incidental object of which was politically to destroy a president. Andrew Johnson had not only manifested a disposition to lean upon the Democratic party in the pursuit of his policy, but he had also begun to dismiss public officers who refused to coöperate with him politically and to put in their places men who adhered to him. This touched partisan spirit in an

exceedingly sensitive spot. The so-called "bread-and-butter brigade" was looked down upon with a contempt that could hardly be expressed in words.

KILLING OF NEGROES AT MEMPHIS AND NEW ORLEANS

But there were more serious things to inflame the temper of the North. The Southern whites again proved themselves their own worst enemies. Early in May news came from Memphis of riots in which twenty-four negroes were killed and one white man was wounded. The conclusion lay near and was generally accepted that the whites had been the aggressors and the negroes the victims. In the last days of July more portentous tidings arrived from New Orleans. An attempt was made by Union men to revive the constitutional convention of 1864 for the purpose of remodeling the constitution of the State. The attempt was of questionable legality, but, if wrong, it could easily have been foiled by legal and peaceable means. The municipal government of New Orleans was in possession of the ex-Confederates. It resolved that the meeting of the remnant of the convention should not be held. When it did meet, the police, consisting in an overwhelming majority of ex-Confederate soldiers, aided by a white mob, broke into the hall and fired upon those assembled there. The result was thirty-seven negroes killed and one hundred and nineteen wounded, and three of the white Union men killed and seventeen wounded, against one of the assailants killed and ten wounded. General Sheridan, the commander of the Department, telegraphed to General Grant: "It was no riot; it was an absolute massacre by the police which was not excelled in murderous cruelty by that of Fort Pillow. It was a murder which the Mayor and the police of this city perpetrated without the shadow of necessity." A tremor of horror and rage ran over the North. People asked one another: "Does this mean that the rebellion is to begin again?" I heard the question often.

The Administration felt the blow, and to neutralize its effects a national convention of its adherents, North and South, planned by Thurlow Weed and Secretary Seward, was to serve as the principal means. This "National Union Convention" met in Philadelphia on August 14th. It was respectably attended in point of character as well as of numbers. It opened its proceedings with a spectacular performance which under different conditions might have struck the popular imagination favorably. The

delegates marched into the Convention Hall in pairs, one from the South arm in arm with one from the North, Massachusetts and South Carolina leading. But with the Memphis riot and the New Orleans "massacre" and Andrew Johnson's sinister figure in the background, the theatrical exhibition of restored fraternal feeling, although calling forth much cheering on the spot, fell flat, and even became the subject of ridicule, since it earned for the meeting the derisive nickname of the "arm-in-arm convention." The proceedings were rather dull, and much was made by the Republicans of the fact that the Chairman, Senator Doolittle from Wisconsin, was careful not to let Southern members say much lest they say *too* much. It was also noticed and made much of that among the members of the convention the number of men supposed to curry favor with the Administration for the purpose of getting office—men belonging to the "bread-and-butter-brigade"—was conspicuously large. Among the resolutions passed by the convention was one declaring slavery abolished and the emancipated negro entitled to equal protection in every right of person and property, and another heartily endorsing President Johnson's reconstruction policy.

No doubt many of the respectable and patriotic men who attended that convention thought they had done very valuable work for the general pacification by getting their Southern friends publicly to affirm that slavery was dead never to be revived, and that the civil rights of the freedmen were entitled to equal protection and would have it. But the effect of such declarations upon the popular mind at the North was not as great as had been expected. Such affirmations by respectable Southern gentlemen, who were perfectly sincere, had been heard before. In fact, almost everybody in the South was ready to declare himself likewise, and with equal sincerity, as to the abolition of the old form of chattel slavery. But the question of far superior importance was, what he would put in the place of the old form of chattel slavery. *There* was the rub, and this had come to be well understood at the North in the light of the reports from the South, which the advocates of President Johnson's policy could not deny nor obscure. The moral effect of the National Union Convention was therefore very feeble.



From the collection of Joseph Keppler

SENATOR CARL SCHURZ

FROM A PHOTOGRAPH TAKEN ABOUT 1879

JOHNSON "SWINGS AROUND THE CIRCLE"

If the members of the National Union Convention thought that their conciliatory utterances would pour oil on the angry waves of the campaign, they reckoned without their host. When a committee appointed for that purpose presented to President Johnson a copy of its proceedings, there was rather a note of defiance to his opponents, than of conciliation, in his response. "We have witnessed in one department of the government every

endeavor to prevent the restoration of peace, harmony, and union," he said. "We have seen hanging upon the verge of the government, as it were, a body called, or which assumes to be, the Congress of the United States, while, in fact, it is a Congress of only a part of the United States. We have seen a Congress in a minority assume to exercise power which, allowed to be consummated, would result in despotism or monarchy itself." Here was again the thinly veiled threat that, because certain States were not represented in it, the validity of the acts of Congress might be attacked. But worse was to follow. It is a well-known fact that presidents, under the influence of the Washington atmosphere, are apt to become victims of the delusion that they are idolized by the American people. Even John Tyler is said to have thought so. It may have been under a similar impression that President Johnson, who had great confidence in the power of his influence over the masses when he personally confronted them, accepted an invitation requesting his presence at the unveiling of a Douglas statue in Chicago, and he made this an occasion for a "presidential progress" through some of the States. He started late in August. Several members of his cabinet, Seward among others, accompanied him, and so did General Grant and Admiral Farragut, by command, to give additional luster to the appearance of the chief.



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SENATOR PRESTON KING

WHOM PRESIDENT JOHNSON APPOINTED COLLECTOR OF THE PORT OF NEW YORK. HIS SUICIDE IN 1865 WAS ATTRIBUTED TO WORRY OVER THE PRESIDENT'S RECONSTRUCTION POLICY

His journey, the famous "swinging around the circle,"—a favorite phrase of his to describe his fight against the Southern enemies of the Union, the Secessionists, at one time, and against the Northern disunionists, the radical Republicans, at another—was a series of the most disastrous exhibitions. At Philadelphia he was received with studied coldness. At New York he had an official reception, and he used the occasion to rehearse his often-told story of his wonderful advancement from the position of alderman in his native

town to the presidency of the United States, with some insignificant remarks about his policy attached. At Cleveland he appeared before a large audience, according to abundant testimony, in a drunken condition. Indeed, the character of his speech cannot be explained in any other way. He descended to the lowest tone of partizan stump speaking. He bandied epithets with some of his hearers who interrupted him. The whole speech was a mixture of inane drivel and reckless aspersion. His visit at Chicago passed without any particular scandal. But the speech he made at St. Louis fairly capped the climax. He accused the Republicans in Congress of substantially having planned the New Orleans massacre. He indulged himself in a muddled tirade about Judas, Christ, and Moses. He declared that all his opponents were after was to hold on to the offices; but that he would kick them out; that they wanted to get rid of him, but that he defied them. And so on. At Indianapolis a disorderly crowd hooted him down and would not let him speak at all.



Lent by the Century Co.

SENATOR JAMES LANE

**ONE OF THE MOST FAMOUS FREE-STATE FIGHTERS IN KANSAS TERRITORY.
HIS DEFECTION TO THE SIDE OF PRESIDENT JOHNSON WAS BITTERLY
CRITICISED BY HIS CONSTITUENTS, AND WAS THOUGHT TO BE RESPONSIBLE
FOR HIS SUICIDE IN 1866**

NEW CONGRESS OVERWHELMINGLY ANTI-JOHNSON

He returned to Washington an utterly discomfited and disgraced man, having gone out to win popular support, and having earned only popular disgust. The humorists, pictorial as well as literary, pounced upon the "swinging around the circle" as a fruitful subject for caricature or satire,

turning serious wrath into a bitter laugh. Andrew Johnson became the victim not only of detestation but of ridicule.

The campaign was then—about the middle of September—virtually decided. There was no longer any doubt that the election would not only preserve, but materially increase, the anti-Johnson majority in Congress. But before President Johnson started on his ill-starred journey, arrangements had been made for the other national conventions. One of them was designed to bring Southern loyalists, that is, Southern men who had stood loyally by the National Government, together with Northern Republicans. It met at Philadelphia on the 3rd of September. Senator Zachariah Chandler and myself attended it as delegates sent there by the Republicans of Michigan. It was a large gathering, the roll of which bore many distinguished names from all parts of the country. Southern members having been permitted to say but very little in the Johnson convention a fortnight before, it was a clever stroke of policy on the part of our managers to give the floor to the Southern loyalists altogether. They availed themselves of the opportunity to lay before the people of the country an account of their experiences and sufferings, since the promulgation of the Johnson policy, which could not fail to stir the popular heart. Their recitals of the atrocities committed in the South were indeed horrible. Over a thousand Union citizens had been murdered there since the surrender of Lee and in no case had the assassins been brought to judgment. But after Mr. Johnson's "swing around the circle" no further exertions could have saved his cause, and no further exertion could have very much augmented the majority against him. I am convinced he would have been beaten without his disgraceful escapade. But his self-exhibitions made his defeat overwhelming. The Republicans won in one hundred and forty-three Congressional districts, the Democrats in only forty-nine. President Johnson was more at the mercy of Congress than ever.

During the canvass I was somewhat in demand as a speaker and addressed large meetings at various places. One of my speeches, delivered at Philadelphia on the 8th of September, was printed in pamphlet form and widely circulated as a campaign document. I have read it again—thirty-nine years after its delivery—and I may say that after the additional light and the experience which this lapse of time has given us, I would now draw the

diagnosis of the situation then existing substantially as I did in that speech—barring some, not many—extravagances of oratorical coloring, and the treatment of the disqualification clause of the Fourteenth Amendment to the Constitution.

THE MOVEMENT TOWARD NEGRO SUFFRAGE

It was in this campaign that the matter of negro suffrage was first discussed on the hustings with a certain frankness. Efforts have since been made, and are now being made, to make the Southern people believe—and, I deeply regret to say, many of them actually do believe—that the introduction of negro suffrage was a device of some particularly malignant and vindictive radicals, to subject the South to the extreme of distress and humiliation. Nothing could be farther from the truth. Admitting that there were people in the North who, before the passions of the War had subsided, wished to see the rebels and their sympathizers and abettors in some way punished for what they had done, negro suffrage never was thought of as a punitive measure. I may say that in all my intercourse with various classes of people—and my opportunities were large—I have never heard it mentioned or suggested, still less advocated, as a punitive measure. It never was in itself popular with the masses—reason enough for the ordinary politicians to be afraid of openly favoring it. There were only two classes of men who at all thought of introducing it generally; those whom, without meaning any disparagement, I would for the sake of convenience call the doctrinaires,—men who, like Mr. Sumner, would insist as a general principle that the negro, being a man, was as a matter of right as much entitled to the suffrage as the white man; and those who, after a faithful and somewhat perplexed wrestle with the complicated problem of reconstruction, finally landed—or, it might almost be said, were stranded—at the conclusion that to enable the negro to protect his own rights as a free man by the exercise of the ballot was after all the simplest way out of the tangle, and at the same time the most in accordance with our democratic principles of government.

This view of the matter grew rapidly in popular appreciation as the results of reconstruction on the Johnson plan became more and more unsatisfactory. It gained very much in strength when it appeared that the tremendous rebuke administered to the President's policy by the

Congressional elections of 1866 had not produced any effect upon Mr. Johnson's mind, but that, as his annual message delivered on December 3rd showed, he was doggedly bent upon following his course. It was still more strengthened when all the Southern legislatures set up under the President's plan, save that of Tennessee, rejected the Fourteenth Amendment to the Constitution,—some unanimously, or nearly so,—and even with demonstrations of contemptuous defiance. Then the question was asked at the North with great pertinency: Are we to understand that the white people of the States lately in rebellion will not agree that all persons born or naturalized in the United

States shall be constitutionally recognized as citizens entitled in their civil rights to the equal protection of the laws? That those States insist, not only that the colored people shall not have the right of suffrage, but that those people so excluded from the franchise shall even serve to increase the basis of representation in favor of the whites—or in other words, that the white people of the South shall come out of the rebellion politically stronger than they were when they went into it? That all those who engaged in the rebellion and fought to destroy the Union shall be entitled to participate on even more favorable terms than ourselves in the government of the same Union which but yesterday they sought to destroy? That they refuse to safeguard the public debt incurred for saving the Union and wish to keep open the possibility of an assumption of the debts incurred by the rebel States for destroying the Union?



SENATOR ZACHARIAH CHANDLER

**WHO WAS SENT, TOGETHER WITH CARL
SCHURZ, TO THE PHILADELPHIA
CONVENTION OF 1866, BY THE
REPUBLICANS OF MICHIGAN**

The fact was not overlooked that the great mass of the Southern negroes were grossly ignorant and in other respects ill-fitted for the exercise of political privileges. Many who then favored negro suffrage would have greatly preferred its gradual introduction, first limiting it, as Mr. Lincoln suggested to Governor Hahn of Louisiana, to those who had served as soldiers in the Union army and those who were best fitted for it by intelligence and education. But this would have reduced the negro vote to so small a figure as to render it insufficient to counteract or neutralize the power of the reactionary element. To that end the whole vote was required; and for that reason it was demanded, in spite of the imperfections it was known to possess and of the troubles it threatened—which, however, at that period were much underestimated, as is apt to be the case under similar circumstances.

RECONSTRUCTION UNDER MILITARY CONTROL

When the session of Congress opened on the 3rd of December, it was virtually certain that unrestricted negro suffrage would come and that President Johnson's reconstruction policy would be swept out of the way. The Republican majority without delay passed a bill extending the suffrage to the negroes in the District of Columbia, which then had a municipal government of its own. The President put his veto on the bill, but the veto was promptly overruled by two-thirds majorities in both Houses. Then followed a series of legislative measures designed substantially to substitute for the reconstruction work done by the President a method of reconstruction based upon universal suffrage including the negro vote, and to strip the President as much as possible of all power to interfere. The first, upon the ground that life and property were not safe under the existing provisional governments, divided the late rebel States into five military divisions, each to be under the command of a general officer who was to have the power to declare martial law and to have offenders tried by military commission, as the condition of public safety and order might seem to them to require. Under their protection conventions were to be elected by universal suffrage including the negro vote and excluding the disqualified "rebel" vote, to frame new State constitutions containing provision for the same sort of universal suffrage, such constitutions to be subject to the approval of the people of the respective States and of Congress. The State

officers to be elected under these new constitutions were, of course, to be elected by the same electorate, and the States were to be regarded as entitled to representation in Congress, after having ratified the Fourteenth Amendment to the National Constitution, and after that Amendment had been ratified by a sufficient number of the States generally to make it a valid part of the Constitution. A supplementary reconstruction act gave the military commanders very extensive control over the elections to be held, as to the registration of voters, the mode of holding the elections, the appointment of election officers, the canvassing of results, and the reporting of such results to the President and through him to Congress. In order to strip President Johnson of all power to interfere with the execution of this measure beyond the appointment of the commanders of the various military divisions, a provision was introduced in the Army Appropriation bill which substantially ordained that all military orders and instructions should be issued through the General of the Army (General Grant), who was to have his headquarters at Washington; and that all orders and instructions issued otherwise should be null and void. And when the generals commanding the several divisions had expressed some doubt as to the interpretation of some provisions of the Reconstruction Act, and the President had issued instructions concerning those points which displeased Congress, another act was passed, which, by way of explanation of the meaning of its predecessors, still further enlarged the powers of the military commanders and made them virtually rulers over everything and everybody in those States. In the mean time, to tie the President's hands still farther, the Tenure of Office Act had been passed, which was to curtail or hamper President Johnson's power to dismiss office-holders from their places so as to reduce as much as possible his facilities for punishing the opponents and for rewarding the friends of his policy, and thus, as it would now be called, for building up an office-holders' machine for his use.

THE PUBLIC FEAR OF JOHNSON

President Johnson in every case promptly vetoed the bills objectionable to him or fulminated his protests against what he considered unwarrantable encroachments upon his constitutional prerogatives. Some of his messages, reported to have been written either by Mr. Seward or by Mr. Jeremiah Black, a man of brilliant abilities, were strong in argument as well as

eloquent in expression. But they were not listened to—much less considered. Mr. Johnson had personally discredited himself to such a degree that the connection of his personality with anything he advocated fatally discredited his cause. The air, not only in Washington, but throughout the country, was buzzing with rumors of iniquities which Andrew Johnson was meditating and would surely attempt if he were not disarmed. He was surely plotting a *coup d'état*; he had already slyly tried to get General Grant out of the way by sending him on a trumped-up diplomatic errand to Mexico. When, therefore, the news came from Washington that Andrew Johnson was to be impeached, to deprive him of his office, it was not only welcomed by reckless partizanship, but as everybody who has lived through those times will remember, it struck a popular chord. There was a widespread feeling among well-meaning and sober people that the country was really in some sort of peril, and that it would be a good thing to get rid of that dangerous man in the presidential chair.

But for this vague feeling of uneasiness approaching genuine alarm, I doubt whether Congress would ever have ventured upon the tragi-comedy of the impeachment.

It explains also the fact that so many lawyers in Congress, as well as in the country, although they must have seen the legal weakness of the case against Andrew Johnson, still labored so hard to find some point upon which he might be convicted. It was for political, not for legal reasons that they did so—not reasons of political partizanship, but the higher political reason that they thought the public interest made the removal of Andrew Johnson from his place of power eminently desirable. I have to confess that I leaned somewhat to that opinion myself—not that I believed in the sinister revolutionary designs of Mr. Johnson, but because I thought that the presence of Mr. Johnson in the presidential office encouraged among the white people of the South hopes and endeavors which, the longer they were indulged in, the more grievous the harm they would do to both races. It can indeed not be said that President Johnson failed to execute the reconstruction laws enacted by Congress by refusing to perform the duties imposed upon him, such as the appointment of the commanders of military divisions. He even effectively opposed, through his able and accomplished Attorney-General, Mr. Stanbery, the attempts of two Southern governors to

stop the enforcement of the Reconstruction Act by the legal process of injunction. But the mere fact that he was believed to favor the reactionary element in the South and would do all in his power to let it have its way was in itself an influence constantly inflaming the passions kindled by mischievous hopes.

THE FATAL BUNGLING OF RECONSTRUCTION

The condition of things in the South had become deplorable in the extreme. Had the reconstruction measures enacted by Congress, harsh as they were, been imposed upon the Southern people immediately after the War, when the people were stunned by their overwhelming defeat, and when there was still some apprehension of bloody vengeance to be visited upon the leaders of the rebellion—as was the case, for instance, in Hungary in 1849 after the collapse of the great insurrection—those measures would have been accepted as an escape from something worse. Even negro suffrage in a qualified form, as General Lee's testimony before the Reconstruction Committee showed, might then have been accepted as a peace-offering.

But the propitious moment was lost. Instead of gently persuading the Southerners, as Lincoln would have done, that the full restoration of the States lately in rebellion would necessarily depend upon the readiness and good faith with which they accommodated themselves to the legitimate results of the War, and that there were certain things which the victorious Union government was bound to insist upon, not in a spirit of vindictiveness, but as a simple matter of honor and duty—instead of this President Johnson told them that their instant restoration to their old status in the Union, that is, to complete self-government and to participation in the National Government, on equal terms with the other States, had become their indefeasible constitutional right as soon as the insurgents laid down their arms and went through the form of taking an oath of allegiance, and that those who refused to recognize the immediate validity of that right were no better than traitors and public enemies. Nothing could have been more natural, under such circumstances, than that the master class in the South should have seen a chance to establish something like semi-slavery, and that, pressed by their economic perplexities, they should have eagerly grasped at that chance. No wonder that what should have been as gentle as

possible a transition from one social state into another degenerated into an angry political brawl, which grew more and more furious as it went on. No wonder, finally, that when at last the Congressional reconstruction policy, which at first might have been quietly submitted to as something that might have been worse, and that could not be averted, came at last in the midst of that brawl, it was resented in the South as an act of diabolical malice and tyrannical oppression not to be endured. And the worst outcome of all was, that many white people of the South who had at first cherished a kindly feeling for the negroes on account of their "fidelity" during the War, now fell to hating the negroes as the cause of all their woes; that, on the other hand, the negroes, after all their troubles, raised to a position of power, now were tempted to a reckless use of that power; and that a selfish partizan spirit growing up among the Republican majority, instead of endeavoring to curb that tendency, encouraged, or, at least, tolerated it for party advantage.

I have to confess that I took a more hopeful view of the matter at the time, for I did not foresee the mischievous part which selfish partizan spirit would play in that precarious situation. I trusted that the statesmen of the Republican party would prove clear-sighted enough to perceive in time the danger of excesses which their reconstruction policy would bring to the South, and that they would be strong enough in influence to combat that danger. Nothing could have been farther from my mind than the expectation that before long it would be my lot to take an active part in that combat on the most conspicuous political stage in the country.

THE THIRTEENTH MOVE

BY ALBERTA BANCROFT

ILLUSTRATIONS BY M. J. SPERO

I KEY stood on the street corner and fingered her veil to keep passersby from seeing her lips tremble. She was sure that she was going to cry right there in the open, and she was furious about it, because she did not approve of weepy females.

"If you dare," she whispered fiercely, "if you dare, I'll—I'll—you shan't have that nickel's worth of peanut candy, or those currant buns, either."

This threat proving effective, she turned, head held high, and entered the bakery.

There was the usual Saturday afternoon crowd, jostling on the shoddy thoroughfare. To-day the jostling was intensified; for the car strike was on in full blast, feeling ran high, and demonstrations were being made against the company. Now and again a car passed slowly up or down the street, drays and express wagons blocking its progress wherever possible, scab conductor and motorman hooted at by San Francisco men and beplumed ladies for their pains.

Ikey looked at the mob in disgust. Then she hurried around the corner and away from the scene of commotion.

"And to think that it has come to this, that I can't ride up and down in those cars all day long—*just to show 'em.*"

The beach was what she really wanted—one of those little sand hummocks with juicy plants sprawling over it, that protect one from the wind and yet reveal beyond ravishing glimpses of cliff and breaker and sapphire shining sea.

But the beach was not to be found in the heart of town. And she was too tired to walk there—not having had any lunch and being very angry besides. And she would lose her "job"—her miserable, wretched, disgusting, good-for-nothing job (Ikey loved adjectives), if she rode. For any and all women connected with any and all union men had been forbidden to use the company's cars. And business houses—who had anything to gain from it—had promised their employees instant dismissal for even one ride. And the firm that employed Ikey would lose three-fourths of its trade if the union boycotted it.

So the sand-dunes would have to wait. But there were some vacant lots, backed by a scraggle of rough, red rock, only half a dozen blocks away. If luck were with her, the loafers might be in temporary abeyance and the refugee tents not unduly prominent.

Luck was with her. And Ikey sat down on the lea of the little cliff, quite alone, spread out her buns,—you got three for ten cents these catastrophe days,—and faced the situation.

The landlady had raised the rent.

Ikey could have screamed with laughter over the situation—if only the matter were not so vital.

"This'll make the thirteenth move for you, Ikey, my love, since the eighteenth of April—and the thirteenth move is bound to be unlucky. But you'll have to go, sure as Fate; for you can't stand another raise. The Wandering Jew gentleman takes the road again."

She pursed her lips as she said it. She had invented the appellation for herself after nine moves in three months. "I don't know what his name really was," she confessed—there was no one else to talk to, no one she cared for, so she talked, sub voice, to herself—"but it must have been Ikey. I'm sure it was Ikey—and that I look just like him." And deriving much comfort from this witticism, she went on her way.

"Ikey, the Wandering Jew, on the move again," she repeated. "But where to move *to*, that is the question. It's funny what a difference money makes"—

her eyebrows went up—"or rather, lack of it. I've never considered that until recently."

Then her eyes fell on her shoes.

They had been very swagger little shoes in the beginning—Ikey had made rather a specialty of footgear—but they were her "escape" shoes; and their looks told the tale of their wanderings. Also, she had had no others since.

She wriggled her toes.

"You'll be poking through before long, looking at the stars," she told them severely. "Imagine your excitement."

And her suit.



"'I'VE BEEN FOLLOWING YOU EVER SINCE YOU LEFT YOUR OFFICE,' HE SAID"

Ikey looked away so as not to see the perfect cut of it, the perfect fit of it, the utter shabbiness of it. It was her "escape" suit, too. She had slept on the

hills in it to the tune of dynamiting and the flare of the burning city. She would never have another like it—never. For her job——

Her job.

She leaned back suddenly and closed her eyes. Her job. The rage of this noon was coming back again; rage, and with it a strange, new sensation—fear. She had never known fear before, not even during the earthquake days. "Only at the dentist's," she told herself, giggling half hysterically behind closed lids.

And back of it all—back of the landlady's unconcealed dislike and latest slap, back of the disintegration of a wardrobe that could not be replaced, and the question as to whether her "job" had not become an impossibility since to-day—and that job simply could not become an impossibility: one had to live—back of all this was the dull hurt, smothered and always coming again, that Bixler McFay had not taken the trouble to look her up when his regiment came through on the way to Manila.

"You may as well face that, too, while you're about it," Ikey observed sarcastically. She opened her eyes with a snap and bit into the first bun.

"The regiment was only here three days," a little voice inside of her whispered fearfully.

"Three days!" Ikey's scorn was unbounded. "If he had cared, he could have found you in three hours—and he always said he cared. It's a thing you've got to live with. It's nothing so unusual. It happens every day. Why can't you treat it like a poor relation?"

And her thoughts went back to Fort Leavenworth, and the gowns on gowns she had worn, all burned up at the St. Francis last spring, with the rest of her things, a week after she had reached the city; and Cousin Mary, suave and elegant and impressive as her chaperon; and herself, petted and made much of on all sides, and incidentally pointed out as the richest girl on the field, and an orphan; and Bixler McFay, handsome, brilliant, devoted, always on hand, always protesting——

A whimsical, sarcastic little smile curved her lips for a moment. The earthquake had certainly made a difference. A vision of Cousin Mary arose—not the suave and elegant chaperon of a wealthy young relative, but a frightened, self-centered, middle-aged woman, who had taken the earthquake as a personal affront put upon her by her young charge and insisted on being the first consideration in no matter what environment she found herself.



"'IT'S A DESPICABLE LETTER,' SHE TOLD HERSELF"

Then came another vision. She recalled her parting with Bixler McFay in the late winter, when she had left Leavenworth for the Coast, saying it wasn't decent not to know anything about the place where all your income

came from, and he had left Leavenworth to rejoin his regiment in Arizona. How his voice had trembled that morning as he bade her good-bye, declaring he should always consider himself engaged to her, even if she did not consider herself engaged to him; begging that she wear his class pin, or at least keep it for him if she would not wear it, because the thought of its being in her possession would comfort him in his loneliness.

It had comforted her in those first dreadful days after the fire to think that he was alive and on his way to her. It never entered her head but what he would come at once: when friends were looking for friends and enemies were succoring one another, how should he fail her?

And then—not one word. Not even an inquiry in the paper; when that was about all the papers were made up of for days after—column after column of addresses and inquiries, along with the death notices.

And afterwards—not one word——

II

"I won't pretend this is accidental, Miss Stanton."

Ikey looked up startled, began to curl her feet up under her skirt, decided that it was not worth while,—he was only one of the boarders,—and offered buns and candy with indifferent promptness.

"There's a gang of toughs coming down over the hill. Strikers, maybe. I thought they might startle you."

He seated himself unceremoniously on a rock near by.

Ikey settled back with a little comfortable movement against her own rock and raised her eyebrows.

"The proper thing for me to do at this stage is to inquire in a haughty voice how you happened to know I was here."

"I followed you."

There was no hint of apology, and she looked at him more closely. She had sat opposite him at the unesthetic boarding-house dining-table for the past six weeks now. He ate enormously,—but in cultured wise,—never said anything, was something over six feet tall, wore ready-made, dust-colored clothes, and was utterly inconspicuous. "Like a big gray wall." Just now it was the expression of his face, intangibly different—or had she never taken the trouble to notice him before?—that fixed her attention.

He was looking straight at her.

"I've been following you ever since you left your office," he said after a deliberate pause; and Ikey's eyes grew large and frightened as she took in his meaning.

"Then you saw——"

"I did." There was another pause. "It won't happen again." His tone was quite final. "Why do you lay yourself open to that sort of thing? Don't you know that the burnt district is no place for any woman at all these days—not even one block of it? Why don't you ride?"

His voice was quite cross, and Ikey could have laughed aloud. This, to her, who had the burnt district on her nerves to such an extent that she dreamed of the brick-and-twisted-iron chaos by night—the miles of desolation, punctuated by crumbling chimneys and tottering walls—dreamed of it by night and turned sick at the sight of it by day. Did this stupid hulk of a person think she *liked* the burnt district—and to walk there?

After all, his attitude was less funny than impertinent. She would be angry. It was better. She would respond icily and put him in his place.

At least, such was her intention. But she discovered to her amazement that she was trembling—her encounter of the noon was responsible for that—and her teeth seemed inclined to hit against each other rapidly with a little clicking noise. So it seemed on the whole more expedient to blurt out her remarks without any attempt at frills or amplification.

"Why don't you ride?"

Ikey gathered herself together.

"My dear Mr. Hammond, there is a street car strike on here in San Francisco. No union wagons run out this way—and I lose my position if I use the cars."

He was welcome to that. She looked off into the distance while he assimilated it.

"I had not thought of that," he said at last slowly. "In that case there is but one thing to do. You must stop that work at once."

"And stand in the bread line? Now? Along with—those others?" A little smile twisted her lips. "I should look handsome doing that."

"But surely——"

His tone was beginning to be puzzled. So was his expression. Ikey ascertained this by allowing a glance to brush past him.



"HOW DO YOU SUPPOSE I FEEL, BEING IN THIS POSITION—TO YOU?"

Suddenly he had changed his position. He was beside her on the ground, facing her, staring her out of countenance.

"We may as well get the clear of this right now——"

"It is needlessly clear to me, Mr. Hammond."

"But not to me. In the first place——"

"I will not trouble you——"

"It is no trouble. In the first place, has that fellow followed you, spoken to you before?"

"Never—never like that."

She wondered whether he had noticed her unsuccessful effort to rise and put an end to the interview.

"Do you know who he is?"

"He is the junior member of the firm I work for."

"*What!* Well, I *am* glad I smashed him." Then he added quickly, "This, of course, puts an end to your going there, at once. You've been at it too long anyway. It's stopped being a joke, and as a pose——"

"Pose."

The intonation was subtle. A moment's bewilderment, and he burst out, "You're not doing this because you—*have* to?"

"That—or something."

"But—but—Good Lord, child! Where is your money?"

With pomp and ceremony—but languidly withal, for her head was beginning to ache, and she wanted desperately to cry—she laid her purse in his hand. But she did not look at him.

The big hand closed over the flat little thing impatiently.

"I am referring to your bank account."

"And by what right——"

"We'll settle that later. The banks have opened up again——"

"That's all I have."

"But what has become—You're not going to faint?"

"No."

"Then what has become——"

Quite against her will she was beginning to find herself faintly amused. Of all pigheaded, impertinent people, this individual with whom she had hardly had more than five minutes' conversation, except at meal times during the past six weeks, was certainly the worst.

"I really must know, Miss Stanton, what has become——"

"I gave it away."

"You—gave it—*away!*" Italics could never do justice to his intonation. He was staring at her as though he considered her demented. "To whom?" came his indignant question.

After all, why not tell him? It was none of his business; and he was desperately impertinent; but she was desperately forlorn; and, though it could not better the situation to talk about it, it might better her feelings.

She slipped farther down against her rock; and he bent forward, listening intently.

"I gave it to—a relative. She was living with me at the time of the fire. We had only just come up from Los Angeles—because I wanted to—I had some property here; all my income came from it; and I felt I ought to know more about it—in case anything happened. And after the earthquake she acted as though I had led her up to the—jaws of death—and pushed her in—and later she was so afraid of typhoid—and everything. And so—at last, when the banks opened up again—I gave her all the money I had in the bank—and she went East right away—and I stayed here."

"With nothing?"

"I had fifty dollars. I was doing relief work at the Presidio, waiting for the vaults to cool off—I had a lot of paper money in a box there—and for the

insurance companies to pay—and for the man who looked after my affairs to get well: he'd been hurt in the earthquake. But he didn't get well: he had a stroke, instead, and died. And his partner—they were lawyers—went away; all their books and papers and everything had been burnt up, and he didn't seem to think he could ever straighten things out; and when the vaults were opened, the paper money I had in the box was all dust—and the insurance companies haven't paid."

She shrugged her shoulders delicately over the situation, already disgusted with herself at having descended to disclosing her private affairs to a stranger.

Meanwhile, "So that's it," the stranger was saying. "I've wondered a lot."

"You needn't have troubled."

"No trouble," he blandly assured her. "Houghton always was an ass"—(Houghton was the younger lawyer. How had he known? the girl wondered)—"lighting out for Goldfield when he ought to be here, straightening out his clients' business. And so you went to work on some beggarly salary, instead of seeing about having your property put in shape again. Why didn't you lease, or——"

"I couldn't find out where it was," she retorted, furious. "I'd only been here a week when the fire came; and not for years before that."

——"and not put yourself in a position where you get insulted by some little scrub who isn't fit for you to walk on.—Are you going to faint?"

"No."

"Then what's the matter?" inquired the clod at her side.

"Nothing," she fibbed promptly. How different this creature was from Bixler McFay! Bixler had never pried into her private affairs, or evinced an interest in her possessions, or insisted on answers she did not wish to give, or pursued topics she did not care for. Bixler had none of the bluntness, the pigheadedness, the brutality of this—but then, there was no comparing the

two. Only, she had vowed not to think of Bixler any more. He was not worth it.

"Nothing's the matter with me," she said. "Only, when I got back to the boarding-house after—after downtown to-day, the landlady said I'd have to pay sixty a month or leave at once, and—and she hadn't saved any lunch for me, and——"

"And you've been eating——"

He looked at the candy-bag and the morsel of bun with horror.

"I thought they'd cheer me up," Ikey murmured meekly, "but they've made me feel—kind of queer."

"That settles it." The big hand came down forcefully upon his knee. "We'll get the thickest steak you ever laid your eyes on in about two minutes. But first—we'll get married."

"What!"

III

What happened after that Ikey could never clearly remember. Bits of the ensuing conversation came back to her, memories of the sickening rage, the stupefying bewilderment that possessed her, and the exhaustion that followed. But order there was none. And she was sure she never got the whole of it.

At one stage in the proceedings she had observed in a haughty voice that she did not care to have his sympathy—or pity—take that form.

"Oh, it's not that," he assured her pleasantly; "but I'm tired of knocking around the world alone. I need an anchor. I think you"—he looked at her impersonally, but politely—"would make a good anchor."

"You mean you want me to reform you!"

He smiled a careful smile.

"No-o. I don't feel the need of reforming. There's nothing the matter with me——"

"How lovely to have such a high opinion of oneself."

"Yes. Isn't it? But as I was saying——"

At another stage she tried to take refuge behind the usual platitude: she did not love him.

He considered this—at ease before her, his hands in his pockets.

"Well, when it comes to that, I don't love you, either"—Ikey gasped—"but I don't consider that that makes any difference."

Another break.

Then, "What'll you do, if you don't?" he had asked her in a businesslike manner. "You're just on the verge of a breakdown"—She knew it; and his tone of conviction did not add to her sense of security—"Another scene like to-day's would upset you completely. You say you have no friends or relatives here; and there's no one you want to go to away from here. And besides, I can look after you a great deal better than you can look after yourself."

There must have been much arguing after that. There must have; for she had not the slightest intention of being disposed of in this medieval fashion. But in the midst of some determined though shaky sentence of hers, he had said quite kindly and finally that they need not discuss the matter any further—besides, she had to have a good stiff lunch right off—and had piloted her carefully, but with no over-powering air of devotion, out of the empty lots, around the corner, and into an automobile.

"It was all the fault of that wretched beefsteak," mourned Ikey an hour or two later. "If I'd only had it before, it never would have happened—never. I shall always have a grudge against it. What am I to do now?"

The automobile had conveyed them smoothly, first, to a clergyman's, of all people; next, to a restaurant; then, to the boarding-house, where her few belongings had found their way into a telescope basket; and now it was conveying them through the bedraggled outskirts of the city into the country beyond.

A hatchet-faced chauffeur was manipulating things in front; while the unspeakable man in gray sat unemotionally beside her in the tonneau and looked the other way.

"What am I to do now?" The bewildered girl found no answer to the one question of her mind. "Why don't you faint?" she asked herself severely. "Why don't you faint? If you had an idea of helping me out of this pickle, you'd do it at once, and never come to at all, and then have brain fever. It's the only decent solution. Instead of that, here you are, feeling—actually comfortable."

She stared ahead of her with miserable eyes.

"It was all that miserable beefsteak. The thing must have been six inches thick. Beast; why couldn't he have taken me to the restaurant first? Then I'd never have gone to the clergyman's. And that license. Where did he get it? We never stopped for one—he just pulled it out of his pocket, as though it had been a handkerchief. Ikey, you're married, *married*—do you quite understand?—to a man who wears ready-made clothes and doesn't love you and lives in an attic boarding-house bed-room. And what is he doing with this automobile? And what is his business? Oh, he's probably a chauffeur; and he's borrowed his employer's bubble; and this other chauffeur in front's his best friend and ashamed of him on account of the beefsteak business. He'd better be. But what shall I say to him? What shall I *say*?—Oh—h"—heaven-sent inspiration—"I'll say nothing at all. I will be—so different."

On and on and on went the machine. The girl closed her eyes upon the dusty, dun-colored landscape.

"Serves me right for turning over my bank account to Cousin Mary and—and——"

She had fallen asleep, propped up in her corner of the machine—worn out by this climax to the weeks that had gone before.

The man at her side turned and looked at her. His face no longer wore its placidly and conventionally polite expression.

IV

"The thirteenth move. Didn't I say it would be unlucky!"

Ikey had fled to the garden, letter in hand, to review the situation. The low clouds threatened rain. But what did that matter? The house stifled her with its large, low, mannish rooms and continued reminder of Arthur Hammond; and she had to think—think—think everything out from the very beginning.

That first evening—when she wakened in the dusk at his side in the automobile and stared bewildered at the dim outline of the low, rambling brown house tucked away among shrubbery under a load of vines—how quick he had been to reassure her, to explain that a friend of his, who had expected to come here with his bride, had had to go to Mexico instead and had asked him to occupy the bungalow until their return. A woman and a Chinaman went with the place; and she would have the run of a large garden. She could get rested there; and he could go to and from town every day.

And the days that followed—how careful he had been; how matter-of-fact and unemotional; never touching her; never making any sudden motion towards her; never referring to that short ten minutes at the clergyman's; never going near the two rooms the respectable English housekeeper had conducted her to that first evening.

"Almost as though he were trying to tame a bird," she had thought half whimsically, after the first days, when the feeling of weariness and fright had worn down and a great relief and great thankfulness had taken its place, that she should never see the boarding-house again with its sneering, insulting landlady, or the office where that man with the eager, shifty, cruel little eyes held rule.

And so she had set herself about it, resolutely, though bewildered, to be an anchor to this big, unemotional young man who had so suddenly come out of the background of her existence and was occupying all possible space immediately behind the footlights.

She did not at all know what an anchor did, or said, or how it acted. But the very perplexity for some reason or other sent her spirits sky-high. And she pottered about the garden with him, and whizzed about the country in the automobile,—it belonged to the same friend who wanted him to look after the place,—and poked about the queer, rambling house, content to see no one else and talk to no one else and amazed at herself that this should be so.

Only once had he made any reference to their situation, when he suggested that it might be as well under the circumstances for her to call him Arthur.

"I shall never call you Arthur. Never," she told him hotly. "I loathe the name. Always have. It sounds so deadly respectable."

"You don't care for respectability?" His tone was so affable.

Ikey considered. "It may have advantages, in some cases. But——"

"Then what am I to be called?"

She might have retorted that she should call him nothing at all: he never addressed her by any name. Instead, she answered, "Boobles."

"Boobles?"

"Boobles," she repeated firmly. And then came laughter. Ikey's rages had a way of breaking up in inconvenient bursts of hilarity these days.

But what difference did that make now? What difference did anything make?

"I don't see," Ikey said to herself desperately, "what makes me so stupid. I'm afflicted with chronic mental nearsightedness. Most distressing. This is really a tragedy I'm mixed up in—a tragedy. And tragedy's a thing I never cared for."

She collapsed miserably on a bench and stared at the letter.

"It's queer how tragedy and going to sea give you the same feeling."

It was not pity—oh, no—that had made him want to marry her. And it was not love. And it was not because he needed an anchor. Not he. He was not that kind. It was simply because she was his opportunity. Yes; that was the word. And she had never suspected.

Not that afternoon in the vacant lot, when he had inquired so exhaustingly as to her bank account.

Not the next week, when he appeared from town in the middle of the afternoon, all unheralded and paler than ordinary, with papers to sign, and the exhilarating news that the insurance companies had paid up, and a new bank-book with her name and comforting fat figures in it.

How desperately glad she had been over that. For hot shame possessed her at her appearance—shabby clothes and hardly any of them, when his ready-made dust-colored garments had immediately been replaced by the well-fitting blue serge that was her special weakness in masculine attire. She had invested heavily in frills and slowly regained her self-respect.

And not when he had appeared with a list of her property—how had he come by that list?—stating that he had made arrangements to lease certain pieces and rebuild at once on the others, and asking her approval of the final arrangements.

She had not suspected him then, either, idiot that she was. She had been too busy being rested, being thankful, being happy in the big garden, tucked away from the people who had failed her and the ghastly city and the memory of its great disaster.

She turned to the letter again. Bixler McFay had always written a good letter. This time he quite surpassed himself.

Heart-broken, unreconciled; his hopes shipwrecked; his faith destroyed. How could she have treated him so? She had been practically engaged to

him; and she had left him a prey to every horrible emotion at a time when one word would have put his mind at rest. No clew as to her whereabouts by which he could trace her.

She passed that over with her little crooked, sarcastic smile. She had telegraphed and written both—and the second letter had been registered. He had probably forgotten that little fact. But it was of little consequence now. The sting lay in what followed.

And then what did he learn? the letter inquired. That a man he supposed to be his friend, a fellow he had met daily in Arizona for a couple of months at a time, had systematically pumped him about her; had taken means of ascertaining her financial status, and, recognizing her as his opportunity (that was where the word came from) had rushed off to San Francisco, married her hand over fist, and launched himself as a capitalist—on her capital. And she had allowed it.

The girl dropped the pages in her lap. Her little fist came down on top of them.

"It's a despicable letter," she told herself hotly. "And what he thinks to gain by it, I don't know. He just wants to make trouble.—And he has," she breathed with a downward sigh.

The question was, what to do now. And pride stood at her elbow and pointed out the only course.

This Arthur Hammond, this big, quiet, self-contained, efficient, indifferent young man—whose opportunity she was—must never know that she knew, or, knowing, cared.

That was the only solution. Pride forbade a scene—on his account; on hers; on Bixler McFay's; on everybody's, when it came to that. No one should know—anything.

"After a while I shall get quite old and pin-cushiony," she assured herself, "and pricks won't prick; and nothing will matter. I must be quite affable, and quite indifferent, and always polite—for women are only rude to men they

care about." Her lips trembled. "It's all happened before, hundreds of times to hundreds of women—and money is very interesting to men—and there's no reason why this shouldn't happen to you, Ikey, dear—and a hundred of years from now it won't make any difference anyway.

"But I'll never tell him anything again——"

For latterly she had told him many things about herself—young lonesomenesses that nothing could dispel; family hunger for brothers and sisters and all the ramifications of a home; and, half unconsciously, her utter content with the present. She turned hot at the thought of it all.

"But one thing I won't stand." She jumped up and made for the house. "He shan't have my photograph on his dressing-table."

She had seen it there one day on passing his open door, and had wondered, wide-eyed, how he came by it—it was one she had had taken in the East—and had felt unaccountably shy at the thought of asking him about it.

She tore into the house, to get it, to destroy it, to tear it into tiny bits, and trample upon it—at once, without a moment to lose—when, rushing up the porch steps, she collided with the one person of all others she least expected to see.

V

Late afternoon. The house was very still. Outside, the rain was falling, falling, and the shrubs bent under their burden of shining drops. Inside, the fire crackled and whispered and the girl lay in the big armchair and looked around the room.

The fireplace; the big, rich rugs; the dark paneling; the fine, unemotional pictures—no wonder the whole place had reminded her of Arthur Hammond. She ought to have known. She ought to have known.

She heard his step in the hall. His door banged, once; twice; again. Then, his voice, asking Eliza some question, and the murmur of the housekeeper's reply.

Then he came in.

She did not speak or move, and his, "Good-evening" was presently followed by the easy question: "What's the matter?"

Then she turned on him.

"Is it true that this house belongs to you?"

A pause. Then he answered slowly,

"Yes."

"And the grounds?"

"Yes."

"And the automobile—is yours?"

"Yes."

He stood quietly watching her. She knew it, though she did not look at him. She took a deep breath.

"Those insurance companies have not paid," she said in a stifled voice. "You told me they had. You—you gave me—Where did all that money come from I've been spending?"

"Well, I suppose originally it was mine."

"Then it's true you are a millionaire?"

"Ye-es. Just about, I guess."

"And my property—all those buildings that burnt up were mortgaged and—and I couldn't have rebuilt—and everybody knew it—except me. The money that's putting them up again——"

"I arranged about that. But what difference does it make?"

"What did you do it for?"

"I thought you'd feel better to have an income again—and on account of other people, too. It made me hot to have you treated as though you were—just anybody at all—simply because your income happened to be short for a time. And—and I thought you'd rather have it that way than take it from me—at the first," he ended lamely.

She jumped up and confronted him, white with rage.

"How dared you do that? How dared you? How do you suppose I feel, being in this position—to you?"

"I hope you don't feel at all. And besides—But how did you find out about this?"

"Cousin Mary has been here," the girl burst out, losing all idea of keeping anything back. "She had all sorts of things to say: how badly she'd been treated—how she was shipped off East, and I never wrote to her, nothing about my affairs, or that I was married, or anything. She couldn't talk enough. She said everybody sympathized with her, because her prospects were ruined, because the companies I'd insured in wouldn't pay and my land was mortgaged so I couldn't rebuild. She knew that—and she'd never told me. And then she spoke a piece about my conduct in getting married and never telling her a word about it beforehand. She said she was mortified to death to have to learn about my marriage from strangers—strangers—just accidentally. But there wasn't anything she didn't know: that you were a millionaire, but very eccentric and not given to going around like a rational being—in society; and that you had places around in different States and always made it a point not to know your neighbors, so you wouldn't have them come dropping in interfering with you; and that you were amusing yourself now with putting my affairs on their legs again; and how lucky it was for me; and how strange it was, when I was making a brilliant marriage, not to make it, at least, in a dignified, even if not in a brilliant manner, with a church wedding and all. There wasn't anything she didn't know. I believe she used detectives to find out. And she ended up by saying that she had a lovely disposition and would forgive me—I could have killed

her—I was her only first cousin's only child—and she was coming here to live."

"The deuce she did!"

"But what did you do it for?" She turned on him furiously. "What did you do it for?"

"Yes—but where's this Cousin Mary?"

"We had a scene—at least, part of one: we didn't either of us say half we wanted to—and she's left. She'll probably decide in the end, though, that her disposition's lovely enough to overlook it, and insist on making her home with her eccentric millionaire cousin-in-law—What did you do this for?"

He stood there, frowning in perplexity. Then with a sigh of relief, "Supposing we sit down," he said, as one who has a happy inspiration. "I don't know as I can explain this to your satisfaction—exactly. But I'll try. It seemed to me—Don't you know, I thought—Hang it all, that King Cophetua business—was that the chap's name?—never did appeal to me a little bit. I'm dead sure that Beggar Maid had it in for him from the start for his beastly condescending ways to her. And I was afraid you might think—you see, it seemed to me that when your affairs were back in the position they ought to be, perhaps you'd feel better towards me."

He looked at her with boyish entreaty in his eyes. It was as though she were suddenly in the room with a new person. The expression of his face left her breathless.

"Then you came to that boarding-house deliberately to——"

"I did. Deliberately to let you get a bit used to me. It might have upset you to have a perfect stranger come up and marry you offhand."

"But—but"—she gasped.

She was flushed to the eyes. Suddenly he turned and switched on the electric lights. Then he turned back and looked at her—hard. The rose

deepened.

"Surely, you're not pretending to tell me," he said slowly, as one thoroughly bedazed, "that you don't know I'm so looney about you my hand shakes whenever you come into the room?"

The girl looked away.

"You said that day—that day—that day, you know——"

"Well?"

"You said most distinctly that—you didn't love me."

He turned an exasperated face toward her.

"Said that? Of *course* I said it. What did you expect me to say? How apt would you have been to have taken me——"

"*Taken* you!"

"——if I'd come up with the confession that your eyes set me crazy and the impudent tilt of your little nose was very much on my nerves? Supposing I'd told you that you bowled me over the moment I saw you—It's God's truth. I saw you at the theater in New York just before you left for Fort Leavenworth. I followed you there, but nothing that wasn't brass buttons seemed to be having an inning; and I didn't care to meet you at all, unless I could win out. So I left and went down to Arizona, where there was some land business I had to look after. Then McFay came down there and talked a good deal with his mouth; and I was sure it was all off and was doubly glad I hadn't met you. Then came the news of the earthquake and the fire; and I kept waiting for the beggar to get leave and go to you—and he didn't go. And then one night he—well, he was drunk, or he wouldn't have done it—but he talked some more with his mouth; and so I knew what to expect from him and—er, removed your photograph from his rooms—he hadn't any business having it around for men to stare at, anyway—and then I came here to find you; and—and that's about all, I guess."

He laughed an embarrassed laugh.

"I was pretty well done for before—it seems to me everybody I met kept talking about you—but the boarding-house business finished me completely. There were you—you'd lost more than all that trash put together, and had been badly treated, and all—but you held your head high and never peeped and made that dining-table a thing to look forward to beyond everything. No wonder the landlady hated you. I could have kneeled down and kissed your little boots—not that you'd have cared about it especially."

He laughed his boyish, embarrassed laugh again.

"But to go back a bit—how apt would you have been to have taken me—after your experiences and that cur down at your office, besides—if I'd have trotted up and told you how I felt and asked you please to have me? How apt would you have been? I got the license and kept it dark and bided my time. There was nothing else to do—then."

They were standing again, facing one another, wide-eyed, and both rather breathless.

The girl turned away.

"I won't be humble," she whispered to herself tremulously. "I won't. It's a wretched policy for women, and the effects are dreadful on men."

She trailed away towards the other end of the room.

"I'm not Ikey any more. I'm not the Wandering Jew. The thirteenth move is a glorious move, and I've come home—to a man in a million."

Aloud she observed disdainfully, "The whole performance from beginning to end has been unspeakable—simply unspeakable; and I insist——"

She had reached the bay-window and pressed her little nose tight against the window-pane.

"I insist you're no gentleman," came her muffled, shaky voice from behind the curtains, "or I wouldn't have to be standing here quite by myself, waiting for you to come over here and—and kiss me."



GIFFORD PINCHOT, FORESTER

BY WILL C. BARNES

ILLUSTRATED WITH PHOTOGRAPHS

FOR almost a century the unoccupied government lands of the West have been used as a public commons. The stockmen have used the grass and water; the mining, sawmill, and railroad men the timber; until—simply because no one made it his business to object to the spoliation that was going on—what had been done wholly on the suffrance of the national government had come to be regarded and most lustily defended as an inherent privilege and right.



GIFFORD PINCHOT

And so when, a decade ago, the tall, pleasant-voiced young man from the far East, now known throughout the United States as Gifford Pinchot, the national forester, appeared in the West, and suggested to the stockmen that they were ruining the country by over-grazing, they laughed him to scorn.

He told the mining and sawmill men that through reckless and extravagant methods of lumbering they were bringing on a timber famine by great strides; he characterized their whole policy as one of utter disregard for the future of the country; and he demanded forcible and immediate action on the part of the Federal authorities. These pioneers had seen uncounted millions of buffalo melt away because no one took enough interest in the

matter to stop the wanton waste. They had seen great billowy prairies, once knee-deep in the most splendid covering of grass and vegetation, grazed down until they were hardly more than dust heaps; and mountains that were clothed with magnificent forests swept bare—first by the woodsman's ax and later by forest fires that burned each year millions and millions of feet of the finest timber a country ever possessed, while no one raised a hand even to quench the fire because "it was only government land."

THE FIGHT AGAINST THE "PINCHOT POLICIES"

These hard-headed, adventurous Western pioneers, indignant at the thought of any curtailment of their freedom; resentful of interference in what they were pleased to call their "inalienable right" to do as they pleased with the country they had conquered; utterly regardless of its future, and thinking but of the present and their own selfish interests, arose in their wrath and protested vigorously against what they called the "Pinchot policies" of the government.

That the writer, then a range cattle-raiser in Arizona, was one of the first to feel the effects of the new forest policy gives him all the more right to speak as he does of these things; that he joined with loud tongue and bitter pen in the general denunciation of the "Pinchot policies" makes it all the more a pleasure to him now to defend and explain them in so far as he can.

Although there had been a small start toward forest preservation, it was not until Mr. Pinchot was placed at the head of the movement in 1898 (six years after the first reserve was made), and organized and reconstructed the force of officials, that we really had any national forest policies worth mentioning.

His enemies first attacked his motives. He was a "notoriety seeker," a "political adventurer" looking for personal advancement. To their surprise they found that he showed not the slightest disposition to exploit himself; that, having millions at his command, he could expect to gain nothing financially by his course; and that he was absolutely devoid of any political ambitions.

They then took another point of attack. "He is an Eastern swell who knows nothing of forests, or the West and its needs. By what right does he tell us how to use the public lands?"

And again they found him invulnerable, for, after graduating from Yale in 1889, he had made a systematic and thorough study of forestry. He traveled in Europe, through Russia, on the great steppes of Siberia, in the Philippines, and in every part of the United States where there were forests he investigated conditions and studied the water problem, the grazing of cattle and sheep, and the effect of lumbering and forest fires. There is hardly a corner of our whole Western country from the Missouri to the Pacific where forests are found that he has not visited and inspected. Days, weeks, and months spent on horseback and on foot in the roughest, most inaccessible portions of the Rocky Mountain region from the Canadian to the Mexican line have made him familiar with every problem of forest preservation. He has studied the attendant and equally important question of watershed protection and utilization of the mountains for conserving the sources of all our great Western streams, by which millions of acres are to be irrigated and millions of homes built up in the West. He was from the first no "tenderfoot" adventurer, no visionary enthusiast, but a practical, hard-headed man far more earnestly and disinterestedly concerned in the Westerners' future than they themselves had ever been.

Born in Simsbury, Connecticut, in 1865, of old New England ancestry, Mr. Pinchot is just in the prime of life. A man of tremendous energy and resourcefulness, tactful, quick to see a point, frank to admit his errors, open and friendly in his intercourse with all men, and in the game of politics the equal of any one in Washington, he is giving the best years of his life to a cause that will bring him no personal advantage save a place in our national history greater than that of great generals and war captains. For while their armies destroy, his little army is saving and preserving; while their forces are ever non-productive, he and his small force are making "two blades of grass grow where one grew before"; are building up and developing to the uttermost the great region lying around and about the national forest areas.

TRAINING AN ARMY OF FORESTERS

Mr. Pinchot rapidly gathered about him a force of expert assistants. The forest schools in the East were just turning out their first crop of young men, trained and educated as scientific foresters, and he brought them into the work. A year or two in the forests, mapping, scaling, estimating, and studying the western timber conditions, made them practical as well as scientific. The old sawmill men, themselves educated in the college of "Hard Knocks," first laughed at these college-bred foresters, but soon learned to respect and trust them. They began to adopt their plans and follow their suggestions, and to-day one of the most serious embarrassments the forester has to meet is the continual hiring away from him of his best men by the Western lumber and sawmill men, who offer salaries far beyond what the government pays.

To handle the stockmen's interests—by far the most difficult and perplexing of all the problems connected with the administration of the national forests—Pinchot went to the Southwest and persuaded one of the most intelligent and level-headed young stockmen in the country to become head of the grazing department. A. F. Potter had been for years a cow-boy and range cattleman, then for several years a sheep owner, and not only knew every branch of the stock business through practical experience, but had the administrative ability to handle successfully the intricate and perplexing questions of ranges, priority of rights, effects of grazing, and methods of handling stock that must be passed upon. With this corps of assistants, and with Mr. Overton W. Price, a man second only to himself in ability, as his chief lieutenant, Mr. Pinchot began in earnest in the year 1898 the work of saving the remaining forested areas of the United States.

A few years ago the mining men, lumbermen, and the stockmen were almost united in their opposition to the policies of the Government Forest Service. Then the mining men found to their surprise that instead of being ruined and forced out of business they were being helped. If a miner had a valuable claim on some national forest lying idle, the forest ranger of that district saw that not one stick of timber upon it was cut by unauthorized persons. In the past, when a miner returned to his claim after a year's absence, he generally found it stripped of the timber which some day he would need for its development. Under the new service, he discovered also that, when there was no timber on his own claim, he could buy at a

reasonable figure all the timber he desired for the development of his mine. In many cases, in southern Arizona, for instance, where the wood haulers were in the habit of taking from the miners' claims fuel which they would be likely to need for their engines sooner or later, the rangers stopped the practice and gave the wood haulers other areas from which to cut, where no such injury to the miners would result.

LAND PIRACY CHECKED

Of course, where mining companies, organized solely to obtain vast areas of timber land, under cover of the mining laws, especially the Timber and Stone Act, and the Placer Mining laws, found their work exposed by the activity and watchfulness of the forest officers, they naturally raised a cry against the Service that woke the echoes.

The Placer laws allow a company to obtain title to twenty acres of land simply by showing five hundred dollars' worth of mining work done upon it. No signs of mineral need be shown, no further attempt to develop it is required. Prove that five hundred dollars' worth of work has been done, and the patent is issued. The takers are not limited to a single tract, but can have just as many tracts as they have sums of five hundred dollars to invest. Under this Placer law whole townships, covered with the finest timber on the Pacific coast, were taken up solely to obtain title to the land for the timber upon it.

Wherever the final patents had not been issued on these lands, the Forest Service stepped in and put a stop to it, thus saving thousands of acres of timber land for the people. Small wonder that these licensed pirates look upon a forest ranger as the embodiment of all that is bad, and the forest policy as an encroachment upon sacred vested rights!

THE CASE OF THE WOOD HAULERS

And the poor wood haulers! How they complained because they thought their divine right to cut and slash as they chose was to be invaded! What happened to them? To-day they are better off than ever. True, they pay a

little for the wood—from as low as ten cents a cord in some forests up to fifty cents in others. But what do they get in return for it?

If a wood hauler wants to buy ten cords of wood or any amount up to fifty dollars' worth, he simply goes to the nearest ranger, and in ten minutes the deal is over; the ranger accompanies him to the area where he wishes to cut and shows him by marks and bounds just where he may cut; the trees are marked, and the man sets to work knowing full well that no one else will invade this little tract or steal his wood when it is cut and piled up waiting for him to haul it away, as was the case over and over again in the old days of free and unlimited competition.

HOW THE GOVERNMENT SELLS TIMBER

What of the next class, the sawmill men? Every stick of matured, merchantable timber in the forests, not needed for protection of watersheds, is for sale. By matured timber is meant a tree that has reached its maximum growth and development, and is beginning slowly to deteriorate, and should, like any ripe crop, be harvested. There is no limit either high or low. In New Mexico one contract for 1907 called for 50,000 feet and another for 10,000,000, and each was made and carried out under the same conditions; little man and big both got the same square deal.

"But," cry some of the politicians with both eyes upon the political barometer, "the Forest Service, in selling lumber by such methods, is playing into the hands of the Lumber Trust and boosting prices."

What are these methods? If a citizen wants to buy some saw-logs for his mill, he goes to the nearest forest officer and states his case, indicating where the timber lies that he wishes to cut. A careful survey and cruise of the timber is then made by experienced and competent men trained especially for that work. If they report favorably upon the cutting, a minimum price is set at which the timber will be sold, and the sale is duly advertised for thirty days, if it amounts to more than one hundred dollars in value. If it comes to less, the forest officer on the ground makes the sale without delay. When the bids are opened, the highest bidder gets the timber.



A SECTION OF THE BIG HORN NATIONAL FOREST, WYOMING, SHOWING THE FOREST SERVICE METHODS OF LUMBERING. A CERTAIN PROPORTION OF THE TREES HAVE BEEN LEFT STANDING FOR SEED PURPOSES. THE REST HAVE BEEN CUT CLOSE TO THE GROUND, TO AVOID WASTE, AND THE BRANCHES PILED AT A SAFE DISTANCE FOR BURNING

There is seldom much competition on the small lots, but the large tracts are frequently bid up to very much more than the minimum price set by the forest expert. In New Mexico, for instance, several large sales were made in 1907, where the keen competition ran the price up from three dollars, set by the Service, to five and six dollars a thousand. Surely this was not playing into the hands of the Lumber Trust.

"TWO BLADES OF GRASS WHERE ONE GREW BEFORE"

Moreover, when the buyers come to cut, the ranger marks each tree, leaving out all those below a certain size for future growth, and also a certain number for seed purposes, that reproduction may follow. Again, the buyers are required to cut the stumps low, generally at a height equal to the

diameter. Under old methods they cut them off high up, where it was easier for the ax and saw men to work, thus leaving in the stump a waste equal to more than ten per cent. of the measured value of the tree. "Two blades of grass" here surely!

Under the old methods, if the logs had to be "snaked" out, the loggers took the shortest cut, and if that cut led through a dense thicket of young trees, the logs were dragged through them, so that millions of young trees were destroyed each year by this recklessness alone. To-day the ranger sees to it that they go around such little groves, or, if it is absolutely unavoidable, a straight and narrow way is cut through them to which the loggers must keep, thus reducing the damage to the minimum. "Two blades of grass" here also.

In the old days of reckless lumbering only the best of the tree was used. A single log was taken, and the rest left to waste. Now the watchful "scaler" sees to it that the logs are cut with judgment, so as to utilize every foot of saw timber.

When the logging is finished on a tract, according to the government contract, the brush must be carefully piled by the lumberman far enough away from other trees or young stuff to cause no damage when it is burned by the rangers. Under the early methods the "slashings," as cut-over areas were called, were an almost impassable mass of dead tree-tops and logs, a most fruitful and dangerous source and auxiliary of forest fires.



SECTION OF A REDWOOD FOREST IN CALIFORNIA, SHOWING WASTEFUL AND DESTRUCTIVE METHODS OF LUMBERING. THE TREES HAVE BEEN CUT HIGH UP, LEAVING A LARGE PROPORTION OF WASTE IN THE STUMP. THE LAND HAS BEEN STRIPPED BARE OF ITS TIMBER, AND IS IN CONDITION TO ENCOURAGE FIRE, EROSION, AND DESTRUCTIVE FLOODS

THE FOREST SERVICE AND THE STOCK-RAISERS

The only remaining class opposed to the policy of the Forest Service is that composed of the stock-raisers; and for their interests and welfare the Forest Service has worked harder than for all the other users of the forests combined.

That mistakes were made in handling the livestock interests; that in some cases individuals were unduly hampered with rules enforced by over-zealous forest officers, is not to be denied. It was a huge task. Almost in a day the Forest Service sprang full-fledged into the world, charged with the care and responsibilities of more than a hundred million acres; to-day it

controls a third of the area of grazing country in the United States, whereon graze about eight million sheep and a million and a half cattle and horses.

Trained foresters there were to be had in plenty, but men who knew the stockman's trade, whose training fitted them to handle the vexatious questions of range divisions, over-grazing, and relative injury done by cattle, sheep, and goats, were hard to find, and when found were not willing to enter the Service for the niggardly pay allowed by the government. However, the Forest Service, with its ranger system, is to-day training up a class of young men, who, in a few years, will be at once expert lumbermen, scientific foresters, and excellent all-round frontiersmen and stockmen.

In this work there have been no precedents to follow, no rules to look to for guidance. Instead, rules must be made and tested through use; precedents must be established and certain fundamental principles worked out and made a basis for future government.



**THE EFFECT OF EROSION ON A HILLSIDE FROM WHICH THE FOREST COVER
HAS BEEN REMOVED**

Further than this, every section has its own necessities. Rules that would apply to Oregon and Washington, with their sixty inches of rainfall a year, would not apply to Arizona, with its ten. One great mountain region, whose waters drained off into the ocean and could never be used for irrigating purposes, might safely be let open to all kinds of grazing; while another equally large section, just as well grassed, would have to be closed to sheep and goats, with their erosive little feet and habits of grazing in large bands, because all the drainage went into creeks, streams, and rivers that lower down on the desert were needed to irrigate vast areas of valuable farming lands.

THE ROOSEVELT DAM CASE

Take a single case: that of one national forest in Arizona. At the upper end of this forest—which is a long, narrow tract covering a great mountain chain—rise two or three streams; on the eastern slope, the Rio Verde and the Salt River, on the western, the Agua Fria. A hundred miles below these heads the government is building, at a cost of more than \$4,000,000, the great Roosevelt Dam which will furnish water to irrigate 250,000 acres of the richest of soils around the city of Phoenix in the Salt River valley. One of the most serious problems in the construction of the great dams in the West is the question of silt, which is washed down in the streams and will eventually fill up and render useless these expensive dams and reservoirs.

Careful studies of silt prove beyond doubt that its primal cause is the removal of the forest cover, such as underbrush, weeds, and grasses, along the streams, which allows the rainfall to run off rapidly. The grazing over these areas by sheep and goats not only exhausts this forest cover, but from the cutting up of the soil and the loosening effect of the thousands of tiny hoofs, the erosive action of the rain becomes disastrous. The wash of the hills and mountain-sides carries with it into the streams tons and tons of silt to fill up the dams and beds of the streams, as well as working irreparable injury to the comparatively thin soil covering the mountains.

On this national forest the watershed on the eastern side all runs into streams which eventually reach the Roosevelt Dam; on the western slope the water runs unused to the Gulf of California. So the National

Reclamation Service, charged with the building and maintenance of these huge reservoirs, said to the Forest Service: "The watershed of the Roosevelt Dam must be protected from over-grazing, so that the forest cover may be preserved, and the deposit of silt reduced to the very lowest possible percentage."



**THE SAME HILLSIDE AFTER TWO YEARS OF CAREFUL AND SYSTEMATIC
GRAZING**

The Forest Service whose duty it was under the law to protect and preserve, not only the timber of the mountains, but the water supply as well, had no alternative but to say to the sheep and goat men using this area: "You cannot longer graze sheep or goats upon the eastern side of this forest, but may do so on the western slope." But since cattle do much less damage than sheep, in order that the grazing may not go entirely unused, the Service allows cattle to graze there in such numbers as will not injure the watershed.

Naturally the sheep owners set up a cry that could be heard from Dan to Beersheba. But an analysis of the situation shows that while some fifty

individual sheep men, owning probably 100,000 sheep valued at about \$300,000, were forced to rearrange their business to meet the new conditions, their loss was overwhelmingly offset by the benefit to the entire population of the Salt River valley, a population to-day of not fewer than 50,000 people, every soul of whom is absolutely dependent upon the agricultural lands of the valley for a living; these lands consisting of more than 100,000 acres, valued at an average of sixty dollars an acre, already under cultivation, with 150,000 acres more ready to be cultivated the instant the Roosevelt Dam is finished.

IRRIGATION REVOLUTIONIZED BY NATIONAL FORESTRY

Surely such conditions fully justify the Forest Service in its course of pursuing the greatest good for the greatest number. In Colorado a small number of stock men, principally cattle owners, aided and abetted by a few political malcontents, have attempted to discredit the Forest Service, but no one has heard a word against the Service from the thousands of contented irrigationists, who, with countless acres to be watered by more than 12,000 miles of irrigation ditches, see their source of water supply amply protected, and realize that already the supply has increased and the flow is more regular than it has been in the past.

In the great Kern River district about Bakersfield in southern California, a careful measurement shows that since the restrictions on grazing in the mountains at the heads of the streams, together with the almost complete absence of forest fires, the flow of water in the great canal system has become fully twenty per cent. greater in volume than ever before. And so one could go on without end, if necessary, for all over the West are smaller or larger areas wholly dependent upon the rivers and streams for their water supply, and to them the Forest Service guarantees full protection for their lands and homes.



HERD OF SHEEP GRAZING UPON A NATIONAL FOREST. THE SHEEP GRAZE IN LARGE BANDS AND VERY CLOSE TOGETHER, AND THE CUTTING ACTION OF THE THOUSANDS OF HOOFS IS VERY INJURIOUS TO THE SOIL. FOR THIS REASON, SHEEP-GRAZING IS ONLY ALLOWED ON CERTAIN AREAS OF THE NATIONAL FORESTS.

THE FREE GRASS QUESTION

The range stockmen of to-day are in much the same position as the reservation Indian. The tides of civilization, advancing from east and west, have met and threaten to overwhelm them. Like the Indian they must meet the new conditions with new methods. They must not, and need not, be overwhelmed, but can be assimilated in the new order of things. The day of free grass in the State of Texas came to an end twenty years ago. The old-timers shook their heads and prophesied all sorts of dire happenings to the State. To-day Texas has more cattle and sheep, and better ones, too, than ever before, and they are still growing in numbers.

A convention of stockmen was held at Denver in 1898, at which the burning question was the then new plan of forest reserves. The sheep men from

Wyoming, Utah, and one or two other Western States, declared with a bitterness born of conviction that if the government made any forest reserves in their States it would mean the total annihilation of the sheep industry there. To-day these States are plastered with national forests, and each has three or four times as many sheep as it had ten years ago.

There has arisen, of course, from the men who have used these government lands without money and without price, a continuous cry that the grazing fees the Forest Service collects are "illegal, unjust and double taxation." The complaint, of course, will not bear analysis. The land belongs, not to the stockmen, but to the whole people. Why should the government give something to a stockman in Wyoming, that belongs equally to a stockman in Ohio, who is raising live stock on private land, in keen competition with Western free grass men?

The fees are scarcely illegal. If the government can sell one man one hundred acres of public land, it certainly can sell another man the grass and forage crop produced upon any portion of the public lands. One is no more a case of merchandizing than the other. As for the double taxation argument, that too is equally childish, because the grazing fee is not a tax but the price of a commodity.

As a matter of fact, the government spends annually, in trail and road building through the forests, that the stock may more easily and safely reach the higher grazing areas, in fighting the fires, in building telephone lines to the very remotest corners of the forests, in hiring hunters to exterminate the wolves and other wild animals that prey upon the stockman's herds, in digging deep wells and erecting windmills and other pumping engines to furnish water where there is none on the surface, a sum almost equal to the entire amount paid in fees by the stockmen, and all for their sole benefit and use.

The total amount of fees paid by stockmen in the year 1907 amounted to \$836,920. If the lands were under private control, the fees would be more than double what they now are. In New Mexico, for instance, the usual price for pasturing cattle upon the large land grants is from two dollars to three dollars a year, while on the government forests immediately adjoining the grant, and almost the same country, the fee is only seventy-five cents a

year per head and twenty-five cents per head for sheep. And these are the highest fees charged on any national forest for all-the-year-round grazing permits. In Colorado, California, Nevada, and Arizona, the charge for sheep or cattle grazing on the large areas of railroad and State lands is on an average fully twice as great as the same fees upon the national forest, and in the former the stockmen get no other return from the land owners.

The last and loudest wail was that these "great areas of segregated lands," as the protestants love to call the national forests, were a barrier to the settler and homesteader; that the Forest Service was making vast areas of forest solitudes in the heart of the Western States.

To this the Forest Service replied by throwing open to agricultural settlement every acre of land, lying within the limits of the national forests, which was more suitable for agriculture than forest culture. Six thousand new homes were selected in the different forests in the year 1907, and with vastly less red tape and delay than under the regular homestead laws now in force upon other public lands.

If the Forest Service had done no more than keep down the fire losses, their work would not have been in vain. In 1901 the total area burned over in the government forests equalled $2\frac{3}{4}$ acres in every thousand, while in 1907 the burned area was only $\frac{9}{10}$ of an acre in every thousand. No record of the money value of the earlier fire losses was kept, but that the loss ran into the millions, no one who has seen the miles of burned over tracts can doubt.

The following table shows the fire losses in the national forests for the past three years:

YEAR	AREA OF FORESTS	ACRES BURNED OVER	VALUE OF TIMBER BURNED
1905	85,627,000	279,592	\$101,282
1906	106,999,000	115,416	76,183
1907	164,154,000	212,850	31,589

That is, in 1905 the loss from fire was more than three times as great as in the year 1907, with an area of forests almost twice as great to protect and control.

\$1,000,000 SAVED BY THE FOREST HUNTERS

Another important feature of Mr. Pinchot's work is the employment of experienced hunters for killing wild animals which destroy stock. In the year 1907, according to records kept of all predatory animals killed upon the various national forests, or on lands adjoining them, no fewer than 1600 wolves, 19,469 coyotes, 265 mountain lions, 368 bears, and 2285 wild cats and lynxes were killed by the various hunters and settlers. Of these, it is probably fair to credit the rangers and the hunters employed by the Forest Service with at least one-fourth.

Now, any well-posted stockman will tell you that, on an average, a full-grown wolf will destroy one thousand dollars' worth of stock every year of its life. Mountain lions prefer horses to any other food, but still they will put up with calves and sheep. They, too, are easily chargeable with a thousand dollars' worth of damage each year. The coyotes, bob-cats, and lynxes do less harm, and that mostly to sheep. Yet I think it is a very conservative estimate to say that each coyote or lynx annually destroys stock to the value of fully one hundred dollars.

Taking these figures as a basis for comparison, it is very easily seen that the value of the animals killed by the Forest Service men is more than \$1,000,000. Hence, so far as return for their \$836,920 in grazing fees is concerned, the stockmen get it back in full and with some to spare.



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CHIEF KITSAP, FINANCIER

BY
JOSEPH BLETHEN

ILLUSTRATED WITH PHOTOGRAPHS

WHEN young Johnny Kitsap, having made up his mind that his clerkship in the reservation agency did not offer the chance of advancement to which the son of a Puyallup chief and a graduate of Carlisle was entitled, applied for work to the President of the Elliott Bay National Bank, it was not an act of such presumption as some might suppose. No one, to be sure, when he saw the high cheek-bones, wiry black hair brushed pompadour, dull brown eyes, and copper complexion, could possibly have been deceived by Johnny's well-cut clothes, clean linen, and good English. Nor did Johnny affect these things as a disguise or as signifying that, in adopting the apparel and speech of the white man, he had renounced his nationality—had, to all intents and purposes, become a dead Indian. Quite to the contrary, what secured Johnny his position in the bank was precisely that, besides having a pleasant manner and civilized ways, he was so manifestly an exceptionally live Indian.

The Elliott Bay National's famous line of "red paper" had paid from the start. When, some years before, the proposition to loan old Peter Coultee, a full blood of the Puyallup reservation, was laid before the directors, they had laughed, but, like true Western men, they wanted to know the details. What they learned was that old Peter Coultee owned one hundred and sixty acres of fine reservation land, well stocked and highly cultivated; that his crop of hops was fast ripening; that he needed money to pay the hop-pickers of his own tribe; and that hop-house receipts in the White River Valley were as good as wheat receipts in the Palouse. This put the matter in other, at least, than a sneering light, and one of the laughing directors offered to visit the reservation and make a full report. The result was that old Peter Coultee got his loan, and that this turned out to be the first of many others, both to

himself and to his tribesmen, and all of much mutual profit alike to white man and red.

When, accordingly, Johnny Kitsap did the Elliott National the honor of preferring its employment to that of the government, the president did not laugh, but, with all due formality, laid his application before the board, and suggested that a bank which loaned money to Indians might in time find it convenient to have a clerk who could interpret not only the language of the Siwash customers, but the more subtle emotions of the Indian heart. And so Johnny came by his job, and the bank had as little cause to regret it as the first loan to old Peter Coultee, which was the original cause of it.

To the young Indian, the bank became a magic house. The brass-barred windows before the tellers; the wire cages; the tiled floors; the great doors of the vault, with the *tick-tick-tick* of the time locks; all seemed to him to be parts of a powerful chieftain's house. The vault itself, with its store of gold and currency, and its cabinet of mysterious treaties, which the *tyee* made with the busy white men, filled him with awe. This was the white man's magic treasure-chest, wherein money bred money. No one bought or sold, so far as he could see, yet this treasure-chest paid salaries, distributed profits, and always continued full. With his imagination thus enlisted in firing his work with the zest of play, it is no wonder that he proved an apt pupil and in a rapidly flying trio of years had filled various positions and had earned high appreciation.

With his entrance upon the duties of collection clerk, Kitsap became the credit man on all "red paper." Every bit of Indian business received the approval of the Chief before the discount committee would act upon it. Thus the young Indian became surely, even if indirectly, a power on the reservation, where the tribal leaders regarded him as being at heart a white man and continued to address him quizzingly as *Italapas* (The Coyote That Wanders). Kitsap maintained a modest room in Seattle, enjoyed the privileges of an athletic club, owned a one-twentieth interest in a yacht, and, out on the reservation, kept a cayuse in father Kitsap's corral and a suit of Indian finery in father Kitsap's house. Thus he zigzagged across the borderland of civilization and led a most picturesque, but strictly honorable, double life.

Kitsap had been four years in the bank when three hop-buyers from St. Louis attempted to raid the White River hop fields in advance of picking and to buy the entire crop of the valley at fourteen cents a pound. The raid had progressed far towards success when Kitsap accidentally heard of it.

The Indian hop-growers of the reservation had made their fall estimates, Kitsap had inspected their fields and approved their items, and some ten thousand dollars in "red paper" was entered on the books of the Elliott Bay National Bank, the loans to be secured by the warehouse receipts on hops. Kitsap had spent the first Sunday of the picking on the reservation, greeting friends who had come on their annual pilgrimage to the hop fields from other reservations; and early on Monday morning he was on the way to take a train for Seattle, when Peter Coultee's cayuse overtook him, bearing Peter Coultee's oldest son.

"Good morning, *Italapas*. Is your bank short of money?" called the young Indian, with enough dire suggestion in his tone to start a Wall Street panic.

Kitsap faced his questioner. "It has more gold than the son of Coultee can count," he retorted sharply.

"Then why is Lamson, who owns the largest fields of all the white men in the valley, saying that the bank will not loan him enough to pay the pickers?"

Lamson, who was wealthy, as ranchers go, was a heavy client of the Elliott Bay National, but, since he was a white man, his accounts were unknown to Kitsap. The bank clerk was thus taken at a disadvantage and could not give a direct answer. But, desiring to learn what he could, he bantered the younger Indian to talk on, and listened carefully, that his words might be carried to the cashier.

"Lamson is paying two picking tickets out of every three in cash; for the third ticket he gives an order on the stores in the village. When the pickers complain, he laughs and says that the bank has loaned the Indians so much that it cannot lend him the little he needs. Peter Coultee sends word to you: Let *Italapas* run to the bank and count the gold." Then the younger Indian smiled suggestively, whirled his cayuse, and rode away.

Kitsap was troubled by young Coultee's words. Not that any thought of weakness in the Elliott Bay National entered his mind; but he felt at once that such a report, if allowed to circulate undenied, would be harmful to the magic treasure-chest. He was all nerves when he reported to the cashier.

As soon as the president arrived, the cashier went to him with the report. Together they reviewed Lamson's account, and decided that no danger was to be found there. Lamson's hops were being delivered to a warehouse, and the warehouse receipts were being delivered to the bank as security for the hop-gathering loan. All this was regular and customary. But Lamson's motive in making such talk disturbed the president. He sent for Kitsap to question him.

Never before had the young red man been called into a conference with the president. He felt both proud and alarmed at the incident. When told the facts, Kitsap was greatly relieved, but he could suggest no motive for Lamson's story. He volunteered to visit the valley in an endeavor to ascertain the facts. The suggestion pleased the president, who at once ordered it put into effect.

"I suppose," said the gray-headed president, "that you will enjoy this scouting expedition all the more because you are on the trail of a white man. But while I am going to trust to your own good sense and your knowledge of your people in running this lie right back to the man who fathered it, I want to caution you to play well inside the rules of the game.

"Now, you are out to hit the trail of that lie and chase it home. When you have corralled it, let me know what company it is keeping and I will tell you what to do next. Lamson has been a good client and this lie may run away from him. If so, we must not offend him and thus lose his account. But if it hikes home to his ranch house, then I want to know what he is doing, and the nearer he is related to this rumor, the quicker we shall cash his hop receipts and cancel his note.

"If you find it necessary to use the bank's authority, then come out strong as ambassador plenipotentiary and read the stiffest kind of a bluff to your man in the name of the Elliott Bay National Bank. Talk as little as possible about the bank; but when you do talk, make every man jealous of your connection

with the institution. A conservative remark may bring a new customer to our books; a flippant word may go into business for itself and start a run that no bank could weather. Now get at it, and let us hear something from you by day after to-morrow."

Scout! The president himself had said it! The Indian's blood thrilled with his commission. His voice shook a little in its attempt to be very, very steady as he telephoned out to the reservation station for a saddle-horse. Then he ran for the five o'clock south-bound train.

At eight o'clock Kitsap arrived at the reservation. On all sides were the lights among the camps, where the hop-pickers were making merry. More than one group hailed him as he passed, demanding to know if he had come out from town to dance, to gamble, or to see a maid. But he had replied to each in kind and pressed on to his father's house. Kitsap the elder greeted his son in the native tongue.

"Huh! Is The Coyote still prowling?"

"The Coyote hunts big game for his *tyee*, my father. Let The Coyote's horse be cared for till he returns."

Then Kitsap, the bank clerk, decked himself as an Indian should and as The Coyote went forth to listen at many camp-fires and to hear what tales were telling there. Till far into the night he prowled, learning what families of Indians were picking for Lamson, what form Lamson's bank story was taking, and to what store the orders were sent for redemption. The fires were low and the valley was still when he sought his father's house and slept.

The next morning he resumed the dress of the white man. It was a day spent in the saddle. He rode from store to store, from ranch to ranch and warehouse to warehouse, the length and breadth of the valley, questioning, listening, brisk, businesslike, and polite, in all respects the decorous representative of the white man's bank. Yet, as he stood that evening at the white man's telephone, and recounted to his cashier the facts he had learned, the gleam in his eyes and the pride in his heart were those of the young red warrior who has tracked his foe and makes report to the high chiefs of his

tribe. He concluded by asking his cashier to telegraph to St. Louis and the other hop markets and ascertain the probable trend of hops, and telephone him in the morning.

And then Kitsap, the clerk, donned the tribal finery of his ancestors and again The Coyote prowled among the camp-fires. At each he dropped a faggot for thought:

"Lamson, the biggest hop rancher in the valley, is buying hops at fourteen cents and paying his pickers with store orders. That's why he lied about the bank."

The pickers buzzed the news about the fires till the overseers heard it; the overseers bore the tale to the ranchers; the ranchers went to their telephones and set the tale to flashing. In the morning, when the valley rose to resume picking, Lamson's raid was in cold type in the Seattle papers and at eight o'clock Lamson himself read it. Then he realized that the pool had been betrayed, and he went on the war-path to find the mysterious Indian.

Kitsap rose late, and loitered about, gossiping with the idle, till ten o'clock. Then he called up the bank. The cashier had received a wire from the East.

"Hops opened in St. Louis at sixteen cents, Milwaukee sixteen cents, Cincinnati seventeen cents," said the cashier over the telephone. "Crop reports indicate light yield abroad and heavy demand on American hops. Rise in price certain. I have asked a Seattle broker to cable Liverpool. The president says to spread the news and call me again at four o'clock."

Then Kitsap mounted his own spotted cayuse and rode from ranch to ranch till every Indian planter on the reservation had heard his news:

"The *biyu tyee* of the money house sends greetings. Hops are seventeen cents and going up."

At four o'clock Kitsap was once more at the telephone, and received a message from the cashier which sent his heart pounding in his throat for very enthusiasm.



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"KITSAP, THE CLERK, DONNED THE TRIBAL FINERY OF HIS ANCESTORS"

"I have sent you an important letter by express on the three o'clock train," said the cashier. "Get it and read what I have written. Stay as long as you need to, but smash that pool, and teach Lamson not to lie about the Elliott Bay National."

Then Kitsap waited for the train, secured his express package, and opened it. It contained a letter from Lamson to the bank—a letter that was ammunition for the Indian—and instructions to make certain use of it.

He could make no more progress indirectly; he must face the raiders, or his own people would doubt him. He must seek out Lamson, and standing in front of that white man, the Indian must throw back into his teeth that lie about the bank. The warm red blood in him yearned for a clash and a tussle. He would go to the store to spend the evening. If a collision with the fourteen-cent raiders was to be effected anywhere, the store would afford it.

To the store that night came Lamson and the St. Louis buyers, all in evil mood. Kitsap's news had completely arrested the effect of their pessimistic talk. No rancher would sell at fourteen cents with a bank's messenger rioting over the valley quoting hops in Liverpool at eighteen cents. Indeed, those who had already contracted to sell were grumbling, and many of them came to the store that night, eager to hear the truth of a market which had been misrepresented to them. These men were listening to Kitsap, whose words put them in a very sullen temper, when Lamson and the three buyers entered.

"So you're the Injun who's been going around bulling the market," shouted Lamson, his voice keyed high with temper. He stepped quickly into the crowd of ranchers about Kitsap, conscious that he must rout the Indian or see the end of the pool.

The young Indian faced the irate rancher and looked him coolly up and down. This was Lamson; the heaviest owner of land in the valley. This was the white man who had lied about the Elliott Bay National. The meeting for which he had hoped had come. The Indian drew a deep breath of sheer delight. Then, in a clear, ringing tone, he returned the white man's fire:

"So you are the rancher who lied about the Elliott Bay National Bank?"

The blood leaped to the rancher's temples and he stepped menacingly toward the Indian. But before he could strike, Kitsap's voice again rang out:

"You are a double liar! You borrowed money to pay pickers, but used it to buy hops at fourteen cents, after telling the ranchers that you had sold. That was the first lie. You told the Indians that the bank would not loan you enough to pay them. That was another lie. But the bank has found you out!"

The rancher stood speechless before the unexpected words of the Indian. The clenched fist fell to his side. The young man who stood there before him, with the straight proud poise of the savage chieftain, spoke the words of the white man's warfare, the warfare of the mart and of barter. He must be met and beaten on his own ground. Clearly, he had spoken to effect, and the rancher must justify his position before his fellow ranchers, whose eyes were so intently watching him.

"You seem to know a lot about the bank's business," he began, with an attempt at sarcasm. "I suppose the president consults you on loans."

"The president did on this one," replied the Indian. The ranchers laughed.

"Then perhaps he told you that this one was amply secured by my hop receipts," boasted Lamson.

"He did."

"Then what the bloomin' —— is it to him what I do with the cash?"

"He sent me to give you back that lie about the bank."

"Well"——

"I have. I called you a liar, and then proved it. Your name is—Two Lies!"

Lamson's color came back, but this time it was the color of anger. His hand went half-way to his revolver, but a broad-shouldered rancher caught his arm.

"None o' that, Lamson."

Lamson wrenched his arm away. The big rancher faced him.

"This here Kitsap is telling the truth," said he. "I reckon he's got still more of it to give us. And we will expect you to fish or cut bait. But I'll hold this." Then he clapped his hand on Lamson's gun pocket and disarmed him. The three St. Louis hop buyers looked wistfully toward the door. But prudence held them to the spot.

"You are making a big fuss over nothing," sputtered Lamson. "Whose business is it if I do buy hops? The bank is secured on its loan."

"It's our business a whole lot," said the big rancher, gently tapping the handle of Lamson's revolver on Lamson's chest. "You give out that you are selling hops at fourteen cents and advise a lot of us fellows to do the same. Now we're told that you've been buyin' at fourteen cents. It's our business to find out which end up you're playin' this market."

"Oh, rot!" roared Lamson. "Hops are fourteen cents now. I'm buying a few to hold 'em. If I can afford to take the risk, I'm entitled to the profit."

"The bank knows that hops are eighteen cents to-day," broke in Kitsap.

"That's another lie," yelled the enraged Lamson, and the ranchers laughed at the unconscious admission.

"Is it?" said Kitsap quietly. "Do you dare to bet on it?"

"I'll bet you a hundred dollars," roared the rancher, "that you can't get over fourteen cents for hops in this valley this fall."

"I will bet you that amount that I can get at least sixteen cents for the Indians on the reservation."

"Where's your money?" said Lamson, drawing out a roll of bills.

Kitsap had not looked for this. He was puzzled for a moment. Then he drew forth a pocket check-book, signed a check, and handed it to an Indian rancher, who endorsed it. Turning to Lamson, Kitsap said:



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"ON ALL SIDES THE HOP-PICKERS WERE MAKING MERRY"

"Will this do, or shall I telephone the cashier to assure its payment?"

"It's good," said Lamson.

"Very well. But if you are so sure about the price of hops, Mr. Two Lies, why don't you make it two to one that I can't get seventeen cents?"

"That's my money!" and Lamson began counting out another hundred.

"Or three to one that I can't get eighteen cents?"

"It goes!"

"Or four to one that I can't get nineteen cents?"

"Yes; or five to one that you can't get twenty," roared the exasperated planter.

"Five to one," replied Kitsap. "And if I win, I will throw your money in silver from the steps of the reservation school to the Indian children."

Kitsap noted the effect on the Indians in the room as the money was placed in the hands of the town marshal. He knew how every red man on the reservation would work for twenty-cent hops now.

But the Indian was not through with the white man. He turned on him again.

"If you think the bank lied when it said eighteen cents, there is a telephone. Call up the cashier at his home. He sent me here to tell the white men and Indians who are our clients. Ask him for yourself."

Lamson and the three buyers noted the words "Our clients." To Lamson it brought identification of the Indian as Johnny Kitsap, the clerk; to the buyers it was just mysterious enough to be alarming.

"Confound the cashier! All he knows is what somebody else has told him."

"Mr. Lamson, do you yourself think that fourteen cents for hops to-day is a fair price?" asked Kitsap, suddenly taking a conciliatory tone.

"Certainly I do. But if I want to buy hops at fourteen cents now and hold them on a speculation, it's my own business."

"Entirely," said the Indian. "But I believe your conduct with the ranchers who have agreed to sell is based on your statement that you had already sold your own hops to these buyers from St. Louis for fourteen cents."

"That's right," said Lamson boldly. "I can sell my hops for what I like."

"Liar," said Kitsap, "you have *not* sold your hops."

Lamson sprang to his feet, but the big rancher put out a big hand and shoved him back.

"Sit down," said the big man. "Can't you see this here Kitsap's got the floor?"

"As I understand it," continued Kitsap, turning to the men who had signed the contract to sell to the raiders, "unless Mr. Lamson has already delivered his hops to the buyers under his contract, the very agreement is void, and you are all released."

"You bet your life that's right," said the big man with the gun, and from all parts of the crowd came words of confirmation.

Lamson, for the first time during the encounter, felt uneasy. He looked blankly at the three buyers. One of the gentlemen from St. Louis drew the contract from his pocket.

"The young man is right," said the gentleman from St. Louis, in a conciliatory tone. "Here is the contract, and I can safely assure our friends that Mr. Lamson has carried out his part of the agreement."

"You bet," shouted Lamson, recognizing a very pretty bluff on the part of the buyer.

"May I see the contract?" asked Kitsap.

The buyer passed it to him. Kitsap read the contract aloud, and then tossed it over his head into the hands of the men who had signed it. The buyers and Lamson came to their feet.

"Worthless paper," said Kitsap. "Lamson has not delivered his hop receipts and therefore there is no contract."

A yell of delight went up from the crowd, and a shower of tiny bits of white papers showed the fate of the instrument. Kitsap pointed his finger at the

enraged Lamson, and as the shower of paper fell about him fairly shouted his denunciation:

"I, Kitsap, the clerk, am a representative of the Elliott Bay National Bank. I come here by the orders of the *tyee*—the president. Your hop receipts are in the bank's treasure-chest, and here is your letter received at the bank last Monday." Kitsap opened the letter that had come to him by express and read:

Picking is progressing well, and the valley will yield a big crop. A few hungry ranchers are selling at fourteen cents cash at the warehouse, but I look for better prices later. I hope you will be willing to carry my receipts *till November, when I look for a price close to twenty cents.*

As Kitsap read, his voice rose, and, as he ended, there was absolute silence for an instant. Then the ranchers took their spellbound eyes from the quivering Indian and looked at the pale face of the speechless Lamson. The store-keeper looked with the others, and it was his groan that broke the spell:

"Thunder! I stood to make a thousand on the deal."

Then the overjoyed ranchers found their voices in a wild laugh, and laid enthusiastic hands on Kitsap. Lamson and the buyers slipped away, beaten and humiliated, to lament the failure of the fourteen-cent raid, and to spend a few bitter hours in planning a new offer next morning at a better price, for there was need to cover promises made to Eastern houses.

The ranchers quickly formed themselves into a meeting and sent couriers out to notify all signers of the contract that the deal was off. Then they appointed a committee to go to the bank next day with Kitsap and be witnesses to his report to his superiors.

Before another day passed, the spirit of the valley had changed from a desire to sell quickly for cash into a determination to hold the crop for a twenty-cent market. The Elliott Bay National secured daily bulletins from inside sources and kept the world's markets before the entire valley. Picking progressed to an end, and the Indians held their last feast and departed. Then buyers came from other markets, inspected the crop, and made offers. Gradually the valley ranchers joined the lead of the reservation Indians and

placed their receipts with the Elliott Bay National, to be held for a rise and sold as near twenty cents as possible. The cashier sent East for a prominent broker, who replied that he would arrive by the Sound in mid-October. Then the other buyers began bulling the market, hoping to induce a rancher here and there to sell and, by thus breaking the ranks, run prices down. But Kitsap, on the ground, and the cashier, in the bank, were able to hold them together till the new broker arrived.



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**"PICKING PROGRESSED TO AN END, AND THE INDIANS HELD THEIR LAST
FEAST AND DEPARTED"**

The new man was business from the ground up. He knew where he could sell hops, and for what price. He inspected the valley crop of hops and frankly announced his intention to pay twenty-one cents. Then the other buyers rushed in to get a share, and the result was an agreement by which the new broker got half the crop at twenty-one cents and the late lamented fourteen-cent raiders divided the other half among themselves at twenty-

three cents, the money to be distributed through the Elliott Bay National to all ranchers at the average of twenty-two cents.

Kitsap telephoned the news to the reservation, and the priest sent the son of Peter Coultee on his spotted cayuse to ride into the village with the news. DeQuincey's Royal Mail with the news of Waterloo did not create more enthusiasm than the Indian's triumphant shout. As he dashed along he yelled to the white men:

"Hops sold at twenty-two cents!"

To the Indian ranchers he called out the same news in the jargon:

"Hops marsh mox-taltum-tee-mox."

Down the street he rode, yelling and winning yells in return. The news spread from street to street, men carried it into the valley, and that night many a heart among the ranches beat quicker and many a voice at the firesides murmured the name of "Kitsap."

The town marshal made the trip to Seattle and delivered the six-hundred-dollar wager to Kitsap. The Indian told the cashier the terms of the wager and asked to be excused on the following Saturday, that he might assemble the reservation children and scatter the Lamson money.

"It will be a great event to them," said Kitsap. "I shall take all of Lamson's five hundred dollars in dimes, and the whole reservation will come out to see the fun."

The cashier granted the leave of absence gladly.

"If you will hold the event in the afternoon, I think the president would be pleased to go out and see it," said he.

Kitsap needed no other hint, but went boldly to the president and invited him to witness the scattering of the coins.

"With pleasure," replied the president.

"Come on the three o'clock train, and I will have a carriage for you," said Kitsap.

The reservation had been waiting for twenty-cent hops as a band of children wait for the circus. Five thousand dimes to be thrown to less than three hundred children! It would be a rare scramble. Indian children raided their mothers' button-baskets that they might throw the buttons in the sand and practise scrambling for them. Then came the news of twenty-two cent hops, and every Indian, young or old, jumped up and down and shouted that Kitsap had won that Lamson money.

"Saturday afternoon at four o'clock," was Kitsap's message to the reservation priest, and the priest assembled ten young men for a conference. It was decided to mark off ten squares on the lawn in front of the schoolhouse. On each square a squad of thirty children should stand, the children of each squad graded so as to be nearly of a size, girls and boys in alternate squares. Before each square one of the ten young men should stand with five hundred silver coins in a dish. At a signal from Kitsap, who should stand on the school steps, the ten young men should throw the dimes in the air and the scramble would begin.

When the train stopped at the reservation station that October afternoon, the president of the Elliott Bay National found Kitsap the elder there to meet him, with a clean spring wagon. During the short drive to the reservation school, he noted that the road was deserted, but when the school was reached a scene of color and animation met his eye. The tribe was out in full regalia, even the clients of the bank, who came gravely to the president's wagon to greet him. Kitsap the elder drove to a spot reserved for the head men of the tribe, and the chief of the money-house was welcomed to a place among them. Then a hush fell upon the assembly.

A procession of young men, headed by Kitsap, decked in tribal finery, came out of the schoolhouse. Kitsap remained on the stairs, as the ten young men, bearing dishes of dimes, took their places before the squares. Every child stood waiting—every grown person held his breath. The voice of Kitsap, speaking each sentence first in the jargon and then in English, made a short harangue. The president smiled as he caught this glimpse of Kitsap's own interpretation of a bank.

"Lamson, the white man, told a lie about the money-house. The great *tyee* of the treasure-chest sent Kitsap, who is a brave of the white *tyee*'s house, to tell the Puyallups the truth. The Great Spirit made Lamson angry and caused him to lose this money to Kitsap, who serves the great white *tyee*. But the great white *tyee* said: 'Behold, the Great Spirit has punished Lamson. Forever will he be called Two Lies. The money shall be for the children, as Kitsap said. I will go myself to see Kitsap throw the silver coins to the children, for it is a lesson. Let them always speak true words, or the Great Spirit will punish them, and they will have an evil name like Lamson!' And look, children, Kitsap's *tyee* sits with the *tyee* of the Puyallups to see you scramble. Remember, keep on your own square and do not strike. Push and pull, but do not strike. Show the white *tyee* who lives in the magic treasure-house that you can play your games fairly. Then he will be pleased and tell his own people of the silver coins that Kitsap throws to the children."

There was silence a moment, and then Kitsap raised a feathered wand. In the native tongue he shouted:

"All ready? Throw!"

Ten lithe Indians threw their silver treasure into the air. Five thousand silver coins flashed in the sun and fell in a sparkling shower on the heads of the tribal children. With one voice the children screamed and sprang to the scramble; with one voice the Puyallup tribe roared in glee; with one motion the tribal hats went into the air, and the president of the Elliott Bay National yelled in his enthusiasm, pounded a red man on the back, waved a silk hat on high, and became as one of these child-hearted aborigines.

Late that night, while the president sat at his club, hoarse but happy, and told what he had seen, a band of Indians out on the reservation held a ceremony in a big tent. The rite was as old as the tribal memory—the rite of formally adopting a chief—and a young man was declared to have won a great fight, and to be worthy of a high place in the councils of the tribe. They wanted to name him Chief Who-Made-The-Silver-Rain, but the young man replied that Chief Kitsap, being his father's name, was good enough for him.

THE WAYFARERS

BY
MARY STEWART CUTTING

AUTHOR OF "LITTLE STORIES OF COURTSHIP," "LITTLE STORIES OF MARRIED LIFE," ETC.

ILLUSTRATIONS BY ALICE BARBER STEPHENS

XXIII

JUSTIN was in Chicago—the fact was verified—and he would start for home on the morrow. There seemed to be no details, save the comforting one that Billy Snow was with him. After that first sharp immediate relief from suspense, Lois again felt its filminess settling down upon her.

Girard had gone back very early to the Snows' to breakfast. He talked to Lois by telephone, but he did not come to the house; while Dosia, wrapped in an outward abstraction that concealed a whirl within, went about her daily tasks, living over and over the scene of the night before. The shattering of the pitcher seemed to have shattered something else. Once he had felt, then, as she had done; once—so far away that night of disaster had gone, so long was it since she had held that protecting hand in her dreams, that the touch brought a strange resurrection of the spirit. She had an upwelling new sense of gratitude to him for something unexpressed, some quality which she passionately revered, and which other men had not always used toward her.

"Oh, he's good, he's *good*!" she whispered to herself, with the tears blinding her, as she picked up Redge's blocks from the floor. She felt Lawson's kisses on her lips, her throat—that cross of shame that she held always close to her; George Sutton's fat face thrust itself leeringly before her. How many girls have passages in their lives to which they look back with the

shame that only purity and innocence can feel! Yet the sense of Girard's presence before was as nothing to her sense of it now—it blotted out the world. She saw him sitting alone in the dining-room, with his head resting on his hand, the attitude informed with life. The turn of his head, the shape of his hand, were insistent things. She saw him standing in front of her, long-limbed, erect of mien. She saw—If she looked pale and inert, it was because that inner thought of her lived so hard that the body was worn out with it.

Neither telegram nor any other message came from Justin, except the bare word that he had started home. On the second morning, just as Lois had finished dressing, she heard the hall door open and shut. She called, but cautiously, for fear of disturbing her baby, who had dropped off to sleep again.

Justin was standing by the table, looking at the newspaper, as she entered the dining-room. With a cry, she ran toward him. "Justin!"

He turned, and she put her arms around him passionately. He held her for a moment, and then said, "You'd better sit down."

"But, Justin—oh, my dearest, how ill you look!" She clung to him. "Where have you been? Why didn't you send me any word?"

"I've been to Chicago."

"Yes, yes, I know. Why did you go?"

"I don't know."

"You don't *know*?"

"Lois, will you give me some coffee?"

She poured out the cup with trembling hands, and sat while he took a swallow of the hot fluid, still scanning the newspaper. At last she said:

"Aren't you going to tell me any more?"

"There isn't any more to tell. There's no use talking about it. I believe I had some idea of selling the island when I went to Chicago, but I don't know how I got there. I didn't know I was there until I woke up two nights ago at a little hotel away out on the West Side. Billy pounded on the door, and said they told him I had been asleep for twenty-eight hours. I suppose I was dead tired out. I don't want to speak of it again, Lois; it wasn't a particularly pleasant thing to happen. Will you tell Mary to bring in the rest of the breakfast? I must catch the eight-thirty train back into town. I thought you might be bothered, so I came out first. Where are the children?"

"They are coming down now with Dosia," said his wife, helping Mary with the dishes. Redge ran up to his father, hitting him jubilantly with a small stick which he held in his chubby hand, and bringing irritated reproof down upon him at once; but Zaidee, her blue eyes open, her lips parted over her little white teeth, slid into the arm outstretched for her, and stood there leaning against "Daddy's" side, while he ate and drank hurriedly, with only one hand at his disposal. Poor Lois could not help one pang of jealousy at being shut out, but she heroically smothered it.

"Mr. Harker was here the evening before last; he brought me some money," she ventured at last.

"That was all right."

"And Mr. Girard was very kind; he stayed here all that night—until your message came."

"I hope you haven't been talking about this all over the place."

"No—oh, no," said Lois, driving back the tears at this causeless injury. "Mr. Leverich said it was best not to. Nobody knows about your being away at all. You're not going *now*, Justin—without even seeing baby?"

"I'll see him to-night when I come home," said Justin, rising. He kissed the children and his wife hastily, but she followed him into the hall, standing there, dumbly beseeching, while he brushed his hat with the hat-brush on the table, and then rummaged hastily as if for something else.

"Here are your gloves, if that is what you are looking for," she said.

"Yes, thank you." He bent over and kissed her again, as if really seeing her for the first time, with a whispered "Poor girl!" That momentary close embrace brought her a needed—oh, so needed!—crumb of comfort. She who had hungered so insatiably for recognition could be humbly thankful now for the two words that spoke of an inner bond.

But all day she could not get rid of that feeling of suspense that had been hers for five days past; the strain was to end, of course, with Justin's return, but it had not ended—in some sad, weighting fashion it seemed just to have begun. What was he so worried about? Was she never to hear any more?

That night Girard came over, but with him was another visitor—William Snow. No sun could brown that baby-fair skin of William's, but he had an indefinably large and Western air; the very way in which he wore his clothes showed his independence. Dosia did not notice his swift, covert, shamefaced glance at her when she came into the room where he was talking to Lois—his avoidance of her the year before had dropped clear out of her mind; but his expression changed to one of complacent delight as she ran to him instantly and clasped his arm with both hands to cry, "Oh, Billy, Billy, I'm so glad to see you! I am so glad—I can't tell you how glad I am!"

"All right, Sweetness, you're not going to lose me again," said William encouragingly. "My, but you do knock the spots out of those Western girls. Can't we go in the dining-room by ourselves? I want to ask you to marry me before we talk any more."

"Yes, do," said Dosia, dimpling.

It was sweet to be chaffed, to be heedlessly young once more, to take refuge from all disconcerting thoughts—from a new



embarrassment—with Billy, in the corner of the other room, where she sat in a low chair, and he

**"STOOD THERE LEANING AGAINST
'DADDY'S' SIDE"**

dragged up an ottoman close in front of her. Through the open window the scent of honeysuckle came in with the gloom.

"Oh, but you've grown pretty!" he said, his hands clasped over his knees, gazing at her. "That's right, get pink—it makes you prettier. I like this slimpsy sort of dress you've got on; I like that black velvet around your throat; I—have you missed me much?"

"No," said Dosia, with the old-time sparkle. "I've hardly thought of you at all. But I feel now as if I had."

Billy nodded. "All right, I'll pay you up for that some day. Oh, Dosia, you may think I'm joking, but I'm not! There have been days and nights when I've done nothing but plan the things I was going to do and say to make you care for me—but they're all gone the moment I lay eyes on you. I'll talk of whatever you like afterward, but I've got to say first"—Billy's voice, deep and manly and confident, had yet a little shake in it—"that nobody is going to marry you but me, and don't you forget it. I'm no kid any more." Something in his tone gave his words emphasis. "I know how to look out for you better than any one else does."

"Dear Billy," said Dosia, touched, and resting her cheek momentarily against the rough sleeve of his coat, "it's so good to have you back again."

Lois, who had been longing intolerably all day for evening to come, so that she could be alone with her husband, sat in the drawing-room, trying to sew with nervous, trembling fingers, while her husband, looking frightfully tired, and Bailey Girard smoked and talked—of all things in the world!—of the relative merits of live or "spoon" bait in trolling, and afterward went minutely into details of the manufacture of artificial lures for catching trout.

Those wasted "social" hours of non-interest, non-satisfaction, how long, how unbearably long, they can seem! Lois' face twitched, as well as her fingers; she did not realize, as women often do not, that to Justin this conversation, banal and irrelevant to any action of his present life or his

present anxiety, was like coming up from under-depths to breathe at a necessary air-hole.

After five days of torturing, unexplained absence, to talk of nothing but fishing, as if his life depended on it! Girard himself had wondered, but he accepted the position allotted to him as a matter of course. He had thought, from Justin's manner to-day, that he was to know something of his affairs; but if Justin did not choose to confide in him—that was all right. Possibly the affairs were all right, too; they were none of his business, anyway.



"IT WAS SWEET TO BE CHAFFED, TO BE HEEDLESSLY YOUNG ONCE MORE"

Suddenly a word caught the ears of the two who were sitting in the dining-room.

"That was the kind Lawson Barr used when he went down on the Susquehanna. By the way, I hear that he's dead."

Lawson! Dosia's face changed as if a whip had flicked across it, and then trembled back into its normal quiet. William leaned a little nearer, his eyes curiously scanning her.

"Hadn't you heard before?"

"No; what?"

"He's dead."

"Lawson *dead*! Not Lawson?" Her dry lips illy formed the words.

"Yes, Dosia. Don't look like that—don't let them see in there, Girard is looking at you; turn your face toward me. Leverich told us, coming up to-night. Lawson died a week ago."

"How?"

"Fell from his horse somewhere up in a cañon—he was drunk, I reckon. They found him twenty-four hours afterward. The superintendent of the mines wrote to Leverich. He'd tried to keep pretty straight out there, all but the drinking, I guess that was too much for him. It was the best thing he could do—to die—as Girard says. Girard hates the very sound of his name."

"Oh," breathed Dosia painfully.

"The superintendent said that some of the miners chipped in to bury him, and the woman he boarded with sent a pencil scrawl along with the superintendent's letter to say that she'd 'miss Mr. Barr dreadful,'—that he'd get up and get the breakfast when she was sick, and 'the kids, they thought the world of him.' She signed herself, 'A true mourner, Mrs. Wilson.'"

Lawson was dead!

Dosia sat there, her hand clasping Billy's sleeve as at first—something tangible to hold on to. Her gaze had gone far beyond the room; even that haunting consciousness that Bailey Girard was near her was but a far, hidden subconsciousness. She was out on a rocky slope beside a dead body—Lawson, his head thrown back, those mocking, caressing eyes, those

curving, passionate lips, closed forever, the blood oozing from between his dark locks. As ever with poor Dosia, there was that sharp, unbearable pang of self-reproach, of self-condemnation. Of what avail her prayers, her belief in him, when he had died thus? Oh, she had not prayed enough. She had not been good enough to be allowed to help; she had not believed hard enough. Perhaps it had helped just a little—he had "tried to keep pretty straight, all but the drinking; that was too much for him."

That covered some resistance in an underworld of which she knew nothing. Poor Lawson, who had never had the right chance, whose youth had been poisoned at the start! In that grave where he lay, drunkard and reveler, part of the youth of her, Dosia Linden,—once his promised wife, to whom she had given herself in her soul,—must always lie too, buried with him; nothing could undo that. To die so causelessly! But the miners had cared a little; he had been kind to a woman and her little children—"the kids had thought the world of him"; she was "a true mourner, Mrs. Wilson." Dosia imagined him cheerily cooking for this poor, worn-out mother, carrying the children from place to place as she had once seen him carry that little boy home from the ball, long, long ago.

A strain from that unforgotten music came to her now, carrying her to the stars! Oh, not for Lawson the splendid rehabilitation of the strong, except in that one moment of denial when he had risen by the might of his manhood in renunciation for her sake; only the humble virtues of his weakness could be his—yet perhaps, in the sight of the God who pities, no such small offering, after all!

"Dosia, you didn't really *care* for him!"

She smiled with pale lips and brimming eyes—an enigmatic answer which Billy could not read. He sat beside her, smoothing her dress furtively, until she got up, and, whispering, "I must go," left the room, unconscious of Girard's following gaze.

"I think we'd better be getting back," said the latter, in an odd voice, rising in the middle of one of Justin's sentences, as Billy came straying in to join the group.

Lois' heart leaped. She had felt that another moment of live bait and reminiscences would be more than she could stand.

"You need some rest," she said gratefully. "You have been tired out in our service."

"Oh, I'm not tired at all," he returned, shortly. Her work seemed to catch his eye for the first time and, in a desire to change the subject, "What are you making?" he asked.

"A ball for Redge. I made one for Zaidee, and he felt left out—he's of a very jealous disposition," she went on abstractedly. "Are you of a jealous disposition, Mr. Girard?"

"I!" He stopped short, with the air of one not accustomed to taking account of his own attributes, and apparently pondered the question as if for the first time. When he looked up to answer, it was with abrupt decision: "Yes, I am."

"Don't look so like a pirate," said young Billy, giving him a thump on the back that sent them both out of the house, laughing, when Lois rose and went over to Justin's side.

Husband and wife were at last alone.

XXIV

In the days that followed, Justin, going away in the morning very early with a set face, coming home very late in the evening with that set face still, hardly seemed to notice the children or Dosia.

"Justin has so much on his mind." Lois kept repeating the words over and over, as if she found in them something by which to hold fast. Rich in beauty as she was, full of love and tender favor, with the sweetness and the pathos of an awakening soul, her husband seemed to have no eyes, no thought for her. That one murmured sentence in the hallway was all her food to live on—his only personal recognition of her.



**"SHE CREPT OUT UPON THE LANDING OF THE STAIRS, AND SAT THERE
DESOLATELY ON THE TOP STEP"**

On the other hand, he poured out his affairs and his plans to her with a freedom of confidence unknown before, a confidence which seemed to presuppose her oneness of interest with him. He had talked exhaustively about everything but those few days' absence; that was a sore that she must not touch, a wound that could bear no probing. She had striven very hard not to show when she didn't understand, taking her cues for assent or dissent as he evidently wished her to, letting him think aloud, since it seemed to be a relief to him, and saying little herself. The only time when she broke in on

her own account was when he told her about Cater, and the defective bars, and Leverich's ultimatum. Her "Justin, you wouldn't do that; you wouldn't tell!" met his quick response: "No, I couldn't."

"Oh, I know that. I'd rather be a hundred times poorer than we are! Aren't you glad that you couldn't do it?"

"No; I think I'm rather sorry," said Justin, with a half-smile. The peculiar sharpness of the thought that it was between Cater and Leverich—his friends, Heaven save the mark!—that he was being pushed toward ruin, had not lost any of its edge.

There had been a tonic in a certain attitude of Cater's mind toward Justin—an unspoken kindness and admiration and tenderness such as an older man who has been along a hard road may feel toward another who has come along the same way. Cater's kind, unobtrusive comradeship, the fair-dealing friendliness of his rivalry, had seemed to be one of the factors of support, of honesty, of commercial righteousness. Justin could smile proudly at Leverich, but he couldn't smile when he thought of Cater—it weighed upon and humiliated him for the man who had been his friend.

"I am glad, anyway!" said Lois. "It wouldn't have been *you* if you had! Can't you take a rest now, dear, when you look so ill? No, no; I didn't mean that—of course you can't!"

"A *rest*!" He rose and walked up and down the room. "Lois, do you know that, in some way, I've got to get it before the 13th? Those days in Chicago—at the worst time! It makes me wild to think of the time I've lost. I'm looking out for a partner who will buy out Leverich and Martin, and we've got a chance yet—I'll swear we have! But Lewiston's note has got to be paid first; then I can take time to breathe. Harker saw a man from Boston from whom we might have borrowed the money, if I had only been here. If we get that, we can hold over; if we don't, we go to smash, and so does Lewiston. Lewiston *trusted* me. I've been to several places to-day to men that would be willing enough to lend the money if they didn't know I needed it."

"George Sutton?" hazarded Lois.

Justin's lips curved bitterly. "Oh, he's a cur. He had some money invested last year when he was sweet on Dosia, and drew it all out afterward! And, after all, I went to him to-day, like a fool!"

"Can't you go to Eugene Larue?"

"No. We talked about it once, but he fought shy; he didn't think the security enough. If he thought so then, it would be worse than useless now."

"Mr. Girard?"

"There's no use telling things to him, he hasn't any money." Justin turned a dim eye on her. "I tell you, Lois, I haven't left a stone unturned, so far, that I could get at. If we could only sell the island! Girard's looking it up for me; there may be a chance of that. There are lots of chances to be thought out. I don't even know how we keep running, but we do. Harker's a trump! If I can hold up my end, we'll be all right."

"Then go to bed now," said Lois, with a quick dread that gave her courage. "And you must have something to eat first—and to drink, too. Come, Justin! Do as I say." Her voice had a new firmness in it which he unconsciously obeyed. She crept to her bed at last, aching in every limb, but with her baby pressed close to her, her one darling comfort, the source from which she drew a new love as the child drew its life from her. It was the first time in all her married life that she had borne the burden of her husband's care, a burden from which she must seek no solace from him.

She bent all her energies, these next days, to keeping him well fed, and ordering everything minutely for his comfort when he came home, aided and abetted by Dosia. The two women worked as with one thought between them, as women can work, for the well-being of one they love, with fond and minute care. Every detail, from the time he went away in the morning, stooping slightly under the weight of something mysterious and unseen, was ordered with reference to his home-coming at night—the husband and father on whose strength all this helpless little family hung for their own sustenance.

Everything that was done for him had to be done covertly, it was found; he disliked any manifestation of undue attention to his wants. Sometimes he was terribly irritable and unjust, and at others almost heartbreakingly gentle and mild. Lois had persuaded him to have the doctor, who told him seriously that he must stay home and rest—a futile prescription, which he treated with scorn. Rest! He knew very well that it was not rest that he needed, but money—money, money, the elixir of life!

It was near the end of this week when Justin came home, as Lois could see at once, revived and encouraged, though still abstracted. He had an invitation to take a ride in the doctor's motor, the doctor being a man who, when the hazard of dangerous cases had been extreme, absented himself for a couple of hours, in which, under a breathless and unholy speed of motoring, he reversed the pressure on his nerves, and came to the renewed sanity of a wind-swept brain when every idea had been rushed out of it.

Lois felt that it would be good for Justin, too, and was glad that he had been persuaded to go; yet she caught him looking at her with such strange intentness a couple of times during the dinner that it discomposed her oddly. It made her a little silent; she pondered over it after she had gone up, as usual, to the baby. Was there something wrong with her appearance? She looked anxiously in the glass, and was annoyed to find that the white fichu, open at the throat, was not on quite straight, and her hair was a little disarranged. She was pale, and there were dark lines under her eyes. She hated not to look nice. Yet it might not be that. Was it, perhaps, that something else was wrong—that he had bad news which he did not like to tell? Was he to leave her again on some journey? She turned white for a moment, and sat down to get the baby to sleep, and then resolutely tried to drive the thought from her. Yet, as she sat there rocking gently, the thought still came back to her, oddly, puzzlingly. Why had he looked at her like that? The smoke of his pipe down-stairs kept her still aware of his presence.

Presently he came up-stairs and tiptoed into the room in clumsy fashion, for fear of waking the baby, in his quest of a pair of gloves in a chiffonier drawer. After finding them, he stopped for a moment in front of her, with that odd, arrested expression once more.

"You don't mind my going out to-night and leaving you?" he murmured. "The doctor ought to have asked *you*, instead; you need it more than I."

"Oh, no, no!" she hastened to reassure. "I don't mind at all, really!" Her eyes gazed up at him, limpidly clear, and emptied of self. "I have to run up and down stairs so many times to baby now that I couldn't go, no matter how much I was asked to. I'm only glad that you will have the distraction—you need it. I hope you'll have a lovely time."

She listened to his descending footsteps, and after a moment or two arose and laid the sleeping child down in his crib.

In the dim light she went about the room, picking up toys and little discarded garments left by the children, folding the clothes away, her tall, graceful figure, in the large curves of its repeated bending and straightening, seeming to exemplify some unpainted Millet-like idea of mother-work, emblematic of its unceasing round. She was hanging up a tiny cloak in the half gloom of her closet, when she heard her husband's step once more stealing into the room, and the next moment saw him beside her.

"What's the matter?" she asked, with quick premonition.

"Nothing, nothing at all; we haven't started yet." He put one arm around her and with the other lifted her face up toward his. "I only came back to tell you"—His voice broke; there seemed to be a mist over the eyes that were bent on hers. "I can't talk. I can't be as I ought to be, Lois, until all this is over—but—I don't know what's getting into me lately, you look so beautiful to me that I can't take my eyes off you! I went around all to-day counting the hours, like a foolish boy, until it was time to come back to you; I grudge every minute that I spend away from my lovely wife."

Sometimes we have a happiness so much greater, so much more blessed than our easily imagined bliss, that we can only hide our eyes from it at first, like those of old, when in some humble and unthought-of place they were visited by angels.

Very late that night Bailey Girard arrived at the house, after an absence of ten days. Dosia had gone to bed unusually early, but she could not sleep. She could not seem to sleep at all lately—the tired she was, the more ceaselessly luminous seemed her brain; it was like trying to sleep in a white glare in which all sorts of trivial things became unnaturally distinct. Darkness brought, not a sense of rest, but that dread knowledge that she was going to lie there staring through all the hours of it. Since that night that the pitcher had broken, she was ever waiting tensely for the day to bring her something that it never brought. Lawson's death—Girard—Billy, who was getting a little troublesome lately—the dear little brothers far away, mixed up with tiny household perplexities, kept going through and through her mind. Her heart was wrung for Justin and Lois; yet they had each other! Dreams could no longer comfort and support Dosia. Prayer but awakened her further. If she could only sleep and forget!

To-night she heard Justin's return from the automobile ride; apparently the machine had broken down, but the accident seemed only to have added to the zest. Lois was still dressed and waiting up for him. Then Girard came—he had seen the light in the window. Dosia could hear the murmuring of the voices down-stairs—Girard's sent the blood leaping to her heart so fast that she pressed her hands against it. For a moment his face seemed near, his lips almost touched hers—her heart stopped before it went on again. Why had he come now? It seemed suddenly an unbearable thing that those others down-stairs should see him and hear him, and that she could not. Why, oh, why, had she gone to bed so early to-night of all nights? She was ready to cry with the passion of a disappointment that seemed, not a little thing, but something crushing and calamitous, a loss for which she never could be repaid. She could imagine Justin and Lois meeting the kind glances of those gray eyes, smiling when he did. He was beautiful when he smiled! She was within a few yards of him, but convention, absurd yet maddening, held her in its chains. She couldn't get dressed and break in upon their intimate conference—or it seemed as if she could not. Besides, he would probably go very soon. But he did not go! After a while she could lie there no longer. She crept out upon the landing of the stairs, and sat there desolately on the top step, "in her long night-gown, sweet as boughs of May," with her little bare feet curled over each other, and her hands clasping the balustrade against which her cheek was pressed, watching and waiting for him to go.

The ends of her long fair hair fell into large loose curls where it hung over her shoulder, as she bent to listen—and to listen—and to listen.

"I want to be there, too—I want to be there, too!" she whispered, with quivering lips, in her voice the sobbing catch of a very little child. "I want to be there, too. They're having it all—without me. And I want to be there, too. They might have called me to come down, and they didn't." They might have called her! All her passion, all her philosophy, all her endurance, melted into that one desire. If she had only known at first that he was going to stay so long, she would have dressed and gone down. She could hardly bear it a moment longer.

After a while a door on the landing of the second story below opened, and a little figure crept out—Zaidee. She stood irresolute in the hall, looking down; then she looked up, and, seeing Dosia, ran to her and climbed into her lap, resting her little pigtailed head confidingly against Dosia's warm young shoulder.

"They woke me up," she said placidly. "Did they woke you up, too, Cousin Dosia?"

"Yes," said Dosia, hugging the child close. "Hush! some one is coming; you'll get sent to bed again." This time it was Lois. Her abstracted gaze seemed to take in the two on the upper stairway as a matter of course.

"Oh, it's you, is it?" she said. "I thought I heard some one talking." She rested on the post below, looking up. "I came to see if you'd take Zaidee in with you for the rest of the night, Dosia. I want to give Justin's room to Mr. Girard."

"Is he going to stay?" asked Dosia.

"Yes. It's too late for him to disturb the Snows, and he's been traveling all day; he's dreadfully tired. He wanted to sleep on the sofa down-stairs, but I wouldn't let him." She was carrying Zaidee, already half asleep again, in her arms as she talked, depositing her in Dosia's bed, while Dosia followed her.

"Did he sell the island?" asked Dosia.

Lois shook her head. "No. They may really sell it next week, but not now—only that will be too late to save the business. Of course, Mr. Girard doesn't know that, and Justin will not tell him—he says Mr. Girard cannot help. Oh, Dosia, when Justin came in from that ride he looked so well, and now—" She covered her face with her hands, before recovering herself. "It's time you were both asleep."

"Can't I help you?" asked Dosia; but Lois only answered indifferently, "No, it's not necessary," and went around making arrangements, while Dosia, with Zaidee nestling close to her, slept at last.

It was late the next morning before Girard came down. Justin had had breakfast, and gone; Lois was up-stairs with the children, and Dosia, who had been tidying up the place, was arranging some flowers in the vases when he strode in. There was no vestige of that sick-hearted, imploring maiden of the night before; no desolate frenzy was to be seen in this trim, neat, capable little figure, clad in blue gingham, that made her throat very white, her hair very fair. Something in Girard's glance seemed to show an instant pleasure that she should be the one to greet him, but he bent anxiously over the watch he held in his hand.

"Will you tell me what time it is? My watch has stopped."

"It's half-past nine," said Dosia.

"Half-past *nine*!" He looked at her in a sort of quick, horrified arraignment. "What do you mean?" His eye fell upon the clock, and conviction seemed to steal upon him against his will. "Heavens and earth, why wasn't I called? On this morning of all others, when every moment's of importance! I thought I asked particularly to be waked early."

"I suppose they thought you were tired and needed the rest," apologized Dosia.

"Needed the rest!" His tone was poignant; he looked outraged; but his anger was entirely impersonal—there was in it even a sort of boyish appeal to her, as if she must feel it, too.

"You had better sit down and have some breakfast."

"Oh, *breakfast!*" His gesture deprecated her evident intention. "Please don't. Thank you very much, but I don't want any breakfast; I only want to get to town."

"There isn't any train for twenty-five minutes, so you might as well sit down and eat," said Dosia firmly. "Come out to this little table on the piazza." She led the way to the screened corner at the end, sweet with the honeysuckle that swung its long loops in the wind, and faced him sternly. "Do you take coffee?"

"Please don't, please don't cook me anything! I'd hate to trouble you." He seemed so distressed that she relented a little.

"A glass of milk and some fruit, then; you'll *have* to take that."

"Very well—if I must. Can't I get the things myself?"

"No." She ran away to get them for him, with some new joy singing in her heart as she went backward and forward, bringing a pitcher of milk, a glass, a dish of strawberries, some cream, and the sugar, sitting down herself by the table afterward as he ate and drank. He gave her a sudden smile, so surprised and pleased that the color surged in her cheeks.

"I'm not used to this," he said simply. "What is that dress you have on—silk?"

"No, it's cotton; do you like it?"

"*Very* much. Oh, please don't get up—Zaidee wasn't calling you. I won't eat another mouthful unless you stay just where you are—please!"

"Well!" said Dosia, with laughing pleasure.

"Besides, I've been wanting to consult you about the Alexanders," he went on, leaning across the table toward her, intimately. "It's so beautiful to see them together, that to feel that they're in trouble distresses me beyond words. You're so near to them both, I thought that perhaps"—His face

clouded partly. "Do you know anything about the real state of Mr. Alexander's affairs?"

Dosia shook her head. "No; only that he is very much worried over them."

"He wanted to sell the island; he sent me off on that business lately. He'll sell it sometime, of course, but I don't know how complicating the delay is. He's the kind of man you can't ask; you have to wait until he tells you. You can't *make* a person have confidence in you. Won't you please have some of these strawberries with me? Do!"



**SHE TOOK THE PISTOL FROM HIS
RELAXED HOLD**

"No; you must eat them *all*," said Dosia, with charming authority, her arms before her on the table, elbow-sleeved, white and dimpled, as she regarded him. He seemed to take up all the corner, against the background of the green honeysuckle in the fresh morning light. With that smile upon his face, he seemed extraordinarily masculine and absorbing, yet appealing, too.

Dosia felt carried out of herself by a sudden heady resolution—or, rather, not a new resolution, but one that she had had in mind for a long, long time, before, oh, before she had even known who this man was. She had planned over and over again how she was to say those words, and now the time had come. She could not sit here with him in this new, sweet friendliness without saying them. She had imagined the scene in so many different ways! When she had gone over it by herself, her cheeks had flushed, her eyes had shone with the tears in them. The words as she spoke them had gone deeply, convincingly, from heart to heart—or perhaps, in an assumed, tremulous lightness, the meaning in her impulse had shown all the clearer to

one who understood. For a year and a half the uttered thought had been the climax to which her dreams had led; it would have seemed a monstrous, impossible thing that it had not been reached before.

She began now, in a moment's pause, only to find, too late, that all warmth and naturalness had left her with the effort. Fluent dream-practice is only too apt to make one uncomfortably crude and conscious in real life.

"I want to thank you for being so kind to me the night of that accident on the train coming up from the South." Poor Dosia instantly felt committed to a mistake. Her eyes fell for a moment on his hand, as it lay upon the table, with a terribly disconcerting remembrance that hers had not only rested in it, but that in fancy she had more than once pillowed her cheek upon it, and, knowing that he had seen the look, she continued in desperation, with still increasing stiffness and formality: "I have always known, of course, that it was you. You must pardon me for not thanking you before."

The old unapproachable manner instantly incased him, as if in remembrance of something that hurt. "Oh, pray don't mention it," he said, with a formality that matched hers. "It was nothing but what anyone would have done—little enough, anyway."

What happened afterward she did not know, except that in a few minutes he had gone.

She watched him go off down the path with that swift, long, easy step; watched till the last vestige of the gray suit was out of sight—he had a fashion of wearing gray!—before clearing off the table. Then she went and sat on the back steps that led into the little garden, bright with the sunshine and a blaze of tulips at her feet....

She had never supposed that any girl could care for a man until he had shown that he cared for her—it was the unmaidenly, impossible thing. And now—how beautiful he was, how dear! A wistful smile trembled around her lips. All that had gone before with other men suddenly became as nothing, forgotten and out of mind, and she herself made clean by this purifying fire. Even if she never had anything more in her whole life, she had this—even if she never had anything more. Yet what had she? Nothing and less than

nothing. If he had ever thought of her, if he had ever dreamed of her, if her soft, frightened hand trustfully clinging fast to his, only to be comforted by his touch, had been a sign and a symbol to him of some dearer trust and faith for him alone—if in some way, as she dimly visioned it, the thought had once been his, it had gone long ago. Every action showed it. And yet, and yet—so unconquerably does the soul speak that, though he might deny her attraction for him, she knew that she had it. It was something to which he might never give way, but it was unalterably there—as it was unalterably there with her. All that year at home, when she believed she had not been thinking of him, she really had been thinking of him. We learn to know each other sometimes in long absences. She began to perceive in him now a humility and a pride strangely at variance with each other and both equally at variance with the bright assurance of his outer manner. He gave to every one; he would work early and late for others, in his yearning sympathy and affection: yet he himself, from the very intenseness of his desire for it, stood aloof, and drew back from the insistence of any claim for himself. They might meet a hundred times and grow no closer; they might grow farther and farther away.

Dosia felt that other women must have loved him—how could they have helped it? She had a pang of sorrow for them—for herself it made no difference. If she had pain for all her life afterward, she was glad at this moment that he was worthy to be loved; she need never be ashamed of loving him—he was "good." The word seemed to contain some beautiful comfort and uplifting. No matter what experience he had passed through in his struggle with the world, he had held some simple, honorable, *clean* quality intact. The Dosia who must always have some heart-warm dream to live by had it now; for all her life she could love him, pray for him. She had always thought that to love was to be happy; now she was to love and be unhappy—yet she would not have it otherwise.

So slight, so young, so lightly dealt with, Dosia had the pathetically clear insight and the power that comes to those who see, not themselves alone, their own desires and hopes, but the universe in which they stand, and view their acts and thoughts in relation to it. She must see Truth, "and be glad, even if it hurt."

The sunshine fell upon her in the garden; she was bathed in it. Whether she had nights of straining, bitter wakefulness and days of heartache afterward, this joy of loving was enough for her to-day—the joy of loving him. She saw in that lovely, brooding thought of him what that first meeting had taught of his character, and molded in with it her knowledge of him now, to make the real man far more imperfect, though far dearer. Yet, if he ever loved her as she loved him, part of that for which she had always sought love would have to be foregone—she could never come to him, as she had fondly dreamed of doing, and pour out to him all those hopes and fears, those struggles and mistakes and trials and indignities, the shame and the penitence that had been hers. She could never talk of Lawson—her past must be forever unshriven and uncomfited. Bailey Girard would be the last man on earth to whom she could bare her heart in confession; these were the things that touched him on the raw. He "hated the sound of Lawson's name." How many times had George Sutton's face blotted out hers? If he knew *that*! She must forever be unshriven. There would be things also, perhaps, that *she* could not bear to hear! The eternal hurt of love, that it never can be truly one with the beloved, touched her with its sadness, and then slipped away in the thought of him now—not the man who was just to help and protect her with his love, but the man whom she longed to help also. His pleased eyes, his lips, the way his hair fell over his forehead—She thought of him with the fond dream-passion of the maiden, that is often the shyest thing on earth, ready to veil itself and turn and elude and hide at the first chance that it may be revealed.

"Dosia! Dosia, where are you?"

Suddenly she saw that the sunshine had faded out, the sky had grown gray, a chill wind had sprung up. All the trouble, all the stress of the world, seemed to encompass her with that tone in the voice of Lois.

XXVI

"Justin has come home ill; he was taken with a chill as soon as he got to town; he came in a carriage from the station. I want you to telephone for the doctor, and ask him to get here as soon as he can." Lois spoke with rapid distinctness, stooping as she did so to pick up the scattered toys on the floor

and push the chairs into place, as one who mechanically attends to the usual duties of routine, no matter what may be happening. "And, Dosia!" she arrested the girl as she was disappearing, "I may not be down-stairs again. Will you see about what we need for meals? My pocket-book is in the desk. And see about the children. They're in the nursery now, but I'll send them down; they had better play outdoors, where he won't hear them."

"Oh, yes, yes; I'll attend to everything," affirmed Dosia hurriedly, going off for her first duty at the telephone, while Lois disappeared up-stairs. For a man to stop work and come home because he is not well argues at once the most serious need for it. It is the public crossing of the danger zone.

With all her anxiety, Dosia was filled now with a wondering knowledge of something unnatural about Lois, not to be explained by the fact of Justin's illness. There was something newly impassioned in the duskiess of her eyes, in the fulness of her red lips, in every sweeping movement of her body, which seemed caused by the obsession of a hidden fiery force that held her apart and afar, goddess-like, even while she spoke of and handled the things of every-day life. She looked at the common-place surroundings, at the children, at Dosia; but she saw only Justin. When she was beside him, she smiled into his gentle, stricken eyes, telling him little fondly-foolish anecdotes of the children to make him smile also; patting him, talking of the summer, when they would go off together—anything to make him forget, even though the effort left her breathless afterward. When she went out of the room and came back again, she found him still watching the place where she had been with haggard, feverish, burning eyes. He would not go to bed, but lay on the outside of it in his dressing-gown, so that he might get ready the more quickly to go downtown again if the doctor "fixed him up," though now he felt weighted from head to foot with stones.

There was a ring at the door-bell in the middle of the morning, which might have been the doctor, but which turned out surprisingly to be Mr. Angevin L. Cater.

"I heard Mr. Alexander was taken ill this morning and had gone home, and as I had to come out this way on business, I thought I'd just drop in and see if there was anything I could do for him in town," he stated to Dosia.

"I'll find out," said Dosia, and came down in a moment with the word that Justin would like to see the visitor.

Cater himself looked extraordinarily lean and yellow. The fact that his clothes were new and of a fashionable cut seemed only to make him the more grotesque. He looked oddly shrunken; the quality of his smile of greeting seemed to have shrunk also—something had gone out of it.

"Well, Cater, you find me down," said Justin, with glittering, cold cheerfulness.

"I hope not for long," said the visitor.

"Oh, no; but, when I get up, you won't see me going past much longer. I'll soon be out of the old place. I guess the game is up, as far as I'm concerned. Your end is ahead."

"Mr. Alexander," began Cater, clearing his throat and bending earnestly toward Justin, "I hope you ain't going to hold it up against me that I had to make a different business deal from what we proposed. I've been thinking about it a powerful lot. There wasn't any written agreement, you know."

"No, there was no written agreement," assented Justin; "there was nothing to bind you."

"That's what I said to myself. If there had been, I'd 'a' stuck to it, of course. But a man's got to do the best he can for himself in this world."

"Has he?" asked the sick man, with an enigmatic, questioning smile.

"I'd be mighty sorry to have anything come between us. I reckon I took a shine to you the first day I met up with you," continued Cater helplessly. "I'd be mighty sorry to think we weren't friends."

Justin's brilliant eyes surveyed him serenely. Something sadly humorous, yet noble and imposing, seemed to emanate from his presence, weak and a failure though he was. "I can be friends with you, but you can't be friends with me, Cater; it isn't in you to know how," he said. "Good-by."

"Well, good-by," said the other, rising, his long, angular figure knocking awkwardly against chairs and tables as he went out, leaving Justin lying there alone, with his head throbbing horribly. Yet, strangely enough, in spite of it, his mind felt luminously clear, in that a certain power seemed to have come to him—a power of correlating all the events of the past eighteen months and placing them in their relative sequence. A certain faith—the candid, boyish, unquestioning faith in the adequacy of his knowledge of those whom he had called his friends—was gone; the face of Leverich came to him, brutal in its unveiled cupidity, showing what other men felt but concealed; yet his own faith in honor and honesty remained, stronger and higher than ever before. Nothing, he knew, could take it from him; it was a faith that he had won from the battle with his own soul.

By to-morrow night that note of Lewiston's would be protested, and then—the burning pain of failure gripped him in its racking clutches once more, though he strove to fight it off. He would have to get well quickly, so as to begin to hustle for a small clerkship somewhere, to get bread for Lois and the babies. Men of his age who were successful were sought for, but men of his age who were not had a pretty hard row to hoe.

Lois was long gone—probably she was with the baby. He missed his handkerchief, and rose and went over, with a swaying unsteadiness, to his chiffonier drawer in the farther corner to get one. A pistol lying there in its leather case, as it had done any time this five years, for a reserve protection against burglars, caught his eyes. He took it out of its case, examining the little weapon carefully, with his finger on the trigger, half cocking it, to see if it needed oil. It was a pretty little toy. Suddenly, as he held it there, leaning against the chiffonier, his thin white face with its deep black shadows under the eyes reflected by the high, narrow glass, the four walls faded away from him, with their familiar objects; his face gleamed whiter and whiter; the shadows grew blacker; only his eyes stared——

A room, noticed once a year and a half ago, came before him now with a creeping, all-possessing distinctness—that loathsome, dreadful room (long since renovated) which, with its unmentionable suggestion of horror, had held him spellbound on that morning when he had begun his career at the factory. It held him spellbound now, evilly, insidiously. He stood by that

blackened, ashy hearth in the foul room, with its damp, mottled, rotting walls, his eyes fastened on that hideous sofa to which he was drawn—drawn a little nearer and a little nearer, the thing in his hand—did it move itself? Cold to his touch, it moved——

The door opened, and Lois, with a face of awful calm, glided up to him. She took the pistol from his relaxed hold; her lips refused to speak.

"Why, you needn't have been afraid, dear," he said at once, looking at her with a gentle surprise. "I'm not a coward, to go and leave you *that* way. You need never be afraid of that, Lois."

"No," said Lois, with smiling, white lips. She could not have told what made the frantic, overmastering fear, under the impulse of which she had suddenly thrown the baby down on the bed and fled to Justin—what strange force of thought-transference, imagined or real, had called her there.

She busied herself making him comfortable, divining his wants and getting things for him, simply and noiselessly, and then knelt down beside him where he lay, putting her arms around him.

"You oughtn't to be doing this for me; I ought to be taking care of you," he said, with a tender self-reproach that seemed to come from a new, hitherto unknown Justin, who watched her face to see if it showed fatigue, and counted the steps she took for him.

The doctor came, and sent him off sternly to bed, and came again later. The last time he looked grave, ordered complete quiet, and left sedatives to insure it. Grip, brought on by overwork, had evidently taken a disregarded hold some time before, and must be reckoned with now. What Mr. Alexander imperatively needed was rest, and, above all things, freedom from care. Freedom from care!

Every footfall was taken to-day with reference to this. An impression of Justin as of something noble and firm seemed to emanate from the room where he lay and fill the house; in his complete abdication, he dominated as never before. More than that, there seemed to be a peculiar poignancy, a

peculiar sweetness, in every little thing done for him; it made one honorable to serve him.

The light was still brightly that of day at a quarter of seven, when Dosia, who had been putting Zaidee and Redge to bed, came into Lois' room, and found her with crimson cheeks and eyes red from weeping. At Dosia's entrance she rose at once from her chair, and Dosia saw that she was partially dressed in her walking-skirt; she flared out passionately in speech as she was crossing the room, as if in answer to some implied criticism:

"I don't care what you say—I don't care what anybody says. I can't stand it any longer, when it's *killing* him! He *can't* rest unless he has that money. Am I to just sit down and let my husband die, when he's in such trouble as this? Is *that* all I can do? Why, whose trouble is it? Mine as well as his! If it's his responsibility, it's mine, too—mine as well as his!"

She hit her soft hand against the sharp edge of the table, and was unconscious that it bled. "If there's nobody else to get that money for him, *I'll* rise up and get it. He's stood alone long enough—long enough! He says there is no help left, but he forgets that there's his wife!"

"Oh, Lois," said Dosia, half weeping. "Oh, Lois, what can *you* do? There, you've waked the baby—he's crying."

"Get me the waist to this and my walking-jacket. No, give me the baby first; he's hungry."



"THE TWO WOMEN SITTING ON THE BENCH, WRAPPED AROUND BY THE LONELINESS AND THE INTENSE STILLNESS OF THE ONCOMING NIGHT"

She spoke collectedly, bending over the child as she held him to her, and straightening the folds of the little garments. "There, there, dear little heart, dear little heart, mother's comfort—oh, my comfort, my blessing! Get my things out of the closet now, Dosia, and my gloves from that drawer, the top one. Oh, and get out baby's cloak and cap, too. I forgot that I couldn't leave him. I must take him with me." She sank her voice to a low murmur, so as not to disturb the child.

"Where are you going?" asked Dosia.

"To Eugene Larue."

"Mr. Larue!"

"Yes. He'll let me have the money—he'll understand. He wouldn't let Justin have it, but he'll give it to me—if I'm not too proud to ask for it; and I'm not

too proud." She spoke in a tone the more thrilling for its enforced calm. "There are things a man will do for a woman, when he won't for a man, because then he has to be businesslike; but he doesn't have to be businesslike to a woman—he can lend to her just because she needs it."

"Lois!"

"Oh, there's many a woman—like me—who always knows, even though she never acts on the knowledge, that there is some man she could go to for help, and get it, just because she was *herself*—a woman and in trouble—just for that! Dosia, if I go to Eugene Larue myself, in trouble—*such* trouble——"

"But he's out at Collingswood!" said Dosia, bewildered.

"Yes, I know. The train leaves here at seven-thirty, it connects at Haledon. It only takes three quarters of an hour; I've looked it up in the time-table. I'll be back here again by ten o'clock. I—" She stopped with a sudden intense motion of listening, then put the child from her and ran across the hall to the opposite room.

When she came back, pale and collected, it was to say: "Justin's gone to sleep now. The doctor says he will be under the influence of the anodynes until morning. Mrs. Bently is in there—I sent for her; she says she'll stay until I get back." Mrs. Bently was a woman of the plainer class, half nurse, half friend, capable and kind. "If the children wake up, they won't be afraid with her; but you'll be here, anyway."

"Leave the baby with me," implored Dosia.

"No, I can't—suppose I were detained? *Then* I'd go crazy! He won't be any bother, he's so little and so light."

"Very well, then; I'll go, too," stated Dosia in desperation. "I am not needed here. You must have some one with you if you have baby! Let me go, Lois! You *must*!"

"Oh, very well, if you like," responded Lois indifferently. But that the suggestion was an unconscious relief to her she showed the next moment, as she gave some directions to Dosia, who put a few necessities and some biscuits in a little hand-bag, and an extra blanket for the baby in case it should grow chilly.

The train went at seven-thirty. The house must be lighted and the gas turned down, and the new maid impressed with the fact that they would be back at a little after nine, though it might really be nearer ten. After Lois was ready, she went in once more to look at Justin as he slept—his head thrown forward a little on the pillow, his right hand clasped, and his knees bent as one supinely running in a dream race with fate. Lois stooped over and laid her cheek to his hair, to his hand, as one who sought for the swift, reviving warmth of the spirit.

Then the two women walked down the street toward the station, Lois absorbed in her own thoughts, and Dosia distracted, confused, half assenting and half dissenting to the expedition.

"Are you sure Mr. Larue will be there?" she asked anxiously.

"Justin saw him Saturday. He said he was going out there then for the summer."

So far it would be all right, then. They had passed the Snows' house, and Dosia looked eagerly for some sign of life there; she hesitated, and then went on. As they got beyond it, at the corner turning, she looked back, and saw that Miss Bertha had come out on the piazza.

"I'll catch up with you in a moment," she said to Lois, and ran back quickly.

"Miss Bertha!"

"Why, Dosia, my dear, I didn't see you; don't speak loud!" Miss Bertha's face, her whispering lips, her hands, were trembling with excitement. "We've been under quite a strain, but it's all over now—I'm sure I can tell *you*. Dear mother has gone up-stairs with a sick-headache! Mr. Sutton has just proposed to Ada—in the sitting-room. We left them the parlor, but they

preferred the sitting-room. Mother's white shawl is in there, and I haven't been able to get it."

"Oh!" said Dosia blankly, trying to take in the importance of the fact. "Is Mr. Girard in? No? Will he be in later?"

"No, not until to-morrow night," said Miss Bertha, as blankly, but Dosia had already gone on. She did not know whether she were relieved or sorry that Girard was not there. She did not know what she had meant to say to him, but it had seemed as if she *must* see him!

Lois did not ask her why she had stopped; her spirit seemed to be wrapped in an obscurity as enshrouding as the darkness that was gathering around them. Only, when they were at last in the train, she threw back her veil and smiled at Dosia, with a clear, triumphant relief in the smile, a sweetness, a lightness of expression that was almost roguish, and that communicated a similar lightness of heart to Dosia.

"He will lend me the money," said Lois, with a grateful confidence that seemed to shut out every conventional, every worldly suggestion, and to breathe only of her need and the willingness of a friend to help—not alone for the need's sake, but for hers.

Dosia tried to picture Eugene Larue as Lois must see him; his bearded lips, his worn forehead, his quiet, sad, piercing eyes, were not attractive to her. The whole thing was very bewildering.

It was twenty miles, a forty-minute ride, to Haledon, where they changed cars for the little branch road that went past Collingswood—a signal station, as the conductor who punched their tickets impressed on Lois. Haledon itself was a junction for many lines, with a crowd of people on the platform continually coming and going under the electric lights. As Lois and Dosia waited for their train, an automobile dashed up, and a man and a woman, getting out of it with wraps and bundles, took their place among those who were waiting for the west-bound express. The woman, large and elegantly gowned, had something familiar in her outline as she turned to her companion, a short, ferret-faced man with a fair mustache—the man who lately had been seen everywhere with Mrs. Leverich. Yes, it was Mrs.

Leverich. Dosia shrank back into the shadow. The light struck full athwart the large, full-blown face of Myra as she turned to the man caressingly with some remark; his eyes, evilly cognizant, smiled back again as he answered, with his cigar between his teeth.

Dosia felt that old sensation of burning shame—she had seen something that should have been hidden in darkness. They were going off together! All those whispers about Mrs. Leverich had been true.

There were only a few people in the shaky, rattly little car when Lois and Dosia entered it, whizzing off, a moment later, down a lonely road with wooded hills sloping to the track on one side and a wooded brook on the other. The air grew aromatic in the chill spring dusk with the odor of damp fern and pine. Both women were silent, and the baby, rolled in his long cloak, had slept all the way. It was but seven miles to Collingswood, yet the time seemed longer than all the rest of the journey before they were finally dumped out at the little empty station with the hills towering above it. A youth was just locking up the ticket-office and going off as they reached it. Dosia ran after him.

"Mr. Larue's place is near here, isn't it?" she called.

"Yes, over there to the right," said the youth, pointing down the board walk, which seemed to end at nowhere, "about a quarter of a mile down. You'll know when you come to the gates. They're big iron ones."

"Isn't there any way of riding?"

"I guess not," said the youth, and disappeared into the woods on a bicycle.

"Oh, it will be only a step," said Lois, starting off down the walk, followed perforce by Dosia, with the hand-bag, both walking in silence.

The excursion, from an easily imagined, matter-of-fact daylight possibility, had been growing gradually a thing of the dark, unknown, fantastic. A faint remnant of the fading light remained in the west, vanishing as they looked at it. High above the treetops a pale moon hung high; there seemed nothing to connect them with civilization but that iron track curved out of sight.

The quarter of a mile prolonged itself indefinitely, with that strangely eternal effect of the unknown; yet the big iron gates were reached at last, showing a long winding drive within. It was here that Eugene Larue had built a house for his bride, living in it these summers when she was away, alone among his kind, a man who must confess tacitly before the world that he was unable to make his wife care for him—a darkened, desolate, lonely life, as dark and as desolate as this house seemed now. An undefined dread possessed Dosia, though Lois spoke confidently:

"The walk has not really been very long. We'll probably drive back. It's odd that there are no lights, but perhaps he is sitting outside. Ah, there's a light!"

Yet, as she spoke, the light left the window and hung on the cornice above—it was the moon, and not a lamp, that had made it. They ascended the piazza steps; there was no one there.

"There is a knocker at the front door," said Lois. She pounded, and the house vibrated terrifyingly through the stillness. At the same instant a scraping on the gravel walk behind them made them turn. It was the boy on the bicycle, who had sped back to them.

"Mr. Larue ain't there," he called. "The woman who closed up the house told me he had a cable from his wife, and he sailed for Europe this afternoon. She says, do you want the key?"

"No," said Lois, and the messenger once more disappeared.



"THEY'LL GET FULL OF EARTH AGAIN,' SHE PROTESTED"

This, then, was the end of her exaltation—for this she had passionately nerved herself! There was to be neither the warmth of instant comprehension of her errand nor the frank giving of aid when necessity had been pleaded; there was nothing. She shifted the baby over to the other shoulder, and they retraced their way, which now seemed familiar and short. There was, at any rate, a light on a tall pole in front of the little station, although the station itself was deserted; they seated themselves on the bench under it to wait. The train was not scheduled for nearly an hour yet.

"Oh, if I could only fly back!" Lois groaned. "I don't see how I can wait—I don't see how I can wait! Oh, why did I come?"

"Perhaps there is a train before the one you spoke of," said Dosia, with the terribly self-accusing feeling now that she ought to have prevented the expedition at the beginning. She got up to go into the little box of a house, in search of a time-table. As she passed the tall post that held the light, she saw tacked on it a paper; and read aloud the words written on it below the date:

NOTICE

NO TRAINS WILL RUN ON THIS ROAD
TO-NIGHT AFTER 8.30 P.M. ON ACCOUNT
OF REPAIRS

Dosia and Lois looked at each other with the blankness of despair—the frantic, forlornly heroic impulse, uncalculating of circumstances, now showed itself against them in all its piteous woman-folly.

XXVII

Only fifty miles from a great city, the little station seemed like the typical lodge in a wilderness; as far as one could see up or down the track, on either side were wooded hills. A vast silence seemed to be gathering from unseen fastnesses, to halt in this spot.

There were no houses and no lights to be seen anywhere, except that one swinging on the pole above, and the moon which was just rising. It was, in fact, one of those places which consist of the far, back-lying acres of the great country-owners, and which seem to the casual traveler forgotten or unknown in their extent and apparently primitive condition.

To the women sitting on the bench, wrapped around by the loneliness and the intense stillness of the oncoming night, the whole expedition appeared at last, unveiled in all its grim betrayal.

For the first time since Lois had left home, a wild, seething anxiety for Justin possessed her. How could she have left him? She must get back to him at once!

"Oh, Dosia, we must get home again; we must get home!" she cried, starting up so vehemently that the baby in her arms screamed, and Lois walked up and down distractedly hushing him, and then, as he still wailed, sat down once more and bared her white bosom to quiet him. "We shall have to get back; Dosia, we must start at once."

"We shall have to walk to Haledon," said Dosia.

"Yes, yes. Perhaps we may come to some farm-house where they will let us have a wagon. It is seven miles to Haledon—that isn't very far! I often walked five miles with Justin before I was married, and a mile or two more is nothing. There are plenty of trains from Haledon."

"Oh, we can do it easily enough," said Dosia, though her heart was as lead within her breast. "You had better eat some of these biscuits before we start," she advised, taking them out of the bag; and Lois munched them obediently, and drank some tepid water from a pitcher which Dosia had found inside. As she put it back again in its place, she slipped to the side of the platform and looked down the moon-filled, narrow valley.

Through all this journey Dosia had carried double thoughts; her voice called where none might hear. It spoke now as she whispered, with hands outspread:

"Oh, *why* weren't you in when I went for you? Why didn't you come and take care of us, when I needed you so much? Why did you let us go off this way? You might have known! Why *don't* you come and take care of us? There's no one to take care of us but you! *You* could!" A dry sob stopped the words—the deep, inherent cry of womankind to man for help, for succor. She stooped over and picked up an oakleaf that had lain on the ground since the winter, and pressed it to her bosom, and sent it fluttering off on a gust of wind down the incline, as if it could indeed take her message with it, before she went back to Lois.

After some hesitation as to the path,—one led across the rails from where they were sitting,—they finally took that behind the station, which broadened out into a road that lay along the wooded slope above, from which they could look down at intervals and see the track below. One side of that road was bordered by a high wire fencing inclosing pieces of woodland, sometimes so thick as to be impenetrable, while along other stretches there would be glimpsed through the trees some farther, open field. To the right, toward the railway there were only woods and no fencing.

They two walked off briskly at first, but the road was of a heavy, loose, shelving soil in which the foot sank at each step; the grass at the edge was

wet with dew and intersected by the ridged, branching roots of trees; the pace grew, perforce, slower and slower still. They took turns in carrying the baby, whose small bundled form began to seem as if weighted with lead.

Far over on what must have been the other side of the track, they occasionally saw the light of a house; at one place there seemed to be a little hamlet, from the number of lights. They were clearly on the wrong bank; they should have crossed over at the station. The only house they came to was the skeleton of one, the walls blackened and charred with fire. There was only that endless line of wire fencing along which they pushed forward painfully, with dragging step; instead of passing any given point, the road seemed to keep on with them, as if they could never get farther on. Wire fencing, and moonlight, and silence, and trees. Trees! They became night-marishly oppressive in those dark, solemn ranks and groups—those silent thicknesses; the air grew chill beneath them; terror lurked in the shadows. Oh, to get out from under the trees, with only the clear sky overhead! If that road to the house of Eugene Larue had seemed a part of infinity in the dimness of the unknown, what was this?



"LOIS STOLE INTO THE ROOM"

They sat down now every little while to rest, Dosia's voice coaxing and cheering, and then got up to shake the earth out of their shoes and struggle on once more—bending, shivering, leaning against each other for support; two silent and puny figures, outside of any connection with other lives, toiling, as it seemed, against the universe, as women do toil, apparently futile of result.

Once the loud blare of a horn sent them over to the side of the road, clinging to the wire fencing, as an automobile shot by—a cheerful monster that spoke of life in towns, leaving a new and sharp desolation behind it. Why hadn't they seen it before? Why hadn't they tried to hail it when they *did* see? To have had such a chance and lost it! Once they were frightened almost uncontrollably by a group approaching with strange sounds—Italian laborers, cheerful and unintelligible when Dosia intrepidly questioned them. They passed on, still jabbering; two bedraggled women and a baby were no novelty to them. Then there was more long, high fencing, and moonlight, and silence, and shadows, and trees—and trees——

"Do you suppose we'll *ever* get out of here?" asked Lois at last, dully.

"Why, of course; we can't help getting out, if we keep on," said Dosia, in a comfortingly matter-of-fact tone.

It was she who was helper and guide now.

"Oh, if I had never left Justin! Why, why did I leave him? How far do you think we have walked, Dosia?"

"It seems so endless, I can't tell; but we must be nearly at Haledon," said Dosia. "Let's sit down and rest awhile here. Oh, Lois, Lois *dear*!" She had taken off her jacket and spread it on the damp grass for them both to sit on, huddled close together, and now pressed the older woman's head down on her shoulder, holding both mother and child in her young arms.

Lois lay there without stirring. Far off in the stillness, there came the murmur of the brook they had passed in the train—so long since, it seemed! The moon hung high above now, pouring a flood of light down through the arching branches of the trees upon her beautiful face with its closed eyes, and the tiny features of the sleeping child. Something in the utter relaxation of the attitude and manner began to alarm the girl.

"Lois, we must go on," she said, with an anxious note in her voice. "Lois! You mustn't give up. We can't stay here!"

"Yes, I know," said Lois. She struggled to her feet, and began to walk ahead slowly. Dosia, behind her, flung out her arms to the shadow-embroidered road over which they had just passed.

"Oh, why *don't* you come!" she whispered again intensely, with passionate reproach; and then, swiftly catching up with Lois, took the child from her, and again they stumbled on together, haltingly, to the accompaniment of that far-off brook.

The wire fencing ceased, but the road became narrower, the walls of trees darker, closer together, though the soil underfoot grew firmer. They had to stop every few minutes to rest. Lois saw ever before her the one objective point—a dimly lighted room, with Justin stretched out upon the bed, dying, while she could not get there.

"Hark!" said Dosia suddenly, standing still. The sound of a voice troling drunkenly made itself heard, came nearer, while the women stood terrified. The thing they had both unspeakably dreaded had happened; the moonlight brought into view the unmistakable figure of a tramp, with a bundle swung upon his shoulder. No terror of the future could compare with this one, that neared them with the seconds, swaying unsteadily from side to side of the road, as the tipsy voice alternately muttered and roared the reiterated words:

For I have come from Pad-dy land,
The land—I do adore!

They had fled, crouching into the bushes at the edge of the path, and he passed with his eyes on the ground, or he must have seen—a blotched, dark-visaged, leering creature, living in an insane world of his own. They waited until he was far out of sight before creeping, all of a tremble, from their shelter, only to hear another footfall unexpectedly near:—the pad, pad, pad of a runner, a tall figure as one saw it through the lights and shadows under the trees, capless and coatless, with sleeves rolled up, arms bent at the elbows, and head held forward. Suddenly the pace slackened, stopped.

"Great *heavens!*" said the voice of Bailey Girard.

"Oh, it's you, it's you!" cried Dosia, running to him with an ineffable, revealing gesture, a lovely motion of her upflinging arms, a passion of joy in the face upraised to his, that called forth an instantly flashing, all-embracing light in his.

In that moment there was an acknowledgment in each of an intimacy that went back of all words, back of all action. The arm that upheld her gripped her close to him as one who defends his own, as he said tensely:

"That beast ahead, did he touch you?"

"Oh, no; he didn't see us. We hid!" She tried to explain in hurrying, disconnected sentences. "I've been longing and *praying* for you to come! I tried to let you know before we started, and you weren't there. Lois was half crazy about Justin. Come to her now! She wanted to see Mr. Larue, and he was gone. We've walked from Collingswood; we have the baby with us."

"The *baby*!"

"Yes; she couldn't leave him behind. Oh, it's been so terrible! If you had only known!"

"Oh, why didn't I?" he groaned. "I ought to have known—I *ought* to have known! I was in that motor that must have passed you; it was just a chance that I got out to walk." They had reached the place where Lois sat, and he bent over her tenderly. She smiled into his anxious eyes, though her poor face was sunken and wan.

"I'm glad it's you," she whispered. "You'll help me to get home!"

"Dear Mrs. Alexander! I want to help you to more than that. I want you to tell me everything." He pressed her hand, and stood looking irresolutely down the road.

"I could go to Haledon, and send back a carriage for you; it's three miles further on."

"No, no, no! Don't leave us!" the accents came in terror from both. "We can walk with you. Only don't leave us!"

"Very well; we'll try it, then."

He took the warm bundle that was the sleeping child from Lois, saying, as she half demurred, "It's all right; I've carried 'em in the Spanish-American war in Cuba," holding it in one arm, while with the other he supported Lois. The dragging march began again, Dosia, stumbling sometimes, trying to keep alongside of him, so that when he turned his head anxiously to look for her she would be there, to meet his eyes with hers, bravely scorning fatigue.

The trees had disappeared now from the side of the road; long, swelling, wild fields lay on the slopes of the hillside, broken only by solitary clumps of bushes—fields deserted of life, broad resting-places for the moonlight, which illumined the farthest edge of the scene, although the moon itself was hidden by the crest of a hill. And as they went on, slowly perforce, he questioned Lois gently; and she, with simple words, gradually laid the facts bare.

"Oh, why didn't Alexander tell me all this?" he asked pitifully, and she answered:

"He said it was no use; he said you had no money."

"No; but I can sometimes get it for other people! I could have gone to Rondell Brothers and got it."

"Rondell Brothers? I thought they were difficult to approach."

"That depends. I was with Rondell's boy in Cuba when he had the fever, and he's always said—but that's neither here nor there. Apart from that, they've had their eye on your husband lately. You can't hide the quality of a man like him, Mrs. Alexander; it shows in a hundred ways that he doesn't think of. They have had dealings with him, though he doesn't know it—it's been through agents. Mr. Warren, one of their best men, has, it seems, taken a fancy to him. I shouldn't wonder if they'd take over the typometer as it stands, and work Alexander in with it. If Rondell Brothers really take up any one!"—Girard did not need to finish.

Even Lois and Dosia had heard of Rondell Brothers, the great firm that was known from one end of the country to the other—a commercial house whose standing was as firm, as unquestioned, as the Bank of England, and almost as conservative. Apart from this, their reputation was unique. It was more than a commercial house: it was an institution, in which for three generations the firm known as Rondell Brothers had carried on their business to high advantage—on the principles of personal honor and honesty and fair dealing.

No boy or man of good character, intelligence, and industry was ever connected with Rondell's without its making for his advancement; to get a position there was to be assured of his future. Their young men stayed with them, and rose steadily higher as they stayed, or went out from them strong to labor, backed with a solid backing. The number of young firms whom they had started and made, and whose profit also afterward profited them, was more than had ever been counted. They were never deceived, for they had an unerring faculty for knowing their own kind. No firm was keener. Straight on the nail themselves, they exacted the same quality in others. What they traded in needed no other guaranty than the name of Rondell.

If Rondell Brothers took Justin's affairs in hand! Lois felt a hope that sent life through her veins.

"Oh, let us hurry home!" she pleaded, and tried to quicken her pace, though it was Girard who supported her, else she must have fallen, while Dosia slipped a little behind, trying to keep her place by his side, so that when he looked for her she would be there.

"You're so tired," he whispered, with a break in his voice, "and I can't help you!" and she tried to beat back that dear pity and longing with her comforting "No, no, no! I'm not really tired"; her voice thrilled with life, though her feet stumbled.

In that walk beside him, toiling slowly on and on in the bright, far solitude of those empty fields, where even their hands might not touch, they two were so heart-close—so heavenly, so fulfillingly near!

Once he whispered in a yearning distress, "Why are you crying?" And she answered through those welling tears:

"I'm only crying because I'm so glad you're here!"

After a while there was a sound of wheels—wheels! Only a sulky, it proved to be—a mere half-wagon set low down in the springs, and a trotting horse in front, driven by a round-faced boy in a derby hat, the turnout casting long, thin shadows ahead before Girard stopped it.

"You'll have to take another passenger," he said, after explaining matters to the half-unwilling boy, who crowded himself at last to the farthest edge of the seat, so that Lois might take possession of the six inches allotted to her.

She held out her arms hastily. "My boy!" she said, but it was a voice that had hope in it once more.

"Oh, yes, I forgot; here's the baby," said Girard, looking curiously at the bundle before handing it to her. "We'll meet you at the Haledon station very soon now."

In another moment the little vehicle was out of sight, jogging around a bend of the road.

So still was the night! Only that long, curving runnel of the brook again accompanied the silence. Not a leaf moved on the bushes of those far-swelling fields or on the hill that hid their summit; the air was like the moonlight, so fragrantly cool with the odors of the damp fern and birch. The straight, supple figure of Girard still stood in the roadway, bareheaded, with that powerful effect which he had, even here, of absorbing all the life of the scene.

Dosia experienced the inexplicable feeling of the girl alone, for the first time, with the man who loves her and whom she loves. At that moment she loved him so much that she would have fled anywhere in the world from him.

The next moment he said in a matter-of-fact tone:

"Sit down on that stone, and let me shake out your shoes before we go on; they're full of sand."

She obeyed with an open-eyed gaze that dwelt on him, while he knelt down and loosened the bows, and took off the little clumpy low shoes, shaking them out carefully, and then put them on once more, retying the bows neatly with long, slowly accomplishing fingers.

"They'll get full of earth again," she protested, her voice half lost in the silence.

"Then I'll take them off and shake them out over again."

He stood up, brushing the earth from his palms, smiling down at her as she stood up also. "I've always dreamed of doing that," he said simply. "I've dreamed of taking you in my arms and carrying you off through the night—as I couldn't that first time! I've longed so to do it, there have been times when I couldn't *stand* it to see you, because you weren't mine." Then—her hands were in his, his dear, protecting hands, the hands she loved, with their thrilling, long-familiar touch, claiming as well as giving.

"Oh—*Dosia!*" he said below his breath.

As their eyes dwelt on each other in that long look, all that had hurt love rose up between them, and passed away, forgiven. She previsioned a time when all her life before he came into it would have dropped out of remembrance as a tale that is told. And now——

It seemed that he was going to be a very splendid lover!

XXVIII

The summer was nearly at an end—a summer that had brought rehabilitation to the Typometer Company, yet rehabilitation under strict rule, strict economy, endless work. Nominally the same thing, the typometer was now but one factor of trade among a dozen other patented inventions under the control of Rondell Brothers.

If there was not quite the same personal flavor as yet in Justin's relation to the business which had seemed so inspiringly his own, there was a larger relation to greater interests, a wider field, a greater sense of security, and a sense of justice in the change; he felt that he had much to learn. There was something in him that could not profit where other men profited—that could not take advantage when that advantage meant loss to another. He was not great enough alone to reconcile the narrowing factors of trade with that warring law within him. The stumbling of Cater would have been another stumbling-block if it had not been that one. That for which Leverich, with Martin always behind him, had chosen Justin first, had been the very thing that had fought against them.

The summer was far spent. Justin had been working hard. It was long after midnight. Lois slept, but Justin could not; he rose and went into the adjoining room, and sat down by her open window. The night had been very close, but now a faint breath stirred from somewhere out of the darkness. It was just before the dawn. Justin looked out into a gloom in which the darkness of trees wavered uncertainly and brought with it a vague remembrance. He had done all this before. When? Suddenly he recollected the night he had sat at this same window, at the beginning of this terrible journey; and his thoughts and feelings then, his deep loneliness of soul, the prevision of the pain even of fulfilment—an endless, endless arid waste, with the welling forth of that black spirit of evil in his own nature, as the only vital thing to bear him secret company—a moment that was wolfish to his better nature. Almost with the remembrance came the same mood, but only as reflected in the surface of his saner nature, not arising from it.

As he gazed, wrapped in self-communing, on the vague formlessness of the night, it began gradually to dissolve mysteriously, and the outlines of the trees and the surrounding objects melted into view. A bird sang from somewhere near by, a heavenly, clear, full-throated call that brought a shaft of light from across the world, broadening, as the eye leaped to it, into a great and spreading glory of flame.

It had rained just before; the drops still hung on bush and tree; and as the dazzling radiance of the sun touched them, every drop also radiated light, prismatic, and scintillating an almost audibly tinkling joy. So indescribably wonderful and beautiful, yet so tender, seemed this scene—as of a mighty

light informing the least atom of this tearful human existence—that the profoundest depths of Justin's nature opened to the illumination.

In that moment, with calm eyes, and lips firmly pressed together, his thoughts reached upward, far, far upward. For the first time, he felt in accordance with something divine and beyond—an accordance that seemed to solve the meaning of life, what had gone and what was to come. All the hopes, the planning, the seeking and slaving, whatever they accomplished or did not accomplish, they fashioned us ourselves. As it had been, so it still would be. But for what had gone before, he had not had this hour.

It was the journey itself that counted—the dear joys by the way, that come even through suffering and through pain: the joy of the red dawn, of the summer breeze, of the winter sun; the joy of children; the joy of companionship.

He held out his arm unconsciously as Lois stole into the room.

THE END

THE CATHEDRAL

BY
FLORENCE WILKINSON

The streaming glitter of the avenue,
The jewelled women holding parasols,
The lathered horses fretting at delay,
The customary afternoon blockade,
The babel and the babble, the brilliant show—
And then the dusky quiet of the nave.
The pillared space, an organ strain that throbs
Mysteriously somewhere, a rainbow shaft
Shed from a saint's robe, powdering the spectral air,
A workman with hard hands who bows his head,
And there before the shrine of Virgin Mary
A lonely servant girl who kneels and sobs.

THE NEW GOSPEL IN CRIMINOLOGY

BY
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THE Municipal Court of Chicago began its existence December 3rd, 1906. Besides transacting civil business, it is the trial court for all misdemeanors as well as for all violations of city ordinances. The Maxwell Street criminal branch, where I presided for thirteen months, is on the West Side, about a mile from the City Hall, in what is known as the Ghetto District. This district—not more than a mile square—has between two and three hundred thousand inhabitants, of thirty different nationalities, many of them from the poorest laboring class. In one school district near the court, three and one-half blocks long and two blocks wide, there are fourteen hundred public school children, besides hundreds who attend parochial schools, and many who attend none.

It is the Maxwell Street district of which a leading Chicago newspaper, afterward quoted in *McCLURE'S MAGAZINE*, said: "In this territory murderers, robbers, and thieves of the worst kind are born, reared, and grown to maturity in numbers which exceed the record of any similar district anywhere on the face of the globe; murders by the score, shooting and stabbing affrays by the hundred, assaults, burglaries, and robberies by the thousand—such is the crime record each year for this festering place of evil which lies a scant mile from the heart of Chicago."

Within a few days from my going into this court, I was confronted with the problem of what to do with violators of the city laws who had others dependent upon them for support. To impose a fine upon such persons would, if the fine were paid, ordinarily deprive the family of some of the necessities of life. On the other hand, if the fine were not paid and the offender were committed to the House of Correction to work it out at the rate of fifty cents a day, not only would the family be deprived of their means of support during his imprisonment, but the defendant, when

released, would be without employment or the ability then to provide for his family. I observed that frequently women whose husbands had been fined for beating them would go out and borrow money with which to pay the fine.

It was very apparent that such proceedings operated most harshly upon the poor. A person able to pay a fine had comparatively little to fear if he violated the city laws, while inability to pay meant the loss of liberty twenty-four hours for each fifty cents of the fine and costs, which was nothing more or less than imprisonment for debt.

IN THE HOMES OF THE "REPEATERS"

Persons were often brought before me who had been imprisoned many times and who were no better but obviously much worse as a result of such treatment. I found upon investigation that the city contained a very large number of these persons, who were known as "repeaters," and that the time of the police and the courts was much occupied in re-arresting and recommitting them to the House of Correction. Upon examining the records of this institution, I found that of the nine thousand persons imprisoned the previous year because of their inability to pay the fines imposed, *nearly one-half had been there from two to two hundred and one times each. Eighteen women had each served one hundred terms.* I was therefore convinced that this method of "correction" was not only harsh and unjust to the families of such persons, but was of no value as a corrective to the defendants themselves.

Startled by such disclosures, I resolved to study conditions at close range and went into the homes of some of these offenders against the law, taking with me interpreters, for the great majority of them were foreigners. In many of these homes poverty had done its worst. Every surrounding influence favored undesirable citizenship; every turn presented flagrant violations of the law; the tumble-down stairways, the defective plumbing, the overflowing garbage boxes, the uncleaned streets and alleys, all suggested that laws were not made to be enforced. Many of the unfortunates whom I saw there regarded the law as a revengeful monster, a sort of Juggernaut that would work fearful ruin upon any one who got in its way, but otherwise was

not a matter of concern. When I explained to them that the law was their friend and not their enemy, they did not appear to comprehend.

In one place there was a broken-down woman with six children. Two of the children had been arrested for stealing coal from a car. The mother explained that her "man" was in the Bridewell sobering up from one of his frequent drunks and that they had no money to buy coal, which was plainly apparent. Here were children forced to become criminals because the law was helpless to correct their father.

"THE HOUSE OF CORRUPTION"

In substantially every case that I investigated, I found that, notwithstanding the efficient management of our work-house, the offender had come out a less desirable member of society than when he went in; his employment was gone, his reputation was injured, his will weakened, his knowledge of crime and criminal practices greatly increased. As one young girl expressed it: "It is not a House of Correction, but a House of Corruption."

I decided, therefore, to try the plan of suspending over such offenders the maximum sentence permitted by law, and allow them to determine by their subsequent conduct whether they should lose or retain their liberty, with the full knowledge that further delinquency meant, not another trial with its possibility of acquittal or brief sentence, but summary and severe punishment. As a condition precedent to allowing such an offender his liberty, I required him to promise that he would not again indulge in the thing which was responsible for his wrong-doing. In the great majority of cases this was the use of intoxicating liquor; in some, the use of drugs or cigarettes, the patronizing of cheap theaters, or evil associates. I also required him for a time to report to me at regular intervals, usually every two weeks, when a night session of the court was held for such purpose, and to bring with him his wife or other witness who could testify to his subsequent conduct.

FOUR HUNDRED ABLE PROBATION OFFICERS

A serious difficulty then presented itself. I saw that as their numbers increased, it would become impossible for me to keep in personal touch with all these offenders. No parole law for adults, with its paid probation officers, exists in Illinois, and no funds for this purpose were available. I determined, therefore, to appeal to the business men of the district to serve as volunteer probation officers. Through the lawyers who practised in my court, I secured a list of nearly one hundred business and professional men who gladly consented to visit one or more defendants each month and report to me in writing upon blanks which I furnished them. The number of probation officers was subsequently increased to about four hundred, and their monthly reports were entered upon our special docket, which contained the necessary memoranda and history of the case made at the trial.

Certainly no more valuable object lesson was ever presented to hustling, bustling, money-loving, pleasure-hunting Chicago than these doctors, lawyers, manufacturers, and merchants going into the homes of their poor and unfortunate neighbors and taking a genuine interest in their welfare. Here was the ideal probation officer, whose feeling for his ward was something more than chilly professional solicitude; and splendidly did these men do their work. Many of them did more than show a passing interest in the offenders assigned to them. They often gave them employment and encouraged them by increasing their wages from time to time. It was a common thing for substantial business men to appear in court and offer employment to persons whom they wished placed on probation, agreeing at the same time to report regularly as to their subsequent conduct.

A typical illustration of this was shown in the case of a young man who had an old mother to support, and who had fallen into bad company which had led him astray. The gang had rented a flat where they caroused far into the night and were then wont to prey upon their neighbors' hen-roosts. Upon his promise to reform, he was placed on probation and given employment by Mr. S. Franklin, one of the largest manufacturers in the district, who not only afterwards raised his wages, but sent, with his compliments, a dozen handsome pictures to decorate the court-room. That was a year ago, and the other day this young fellow came to my downtown court room to exhibit, proudly, a new suit of clothes purchased with money withdrawn from his savings-bank account.

LIQUOR DEALERS VOTE TO COÖPERATE

Soon after inaugurating my parole system, I invited the four hundred liquor dealers of the district to a conference in my court-room. My first appearance in the Maxwell Street Court had called forth violent opposition from many of the liquor dealers, who declared that my record as a teetotaler disqualified me from administering justice in that district. I was in some doubt, therefore, as to how my invitation would be received; but it was unanimously accepted, and the court-room was not large enough to accommodate the number that responded, so that it was necessary to hold three sessions. The audiences were picturesque and included men not entirely sober, but the great majority listened attentively while I explained my plan and requested that they coöperate with me to the extent of refusing to sell their wares to any person upon my parole list. I promised to furnish each saloon-keeper with such a list for his private reference only; and I gave warning that thereafter sales made knowingly to such persons would subject the seller to summary punishment.

A number of the liquor dealers followed my address with remarks highly complimentary to the work being done, and a resolution pledging me their support was unanimously adopted. The same day, by a curious coincidence, the Women's Christian Temperance Union passed a similar resolution in another part of the city.

All of the liquor dealers, with a very few exceptions, subsequently acted in entire harmony with the resolution. One, who caused the intoxication of a paroled defendant, was fined \$50, which he paid; and no further trouble occurred.

It must not, of course, be supposed that this parole plan was original with me in all its features. A number of States have passed laws for the probation of adult offenders, providing for official probation officers to visit and report upon the persons paroled; but no other court has adopted the plan of holding night parole sessions or has enlisted to so large an extent the services of the business men of the district. These were the two features which in my experience proved most effective in reclaiming the offenders.

RECORD OF SUCCESS NINETY-TWO PER CENT

During my thirteen months' term in the Maxwell Street Court, I tried upwards of eight thousand cases and placed upon probation 1,231 persons. The results were as gratifying as they were surprising, and won for the plan the sincere support and coöperation of the police department in the district, many of the officers assuring me that it had reduced crime one-half. Eleven hundred and thirty-four of the paroled offenders, or about ninety-two per cent., faithfully kept the terms of their parole, and became sober, industrious citizens. Substantially all of those who lapsed did so because they violated their pledge of total abstinence. None, with one or two trivial exceptions, afterward committed any offense against the law.

At one time a number of young men were brought in charged with burglary, but after the evidence was heard the complaints were amended to petit larceny, and the defendants were given their liberty upon promising to go to work and obey the law. When I left the Maxwell Street Court on January 11, 1908, to try civil cases, the suspended sentences in all cases were set aside and the defendants discharged, and I felt some apprehension lest these young men, as well as many others, should, after all restraint was removed, return to their former ways. This fear has proved groundless, the percentage of lapses since January 11 being little, if any, greater than before. A report from the Police Department, covering the young men above referred to, has just been received by me. It reads as follows:

"Driving team, O. K., habits good"; "driving team, sister says he is doing fine"; "driving express wagon for his father, doing fine"; "driving team, stays home nights and brings his money home"; "laboring for \$2.00 per day. Mother says he is doing better"; "laboring for \$2.00 per day, doing fairly well"; "drives buggy for —— Teaming Co., O. K."; "works for the —— R. R., steady ever since paroled."

Because of the absence of express statutory authority, no person charged with a misdemeanor was released on parole except with the approval of the police and the State's attorney; but there were many cases where a parole was not given, in which I felt satisfied that it would have yielded good results. There were, however, upon our special docket, persons charged with larceny, embezzlement, wife abandonment, selling liquor to minors, malicious mischief, assault and battery, and other similar offenses; and except in the one or two cases referred to, which were of a minor nature, the

defendants have shown their sincerity by their actions, and their conduct has in every case been exemplary and satisfactory.

In one case, where the charge was larceny, the police assured me that the defendant had been arrested fifty times. It seemed such a desperate case that I gave him the longest term allowed by the law. After he had been in jail a few days, I discovered that his aged father and mother were sick and helpless, and needed his support. I set aside the judgment and allowed him his liberty upon the understanding that if he again violated the law he would be required to serve out the remainder of the term. He has since worked steadily and faithfully, although, when I went into his home one day upon learning that he had met with an accident, I found poverty and dirt enough to drive anybody to commit crime.

In addition to the support of the police officers, the plan of releasing offenders on parole has had the influential backing of the members of the bar, including the assistant State's attorney, and also of the citizens of the district, who were practically unanimous in its endorsement. The manager of a large department-store assured me that shoplifting had practically ceased since a number of petty thieves had been put on probation under maximum suspended sentences. It would be impossible for me adequately to describe the gratifying surprises that came almost daily in my experience with these supposedly irreclaimable men and women. I found that they invariably grasped with desperate eagerness at a chance to reform, and the joy which they exhibited at the night sessions was oftentimes very pathetic. "We are happier than for years," and "We're having our honeymoon over" were the reports made again and again.

Intense gratitude to the law for giving them "another chance" was the characteristic sentiment in nearly every case, and this feeling proved more powerful in bringing about their reformation than the fear of punishment.

THE STORY OF JIM THE ENGINEER

One day I was hearing a robbery case, when Jim —— entered and modestly seated himself at the rear of the court-room. Jim was running a locomotive on the Burlington Road, and although he had recently married, was

voluntarily laying off two days in the week in order that a fellow-engineer, who had a family to support, might have a show during the hard times. I motioned to my bailiff, and a minute later Jim was seated beside me on the bench, listening to the evidence in the robbery case. I well knew what was passing through his mind, for it was only ten months before that he had stood before the same bar, charged with crime, and it was then that he had promised me, whom he had never seen before, that if I would give him "another chance" he would turn over a new leaf and eschew crime and the society of criminals forever.

This resolution followed a brief talk in my chambers after his trial. His record was not in his favor, and his picture hung in the rogues' gallery. His brother was then serving time, and he had two sisters dependent upon him for support. After I had briefly pointed out to him the folly of such a life as he was then leading, he quietly remarked: "No one ever talked to me that way before; my father is dead and my mother is dead, and I haven't a friend in this town." "Well," I replied, "you probably don't deserve one, the way you have lived, but if you will cut out liquor and go to work" (he had not worked for four months) "and take care of your sisters, you will have friends." He finally agreed that he would do this. "Now," I said, "if you don't keep your promise to me, you will get me into trouble with the officers." He said: "I will show you I can make good." He could not get a bondsman, and I let him go after he had signed his own bond.

He went to work at a dollar a day at the first place he struck, and his wages have been raised four times. One day I had a letter from his sister saying that he had met with an accident. As soon as I adjourned court, I went to the hospital to see him. He said to me: "I will never take chloroform again." I asked, "Why not, Jim?" and he replied: "During this operation, while I was under the influence of chloroform, it seemed to me as if I was going from one saloon to another, and they tell me I didn't do a thing except holler for beer. You bet I will never touch chloroform again." After five weeks in the hospital, Jim, thanks to his fine constitution, pulled through, but the first day he went out on the street he was "picked up" by a vigilant "plain-clothes" man on suspicion of being implicated in a robbery, and spent several hours in jail. Truly the way of the transgressor is hard—not only while he is a transgressor, but for some time afterwards.

SUSPENDED SENTENCE VERSUS THE GOLD CURE

Prejudice against any new method, no matter how successful, was not the only thing I had to contend with in carrying out my plan. Many members of the medical profession assured me that a habitual drunkard could not voluntarily leave liquor alone; that his stomach was in such a condition from the use of alcohol that he must first be given medical treatment before any hope of his reform could be entertained. "Gold Cure" specialists haunted me day and night with offers of free treatment for those on my parole list, all of which I respectfully declined for the reason that several persons who had taken such "cures" without effect had, under the influence of a suspended sentence, become entirely sober and remained so. Many, in fact, were upon the verge of delirium tremens when brought into court, but none were too far gone to be restored.

THE EFFECT ON THE CHILDREN

The proper operation of adult probation will, in my judgment, abolish to a considerable extent the necessity for the Juvenile Court, which has become a new and efficient though expensive institution in a number of States.

Several months ago a man was brought into my court charged with abandoning his family. I investigated and found that there were five children; that a petition was pending in the Juvenile Court to take them away from their mother and father; that the mother was a confirmed drunkard, spending her time in saloons and dance-halls; and that the father, although himself an habitual drunkard and loafer, refused to associate longer with his wife or to live with her. I put them both upon probation, giving them clearly to understand that a single infraction of their promise meant six months in the Bridewell. The man went to work and he is now making \$13.50 a week. They have moved out of the basement they occupied into a comfortable flat. The petition in the Juvenile Court has been dismissed, and the children are clean and wholesome-looking and go to school.

A few months ago the Chicago newspapers reported that the Juvenile Court had taken six children from a filthy basement and had distributed them among the charitable institutions. The report stated that their mother was

dead and that their drunken father had deserted them. I handed this clipping to a police officer and asked him to bring the man in. The officer found him in a saloon and made a complaint charging him with disorderly conduct. I sent him to the Bridewell to sober up and receive treatment for alcoholism, and after he had been there four weeks I set aside the order and put him on parole upon his promise to stop drinking and go to work. I told him that as soon as he satisfied me that he could make good, I would ask Judge Tuthill of the Juvenile Court to restore his children to him; and when I last heard from him he was hard at work, keeping his promise and fixing up a home for his children.

THE CRIMINAL'S "DEBT" TO SOCIETY OVERPAID

That a suspended sentence should be of greater value in bringing about the reformation of a criminal than a prison term is, I believe, reasonable and logical. When the criminal has served his sentence, his supposed debt to society is paid. If he commits another crime, he does so with the chance, in his favor, of a possible acquittal, a "hung" jury, a light sentence, or a reversal upon appeal. He is consequently willing to take risks which he would not take were the consequences sure and severe. The most important element in the defendant's reformation, however, is his avoidance of the physical, mental, and moral injury which he would suffer by serving his prison sentence. In these days, when practically every applicant for a position must present references of previous service, a prison term means ruin. If at the end of his term he is reformed, his reformation is of no value in obtaining employment. Prison sentences did not have this effect a hundred years ago, but times have changed. Every released convict is a shrinking coward, fearful that each person he meets knows his record. The new, plain suit of clothes he is given upon leaving prison is worn only until he can find a secondhand clothing store where it may be exchanged for something less good, but clothed in which he will have a trifle less fear of identification. If he succeeds in getting employment by changing his name and concealing his past, he lives in mortal terror lest his deception be discovered.

It is a fundamental principle of the law that no man can be punished more than once for the same offense. His "debt" to society is presumed to be conclusively paid when his term of imprisonment expires; and yet under

present conditions his real punishment is then only beginning. I have just finished reading a twenty-three-page letter from an ex-convict, who eighteen years ago completed a seven months' term. He tells in a simple and pathetic fashion of his efforts to escape from his prison record, but time and time again, just as he had won the confidence of his employer, some one happened along who "gave him away," and then he was obliged to move and try it again. Never, during all this time, has he dared to attempt to vote, or take any part in public or social affairs. Surely a fearful penance for one violation of the law, especially when we know that thousands of wealthy and influential lawbreakers are never punished!

If an ex-convict has a family, he returns from prison to find them impoverished, shunned by their neighbors, his children scorned and sneered at by their schoolmates—everything worse, more helpless, than when he left them. All of this, and much more, is escaped by the man under a suspended sentence; his capital is unimpaired, and by "making good" his record will be cleared.

That many, perhaps a majority, of criminals can be wholly reformed without imprisonment, through the means of a suspended maximum sentence, with little or no expense to the State, I am satisfied beyond a doubt; and this will be done when we can eliminate from the treatment of criminals the desire for revenge and look only to the good of the individual and of society.

*** END OF THE PROJECT GUTENBERG EBOOK MCCLURE'S
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